AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT

1. CONTRACT ID CODE	PAGE	OF	PAGES
	1		128

2. AMENDMENT/MODIFICATION NO.	3. EFFECTIVE DATE	4. REQUISITION/PURCHASE REQ. NO.	5. PROJECT NO. *(If applicable)*
0001	10/28/2026		

6. ISSUED BY	CODE	7. ADMINISTERED BY *(If other than Item 6)*	CODE
DLA Contracting Services Office Philadelphia - DCSO-P 700 Robbins Ave. Philadelphia, PA 19111	SP4709	SEE BLOCK 6	SP4709

8. NAME AND ADDRESS OF CONTRACTOR *(No., street, county, State and ZIP Code)*	(X)	9A. AMENDMENT OF SOLICITATION NO.
	☒	SP4701-26-Q-0002
		9B. DATED *(SEE ITEM 11)* 10/08/2026
	☐	10A. MODIFICATION OF CONTRACT/ORDER NO.
		10B. DATED *(SEE ITEM 13)*

CODE	FACILITY CODE

11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS

☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended, ☒ is not extended.

Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods: (a) By completing items 8 and 15, and returning 1 copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or telegram which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment your desire to change an offer already submitted, such change may be made by telegram or letter, provided each telegram or letter makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA *(If required)*

13. THIS ITEM ONLY APPLIES TO MODIFICATION OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NO. AS DESCRIBED IN ITEM 14.

CHECK ONE	
☐	A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: *(Specify authority)* THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NO. IN ITEM 10A.
☐	B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES *(such as changes in paying office, appropriation date, etc.)* SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).
☐	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:
☐	D. OTHER *(Specify type of modification and authority)*

E. IMPORTANT: Contractor ☐ is not, ☒ is required to sign this document and return 1 copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION (*Organized by UCF section headings, including solicitation/contract subject matter where feasible.)*

The purpose of this amendment is to:

1) Provide answers to vendors questions (attached)

2) Provide a revised PWS with tracked changes

Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER *(Type or print)*	16A. NAME AND TITLE OF CONTRACTING OFFICER *(Type or print)*

15B. CONTRACTOR/OFFEROR	15C. DATE SIGNED	16B. UNITED STATES OF AMERICA	16C. DATE SIGNED
(Signature of person authorized to sign)		*(Signature of Contracting Officer)*	

Request for Quote (RFQ) SP4709-27-Q-4002 is amended as follows:

This amendment contains revisions (adds/changes/deletions) to the solicitation requirements.

The following responses to questions received are hereby incorporated into the RFQ:

No.	Page Number	RFQ Section	Question	Answer
1	26-27	Section 2.6.2 – Task Specific Personnel Minimum Requirements	Historically, the DLA JETS vehicle has limited the total number of key personnel to 20% of the total estimated level of effort in order to facilitate competition and prevent giving the incumbent an unfair competitive advantage. We respectfully request DLA revise the total number of key personnel to be not more than 20% of the total level of effort.	The Government evaluated the request and declines to modify the Key Personnel requirements. The designated positions reflect the agency's actual minimum needs to ensure uninterrupted operations and mitigate technical and financial reporting risks associated with the EAGLE system. The requirement remains as stated in the solicitation.
2	29	Section 2.6.2 – Database Administrator (DBA) – Microsoft SQL Server, Senior – Minimum Requirements	Please confirm whether the Senior DBA must possess one applicable computing environment certification from the listed alternatives, in addition to the IAT Level II baseline certification.	Correct - the DBA must have one of the computing environment certifications listed in the PWS under the Database Administrator (DBA) Microsoft SQL Server labor category.
3	27-29	Section 2.6.2 – Task Specific Personnel Minimum Requirements; Attachment Y – DLA Approved CS/CE List	Please confirm whether any certification listed in Attachment Y for the respective Key Personnel (KP) roles may be used in place of the certifications specifically identified in Section 2.6.2.	No, certifications referenced specifically in PWS Section 2.6.2 are the certifications required. If there is not a specific certification referenced, then Attachment Y can be used to see the DLA approved list.

4	26	2.6.2	Section 2.6.2 allocates approximately 38% of the total estimated labor hours as Key Personnel. This level of Key Personnel staffing appears inconsistent with DLA's stated intent that Key Personnel comprise 10-20% of the overall FTEs and may unnecessarily restrict competition by favoring offerors with access to incumbent personnel. Would the Government move the Computer Software/Integration Analyst (Off-Site) and one of the two Database Administrator - Senior (Off-Site) to non-key, reducing the Key Personnel to approximately 20% of total estimated labor hours? This change would retain the Task Order Project Manager (Off-Site) and Software Systems Engineer (Off-Site) preserving management accountability and technical oversight while increasing staffing flexibility and promoting competition without favoring offerors with access to incumbent staff.	The Government evaluated the request and declines to modify the Key Personnel requirements. The designated positions reflect the agency's actual minimum needs to ensure uninterrupted operations and mitigate technical and financial reporting risks associated with the EAGLE system. The requirement remains as stated in the solicitation.
5	29	2.6.2	Could the Government please confirm that the listed Computing Environment Certifications (MC: Azure DBAA, MCSA: SQL 2012 DBA, MCSA: SQL 2016 DBA, or MC: Azure SEA) satisfy the DLA CE Certification requirement for the DBA Admin IA Role/Function?	Confirmed.
6	42	3.1	Will the Government increase the Technical Approach page limit to 15 pages to ensure offerors have adequate space to fully address all PWS requirements?	Please limit Technical Approach to 10 pages or less as referenced in RFQ Section 3.

7	26	2.6.2	The Database Administrator (DBA) - Microsoft SQL Server is required to have a DoD Approved 8570 Baseline Certification: Category IAT Level II certification. We request that the Government remove this requirement, as a Computing Environment Certification should be sufficient to demonstrate the DBA's expertise and capabilities relevant to their job role. The DBA's responsibilities are centered on administering, securing, maintaining, and optimizing the Microsoft SQL Server environment; therefore, a current, role-aligned certification provides direct evidence of the specialized knowledge and practical competency needed to perform the work. Requiring an additional IAT Level II certification may unnecessarily restrict the pool of otherwise qualified candidates without providing a commensurate increase in assurance of successful job performance.	PWS Section 2.6.2 has been revised using tracked changes.
8	9	2.3.2	Is there a requirement for modernizing the EAGLE application? If so, could you please provide details on the technology that will be used as well as the timeline for modernizing?	EAGLE is routinely updated with improvements as part of sustainment to include regular system upgrades. There is no requirement to move EAGLE to a different technology stack.
9	2-3 and 8-14	1 and 2.3	The tasks described in Section 2.3 do not match the tasks listed in the CLIN tables in Section 1. Could the Government please clarify?	Section 1 has been revised using tracked changes in accordance with the PWS tasks listed in Section 2.3

10	3	Section 1: Schedule of Supplies	The Optional Transition Period has a start date of April 1, 2028 through April 30, 2029 (period of 13 months). The Quantity column for CLIN 3001 is 12 months. Please confirm the optional transition out period should be 1 month (30 days)?	As referenced in PWS Section 1, Task 3 Optional Transition Support is a 2-month period of performance.
11	2	Section 1: Schedule of Supplies	Please confirm that the Section 1 pricing schedule descriptions should align with PWS 2.3 as follows: CLINs 0001/1001/2001 cover Task 1, Task Order Project Management Support; CLINs 0002/1002/2002 cover Task 2, Application Sustainment; and the optional transition CLIN covers Task 3, Optional Transition Support.	Section 1 has been revised using tracked changes in accordance with the PWS tasks listed in Section 2.3
12	29	2.6.2 Task Specific Personnel Minimum Requirements	Please confirm that a current Microsoft Certified: Azure Database Administrator Associate certification satisfies the Database Administrator computing environment certification requirement in PWS 2.6.2, without requiring the individual to hold the other computing environment certifications listed.	Confirmed - the DBA must only hold one of the listed computing environment certifications.
13	NA	Pricing Worksheet	As currently structured, the pricing volume (attachment 2) does not have clear instructed space to allow for listing of assumptions. Please confirm that the offeror may provide assumptions by adding a tab to the pricing volume.	Attachment is not to be revised, however RFQ Section 3 is revised (using tracked changes) to allow a Pricing Narrative to be submitted.

Section 1: Schedule of Supplies

Base Period					
Period of Performance (PoP): January 4, 2027 through January 3, 2028					
CLIN	**DESCRIPTION**	**U/I**	**QTY**	**UNIT PRICE**	**TOTAL**
0001	TASK 1: Network and Telecommunication Services Base Period: 12-Months (Firm Fixed-Price)	UN	12	$	$
0002	TASK 2: Technology Services Base Period: 12-Months (Firm Fixed-Price)	UN	12	$	$
				TOTAL:	**$**

Option Period 1					
Period of Performance (PoP): January 4, 2028 through January 3, 2029					
CLIN	**DESCRIPTION**	**U/I**	**QTY**	**UNIT PRICE**	**TOTAL**
1001	TASK 1: Network and Telecommunication Services Option Period 1: 12-Months (Firm Fixed-Price)	UN	12	$	$
1002	TASK 2: Technology Services Option Period 1: 12-Months (Firm Fixed-Price)	UN	12	$	$
				TOTAL:	**$**

Option Period 2					
Period of Performance (PoP): January 4, 2029 through January 3, 2030					
CLIN	**DESCRIPTION**	**U/I**	**QTY**	**UNIT PRICE**	**TOTAL**
2001	TASK 1: Network and Telecommunication Services Option Period 2: 12-Months (Firm Fixed-Price)	UN	12	$	$
2002	TASK 2: Technology Services Option Period 2: 12-Months (Firm Fixed-Price)	UN	12	$	$
				TOTAL:	**$**

Optional Transition Period					
Period of Performance (PoP): TBD					
CLIN	**DESCRIPTION**	**U/I**	**QTY**	**UNIT PRICE**	**TOTAL**
TBD	TASK 1: Network and Telecommunication Services Optional Transition Period: 2-Month (Firm Fixed-Price)	UN	2	$	$
				TOTAL:	**$**

Total Base & All Option(s):	**$**

SECTION 2: PERFORMANCE WORK STATEMENT

2.1 BACKGROUND

The Defense Logistics Agency (DLA) Employee Activity Guide for Labor Entry (EAGLE), a Government-Off-The-Shelf (GOTS) system, is the DLA time and attendance (T&A) and workload tracking system used to collect data for analysis, planning, costing, reporting, and to prepare DLA civilian T&A for payroll. Additional modules provide review, approval, and tracking for leave requests, premium hour requests (e.g. Overtime/Compensatory time), telework requests and agreements, and voluntary leave transfers. The EAGLE Enterprise Change Request Tool (ECRT) is used by J62 Program Management Offices (PMO) to approve Incidents. DLA Human Resources uses the Work Order functionality within ECRT to record DLA-serviced employee requests, track those requests to completion, and run reports for workload tracking/leveling and metrics.

General System Description and System Architecture

The EAGLE system is a web application and mobile web application developed using Microsoft Visual Studio 2019-2022, ASP.NET, JavaScript, HTML, CSS and Microsoft's C# programming language. The application uses load-balanced virtualized web servers connecting to a dedicated physical database server and physical report server. These servers are hosted at a Defense Information Systems Agency (DISA) datacenter. All servers use the 64-bit version of Windows Server 2022. Web servers use Internet Information Services (IIS) to serve web content. The database and report servers use Microsoft SQL Server 2022 Enterprise Edition. Reports are generated using SQL Server Reporting Services (SSRS). EAGLE is used by over 24,000 users who must access the application from .MIL addresses and authenticate exclusively using their Common Access Cards (CAC) and/or derived credentials. Remote internet access to EAGLE can be accomplished via DLA's VPN. DLA J64 provides Windows Server administration while the EAGLE team provides application and database support.

The EAGLE team uses Microsoft Azure DevOps as the source code versioning repository. Azure DevOps also provides automated build services to support continuous integration of code written by developers. These automated builds are deployed to the Dev/Test servers which house the multiple distinct websites and databases so that developers can work on multiple versions of the software simultaneously. The Dev/Test servers must be accessed using a VPN to ensure separation between Dev/Test and Production networks. All changes to the EAGLE software baseline are checked-in under an approved Project, RFC, or Incident.

System Relationships

EAGLE sends/receives data with multiple systems to perform its required functions. EAGLE sends Time & Attendance to the Defense Civilian Payroll System (DCPS) for payroll processing. DCPS sends EAGLE master employee data to support the Time & Attendance entry and review. EAGLE also receives accounting codes from the DLA Enterprise Business System (EBS) for entry on timesheets and from the DLA Human Resources database to support Human Resources functions in EAGLE.

EAGLE Core Functions

Time & Attendance: EAGLE collects data for the purpose of tracking time and attendance and alternate worksite / telework records to include overtime and leave hours, to track accounting information and workload / project activity for analysis and reporting purposes; for statistical reporting on leave and overtime use patterns, number of employee's teleworking, etc.; and for costing capabilities. Information is provided through database feeds from the Defense Finance and Accounting Service (DFAS) and the Defense Civilian Personnel Advisory Service (DCPAS) for the purpose of issuing payroll and providing information required for the approval and maintenance of telework requests.

Human Resources: EAGLE provides several capabilities managed by DLA Human Resources. The EAGLE Telework Management module is used to request, approve, and track telework; to generate standardized reports on telework participation for submission to the Office of the Secretary of Defense (OSD); to identify hoteling opportunities within DLA; and to generate reports for tracking compliance with DLA telework program requirements. DLA Human Resources uses the Work Order functionality within ECRT to record DLA-serviced employee requests per year, track those requests to completion, and run reports for workload tracking/leveling and metrics. In addition to standardized fields for all Work Orders, ECRT provides HR specialists with the ability to capture additional details specific to 54 lines of business using over 200 tailored fields.

EAGLE Functions

EAGLE modules support these core functions and are described below:

Employee Management: The Employee Management application maintains information for government employees, contractors, military, and local nationals to include their roles (system access). The information from this module is used in the other modules to include the timesheet. Standardized and ad hoc reports are provided.

Codes Management: The Codes Management application consists of a database with 4 levels of workload and project charge codes, tags, and their descriptions. Optional functionality includes a limit/cap on project hours to support management and billing requirements. Codes view groups are defined to limit user visibility to these codes. These codes are defined and maintained by each site's Codes Manager to meet site specific or enterprise level tracking and reporting requirements.

User: The User application provides DLA civilian employees, contractors, and military the ability to enter payroll codes and hours, EBS accounting codes and/or workload and project codes with descriptions from selection lists. Hours are entered using DCPS regular, leave, compensatory, and overtime hour codes along with reason codes like Telework and family friendly. DCPS hour codes are filtered according to an employee's schedule preventing incorrect codes to be entered. EBS accounting codes include cost centers, activity types, and internal orders and are filtered by EBS location and validated. Workload and project codes are filtered according to an employee's codes view group and optional validation for a cap on project hours worked. Attendance times are also input by civilian personnel, and contractors, when required. Timesheets are created after the data has passed all validation and internal controls. If discrepancies are found, error reports are generated.

Leave Management: The Leave Management module provides employees with the ability to request leave from both desktop and mobile devices with notifications and reminders sent where appropriate. Approved leave is automatically populated on the timesheet. Warnings are shown during timesheet submission and certification if an employee has charged leave but not gotten approval through Leave Management. In addition to providing standardized reports to employees and management, users can subscribe to Employee Status Calendars viewed through Microsoft Outlook.

Premium Hour Management: The Premium Hour Management module provides employees with the ability to request premium hours from both desktop and mobile devices with notifications and reminders sent where appropriate. Errors are shown during timesheet submission and certification if an employee has charged premium hours but not gotten approval through Premium Hour Management. Standardized reports are available to include filtering options.

Telework Management: Telework Management is the module within EAGLE for requesting, approving, and tracking telework. Standardized reports automate a previously manual process for reporting telework program participation to the Office of the Secretary of Defense (OSD). Additional reports can be used to ensure compliance with DLA telework program requirements and identify hoteling opportunities within DLA.

Voluntary, Advanced, Restored, & Parental Leave: This module within EAGLE is for requesting, approving, and tracking applications and donations for the Voluntary Leave Transfer Program (VLTP) as well as submitting and processing requests for Advanced, Restored, and Paid Parental Leave. Employees, supervisors, program coordinators, HR Specialists, and payroll can view and take action on records as well as run standardized and ad hoc reports.

Timekeeping & Certification: The Timekeeping & Certification application provides timekeepers and supervisors a summary and/or detailed view of their employee's time and attendance data and schedule information. They can add, edit, or delete time and attendance data (payroll codes and hours, EBS accounting codes and/or workload and project codes) for prior, current, or 2 future pay periods. They can also print an employee's timesheet after validation has been passed for the current pay period. Based on roles, a supervisor can view leave balances and certify or un-certify their employee's data. Editing cannot occur once an employee's data has been certified.

Project Review: The Project Review application provides site administrators and project analysts with the ability to review and/or update history charges to project codes for their assigned employees for previous pay period data. Changes in this application can only be made to the project charges.

Reporting: The Reporting application provides ad hoc reporting of an organization's resource information, workload and project charge codes, EBS Accounting codes, payroll codes, and costing. EAGLE provides management reporting visibility to payroll and EBS codes before they are transmitted to DCPS thus reducing erroneous charges. Management can create statistical reports on labor distribution against projects, overtime, leave, and telework hours. There are multiple methods to view and select codes. Organizational query criteria are presented by a tree view selection to create reports where hierarchical data is divided into groups that can be expanded and collapsed similar to the way folders and files are displayed. There is an Adobe Acrobat report or an option to export data to Excel for manipulation and pivot table

charting. Other options include grouping, sorting, and the ability to save the report criteria. Global Reporting provides the same functionality but at an enterprise level across predefined sites.

Enterprise Change Request Tool (ECRT): ECRT provides Human Resources with Work Order functionality used by HR Specialists to tracking requests from DLA-serviced employees. ECRT is also used by J62 Program Management Offices to process Incidents.

2.2 SCOPE

This Performance Work Statement (PWS) outlines the requirements to acquire Defense Business Systems (DBS) life cycle management support services to assist the EAGLE program. The contractor shall provide full lifecycle support as related to DLA's DBS acquisition, development, sustainment, maintenance, and technical support. These activities include:

- Design, code, test and integrate requirements into EAGLE and supporting programs.
- Provide expertise for general and specific activities related to software development and maintenance, data administration, configuration management, software process improvement, information assurance, documentation and IT support infrastructure.
- Coordinate and implement system software changes at various operational sites, to include overseas locations.

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This Task Order	JETS 2.0 IDIQ SOW Task
TASK 1 – Task Order Project Management Support; IUS#0003 – Operational Phase	Task Area 7 – Program/Project Management Support
TASK 2 – Application Sustainment; IUS#0003 – Operational Phase	TASK AREA 4 – Defense Business System (DBS) Life Cycle Management: Acquisition, Development, Sustainment, Maintenance and Technical Support
TASK 3 – Optional Transition Support; IUS#0003 – Operational Phase	Task Area 7 – Program/Project Management Support

Current Incumbent Information:

Nationwide IT Services Inc
4025 Fair Ridge Dr
Ste 300
Fairfax VA 22033-2865

SP4709-17-D-0041/SP4709-24-F-0020
January 18, 2024 – January 3, 2027
Firm Fixed Price

2.3 TASK REQUIREMENTS

The Contractor will be required to perform tasks such as the following:

2.3.1 TASK 1 – Task Order Project Management Support (Reference IDIQ RFP SP4709-23-R-0001 Task Area 7, IUS#0003 – Operational Phase)

The contractor shall participate in the government's kick-off meeting and articulate their plans to manage scope, contractors, schedule, and the execution of task areas. This includes the coordination of on/offboarding contractors, reporting, training and timely submission of deliverables. The Task Order Project Manager will ensure schedules are developed and meet the government's needs for the contracted employees. The Task Order Project Manager will ensure deliverables, training, reporting, and tasks are completed timely and accurately. The Task Order Project Manager will coordinate invoices and reporting with the COR to ensure reports are reviewed and approved prior to invoicing.

Deliverable: Monthly Progress Report (MPR): The Contractor shall provide a Monthly Progress Report to the COR and Program POC. The file will be provided to the COR prior to invoicing, in PDF or similar agreed upon format and indexed as **YYYY.MM MPR**. The MPR will account for the invoiced Period of Performance and shall include, but not be limited to: Contract number and Task Order Number, Brief task description, A review of work accomplished during the reporting period and/or significant events, Deliverable progress, and Problem areas and Solution or Plan to correct, Anticipated activity for the next reporting period, Description of any travel or unique services provided, and Funds/labor expended and remaining.

Deliverable: Transition Plan: The contractor shall provide a Transition Plan NTE seven (7) pages within 60 days of task order award of the base period.

The contractor shall:

a) Provide a Transition Plan to execute the transition out of all service areas if you are not awarded the follow-on; Transition Plan to transition-out all services to include knowledge transfer to personnel designated by the government.
b) Provide details on a full performance schedule for the transition-out phase.
c) Plan the transition services associated with the consolidation or divesture of DoD and/or DLA workload or uninterrupted operations.
d) Assist DLA in planning, preparing, and implementing any transition or change services.
e) Provide approved changes to DLA equipment, software, processes, and overall environment to support such consolidation or relocation.
f) Consider economies of scale and other synergies between the acquired operations of DLA.
g) Provide transition cost analysis, propose schedules and document risks associated with such transition.

Deliverable: In-Process Reviews (IPRs)
The contractor shall conduct In-Process Reviews (IPRs) as needed and provide information regarding contract status. IPRs shall provide for an interchange between the Government and contractor during the

execution of the task order (e.g., review of the system design, reviewing the results of functional testing, etc.).

2.3.2 Task 2 - Application Sustainment (Reference IDIQ RFP SP4709-23-R-0001 Task Area 4, IUS#0003 – Operational Phase)

The Contractor shall provide the necessary software engineering, technical, programming, documentation and analytical services in support of the development and maintenance of EAGLE. The contractor will have at least 2 years' experience supporting applications in the human resources functional area. This work addresses, but is not limited to, the design, development lifecycle, code, test, evaluation, implementation, documentation and other support required for system development. The current system development environment requires support using Microsoft (MS) Azure DevOps, MS Visual Studio 2019-2022, MS Visual Studio Data Tools Reporting Services Extension, MS SQL Server 2022, MS SQL Server Management Studio (SSMS), and MS SQL Server Profiler. All technical programming delivered to the Government must be determined technically compliant and acceptable, and becomes the property of the Government.

2.3.2.1 Application Sustainment Support. The contractor shall monitor the health of the applications and websites to ensure they are accessible to users, are available for use, and provide full system functionality. Tasks to be performed by the contractor shall include:

a) Daily monitoring of application log files.
b) Perform operational checkpoints to verify continued system operations.
c) Analyze operational problems, develop solutions and take corrective action as appropriate to ensure continued system operation.
d) Assist with problem identification and resolution of applications by analyzing system processes, interrelationships interfaces, and data.
e) Provide Root Cause Analysis (RCA) for problem situations impeding operations.
f) Communicate status of incidents to users and Government personnel.
g) Report incidents within the expected timeline identified by the Government PM and Government Leads.
h) Implement fixes authorized by the Government Lead.
i) Work with other J6 Technical Support Teams, as needed, to resolve incidents.
j) Resolve application incidents within 24 hours or the acceptable timeframe identified by the Government.
k) Participate in escalation reporting for outages that cannot be resolved in defined timeframes.
l) Manage help desk queues for incidents and work orders.
m) Develop user training materials and conduct both live and recorded training.
n) Complete work orders within the expected timeline identified by the Government PM and Government Leads.
o) Respond to security incident reports and participate in impact analysis, mitigation, and reporting.
p) Keep applications up to date with the development platforms and ever evolving security requirements.
q) Analyze and modify existing programs to gain increased efficiencies in performance.
r) Update COTS applications with vendor-provided code upgrades and install security patches.
s) Assist with data center migration planning, testing and execution as required by DoD and DLA

mandates for applications and their platforms.

t) Monitor system performance and resolve issues including system outages and degradations.
u) Develop concepts and tools for problem prevention and avoidance.
v) Counsel government/contractor associates in any specific technical areas of expertise.
w) Provide subject matter expertise (SME) to support the exploration and exploitation of new technologies, methodologies, and applications related to the various systems.
x) Develop and prepare briefings and documents related to technical specifications, training materials, operation and system user manuals, analysis reports, and other system related information.

2.3.2.2 Project Planning and Task Execution. The contractor shall participate in Work Breakdown Schedule (WBS) development and execution, and meet estimated completion dates. Tasks to be performed by the contractor shall include:

a) Identify actions to be performed and estimated completion dates.
b) Meet or exceed estimated completion dates for each assigned WBS task unless special circumstances permit missing the completion date.
c) Provide input to the Government Leads to identify changes in workload, based on scope or complexity of future workload, such as proposed or Emergency Change Requests.

2.3.2.3 Functional and Technical Specifications. The contractor shall analyze and develop functional and technical requirements for identified projects and initiatives. The contractor shall confirm system requirements in conjunction with the functional and technical stakeholders to ensure the project scope is understood. Tasks to be performed by the contractor shall include:

a) Translate the business requirements to functional/technical requirements.
b) Analyze requirements for technical feasibility and completeness.
c) Ensure requirements for enhancements/changes conform to DLA guidance as documented in job aides, Standard Operating Procedures (SOPs), Audit Readiness and accounting practices, Information Assurance (IA) requirements, business rules, and all applicable government policies and regulations.

2.3.2.4 Business Process Modeling Support. The contractor shall provide technical support to document current processes through the use of modeling tools, as well as support efforts to develop and document new processes.

2.3.2.5 Software Design and Maintenance. The contractor shall design applications and/or other data structures and develop application code and modifications for enhancements/changes. Tasks to be performed by the contractor shall include:

a) Implement and design solutions based on industry best practices.
b) Ensure adherence to secure-coding best practices.
c) Develop secure solutions in accordance with the Risk Management Framework (RMF).
d) Design User Interface (GUI) for application enhancements/changes.
e) Work with other J6 Technical Support Teams, to plan and implement new design solutions.
f) Develop system level scripts and programs in programming languages including but not limited to: HTML, XML, JSON, Cascading Style Sheets (CSS), JavaScript, C-Sharp (C#), Microsoft Reporting Services Report Definition Language (RDL), and Microsoft Transact-SQL (T-SQL).

g) Utilize standard development tools including Microsoft SQL Server Management Studio, Visual Studio 2019-2022, and Microsoft Azure DevOps.
h) Create, design, update, document and implement logical and physical database changes.
i) Modify or write new on-line programs, batch programs, interfaces, and reports.
j) Identify and resolve information assurance weaknesses and vulnerabilities.
k) Develop and test prototype screens and codes to support the design phase.
l) Ensure solutions conform to DLA, DoD, and other Government Agency policies and regulations as they apply to applications and the execution environments.

2.3.2.6 Software Testing. The contractor shall test application enhancements/changes, perform regression testing, and support user testing. Tasks to be performed by the contractor shall include:

a) Develop and execute test cases in support of all levels of testing to include: System Testing (ST), Functional Testing (FT), Environmental Testing (ET), Integration Testing (IT) and Initial Operational Capability testing (IOC).
b) Identify and resolve issues identified during testing.
c) Report testing outcome and status.
d) Participate in testing of environment changes (software or security), configuration changes, etc. that impact applications and websites over time as those requirements change.
e) Utilize static code analysis tools to eliminate known vulnerabilities prior to deployment, and on a recurring basis thereafter.
f) Respond to and eliminate vulnerabilities identified by live dynamic application security scans during pre-deployment preparation and on a recurring basis thereafter.
g) Generate necessary test data and transactions in the test environments to execute required tests.
h) Provide the necessary training and test data for business personnel to complete user acceptance testing.
i) Coordinate testing with selected end users in the test environment, as applicable.
j) Track test results and defects to ensure resolution of all deficiencies and completion of a comprehensive test.
k) Ensure test cases, test results, break/fixes, and supporting documentation conform to DLA guidance as documented in job aides, Standard Operating Procedures (SOPs), Audit Readiness and accounting practices, Information Assurance (IA) requirements, business rules, and all applicable government policies and regulations.

2.3.2.7 Configuration Management (CM), Release Management (RM), and Post-Production Support. The contractor shall participate in the planning and release of application enhancements/changes in accordance with the Government Release Management process. Tasks to be performed by the contractor shall include:

a) Perform application installs and upgrades to include supporting software at time identified by the Government. Installs will typically occur outside of normal business hours to minimize user impact.
b) Follow change control process identified by the Government.
c) Ensure code changes are correctly installed 100 percent of the time.
d) Perform post-maintenance window operational checkpoints to verify continued system operations within the required time threshold.
e) Provide on-site implementation support when it cannot be performed remotely.

f) Provide configuration control support for analysis, tracking, and reporting.
g) Establish test environments to validate application software changes and execute all testing to ensure program and data integrity prior to release to the production environment.
h) Ensure all required RM/CM processes are followed as documented in DLA guidance to include job aides, Standard Operating Procedures (SOPs), Audit Readiness and accounting practices, Information Assurance (IA) requirements, business rules, and all applicable government policies and regulations.

2.3.2.8 Documentation. The contractor shall write, develop, and maintain documentation to support application sustainment and all phases of the software lifecycle. All documentation deliverables should be delivered to the Government PM and Government Leads in an editable format. Documentation Deliverables to be developed by the contractor shall:

a) Meet the standards as defined by the Government PM and Government Leads.
b) Utilize documentation templates.
c) The contractor shall develop, update, and maintain Functional and Technical Requirements documentation which identifies the business requirements and permit requirements traceability.
d) The contractor shall develop, update, and maintain Functional and Technical Specifications documentation.
e) The contractor shall develop, update, and maintain process flow diagrams, business process models, system diagrams, data flow diagrams, and entity relationship diagrams. This includes documents to support the Department of Defense Architecture Framework (DoDAF).
f) The contractor shall develop, update, and maintain System Support Guides and Developer Reference manuals.
g) The contractor shall develop, update, and maintain system security and Information Assurance documentation, and Plans of Actions and Milestones (POAMs).
h) The contractor shall develop, update, and maintain Test Plans and testing materials which:
    i. Map to each requirement in the government approved functional specifications.
    ii. Include both positive and negative test conditions.
    iii. Address error handling and atypical system/data conditions.
    iv. Track results of testing and status of issues reported during testing.
i) The contractor shall prepare migration documents and installation instructions for migrating code to the production environment, and Back-Out Plans.
j) The contractor shall develop, update, and maintain job aides, how-to aides, knowledge articles, user guides, user assistance documents, Meeting Notes, and Release Notes.
k) The contractor shall develop problem analysis reports.
l) The contractor shall develop other documentation in support of business applications as identified by the Government PM and Government Leads.
m) Ensure all documentation adheres to DLA guidance to include job aides, Standard Operating Procedures (SOPs), Audit Readiness and accounting practices, Information Assurance (IA) requirements, business rules, and all applicable government policies and regulations.

2.3.2.9 Certification, Accreditation, and Audit Support. The contractor adhere to all required all applicable government policies, regulations, and supporting guidance. In support of security and audit requirements, the contractor shall:

a) Provide support required to obtain and maintain an Authority to Operate (ATO) and any other required security accreditations.
b) Provide support in answering auditor questions and requests for documentation.
c) Provide subject matter expertise in support of audits to include Federal Information Security Management Act (FISMA), Federal Financial Management Improvement Act (FFMIA), and Federal Information System Controls Audit Manual (FISCAM) compliance.
d) Provide subject matter expertise in support of system certification & accreditation and annual review (e.g. Risk Management Framework (RMF) assessment).

2.3.2.10 MS SQL Server Database Administration. The contractor shall provide database administration support to include working knowledge of Microsoft SQL Server database administration and Software Configuration Management, proficiency in Transact-SQL stored procedures, and SQL programming language. Experience in the usage of tools, and techniques required for monitoring the performance and sizing of databases. Proficiency in Data modeling and optimization of system layout to take the most advantage of I/O subsystem. Proficiency in SQL Server, Windows SQL Server Database Administration, ASP.NET. Working Knowledge of Windows Server Administration, HTML, JavaScript, Microsoft Visual Studio 2019 or later, and Software Configuration Management and Release Management. Working knowledge of Microsoft Azure DevOps 2022 and of the internal architecture of systems to include Information Assurance, Menu Construction, Report Scheduling, Data Element Dictionary Concepts, and Job Scheduling.

This work addresses, but is not limited to, the design, code, test, evaluation, implementation, and other support required for system maintenance. All technical programming and documentation delivered to the Government must be determined technically compliant and acceptable, and becomes the property of the Government. Tasks to be performed by the contractor shall include:

a) Analyze user-defined functional and technical system requirements with goal of developing solutions well suited for MS SQL software technologies.
b) Provide strategic planning for database technology implementation in the client/server environment.
c) Ensure production databases have satisfactory performance and operational characteristics (including data integrity and security).
d) Resolve scheduling, operational and change control problems and procedures.
e) Assist with application performance tuning.
f) Contact database vendors for technical support in implementing vendor-supplied software packages.
g) Resolve application software problems involving Operating Systems, Databases, and network and application software.
h) Code database descriptions and specify database identifiers of the database management system.
i) Create, update, maintain, and tune relational database structures.
j) Assist in site preparation; data conversion; database support; user support; and make page changes to existing documentation at the operational sites.
k) Establish test environments to validate application software changes and execute all testing to ensure program and data integrity prior to release to the production environment.
l) Provide technical support for the system architecture, Azure DevOps environment, database performance, and supporting infrastructure.
m) Develop and prepare briefings and documents related to technical specifications, training materials, operation and system user manuals, analysis reports, and other system related information.

n) Identify and resolve information assurance weaknesses and vulnerabilities.
o) Develop concepts and tools, and implements code changes for problem prevention and cost avoidance for increased efficiency.
p) Provide consultation, analysis, and recommendations on system migrations and upgrades.
q) Provide training as required.
r) Provide support to completion of other work covered in this task.

Deliverables:

- Test Cases and Results – the contractor will provide test cases and results as described above
- Functional and Technical Requirements and Specifications – the contractor will provide requirements and specifications as described above
- Systems Architecture, Data Flow, and Business Process Diagrams – the contractor will provide diagrams as described above
- System Support Guides & User Manuals – the contractor will provide guides and manuals as described above
- RMF and Audit Documentation – the contractor will provide RMF and audit documentation as described above

2.3.3 TASK 3 – Optional Transition Support (Reference IDIQ RFP SP4709-23-R-0001 Task Area 7, IUS#0003 – Operational Phase)

In the event the Contractor is **not** awarded the follow-on task order and to facilitate a timely and orderly transition out, the Optional CLIN for Transition Support will be exercised. The contractor shall follow the Transition Plan submitted and approved as a deliverable in the PWS Task 1. Exercising the Optional Transition CLIN shall be during a base or option period of performance and may be exercised by the government as follows:

> For a period of up to 60 days after the end of the contract, only if it does not exceed the maximum task order period of performance of 60 months.

2.4 TASK ORDER QUALITY ASSURANCE SURVEILLANCE PLAN (QASP)

In fulfillment of this effort, the Contractor shall provide the deliverables identified in this PWS. All deliverables shall be submitted to the Contracting Officer's Representative (COR) and Program Point of Contact for acceptance unless otherwise directed by the Government.

The COR has the responsibility to monitor the progress of the work of the Contractor personnel assigned to the tasks. Additionally, in the absence of other agreements negotiated with respect to time provided for government review, standards and actions shall be inspected and the contractor notified of the COR's findings within 5 workdays of normally scheduled review.

Unless otherwise specified, the Government will review draft deliverables and provide comments back to the contractor or approve or disapprove the deliverable(s). The contractor will have a maximum of ten (10) working days from the day comments are received to incorporate all changes and submit the final deliverable to the Government. All days identified are intended to be workdays unless otherwise specified.

The format for the individual deliverables will be determined through consultation between the COR and the contractor with recommendations from the Government Program Management Office (PMO). The QASP identifies the methods the government will use to measure performance of the service provider against the requirements and performance standards of the PWS. The QASP consists of guidelines for performance surveillance, evaluation, reporting, deficiency notification, and adjustments.

2.4.1 Performance Requirements Summary

The tasks the Contractor shall perform are defined in Section 2.3. All deliverables will be submitted to the COR and Government PMO for review and the PMO will make recommendations to the COR for acceptance unless otherwise agreed upon and the COR will advise the Contracting Officer who will direct the Contractor unless delegated back to the COR.

The Government will make objective and subjective assessments of the contractor's performance to determine whether contract performance is acceptable. The contractor is expected to perform all functions in a professional manner and prepare accurate and timely documentation. Progress will normally be tracked based on the milestone event when the contractor receives a specific task. Performance may vary with the complexity of the acquisition and/or technical document. It is expected that the documentation and procedures will comply with all major regulatory and process requirements and agency policies and procedures.

2.4.2 Method of Surveillance

The Government will ensure quality assurance and timeliness of all tasks via COR Inspections and Customer Feedback that is consolidated and submitted by the PMO. The Government will inspect and evaluate performance of each completed task or deliverable required in the task order PWS.

2.4.2.1 Inspection and Acceptance Criteria

Final inspection and acceptance of all work performed, reports and other deliverables will be performed at the place of delivery by the COR based on PMO recommendations. All deliverables will be inspected for content, completeness, accuracy, legibility and conformance to contract requirements by the COR based on PMO recommended input. At the discretion of the Government, inspection may include validation of information or software using automated tools and/or testing of the deliverables, as specified in the PWS.

If the Government finds that a draft or final deliverable contains spelling errors, grammatical errors, improper format, or otherwise does not conform to the requirements stated within the task order PWS, the document may be immediately rejected without further review and returned to the Contractor for correction and re-submission. If the Contractor requires additional Government guidance to produce an acceptable draft, the Contractor shall arrange a meeting with the COR/Government PMO.

The basis for acceptance shall be compliance with the requirements set forth in this task order PWS, the Contractor's proposal and other terms and conditions of the contract. Deliverable items rejected shall be corrected in accordance with the applicable clauses. Reports and document deliverables will be accepted when all discrepancies, errors or other deficiencies identified in writing by the COR have been corrected to the Government's satisfaction.

The Contractor shall provide electronic copies of deliverables in the format (ex. PDF, WORD, EXCEL) with the naming structure requested by the COR or identified in the PWS. Electronic copies shall be delivered via official DLA issued e-mail with attachment or other media specified by the COR. The electronic copies shall be compatible with the current DLA software products or other applications as appropriate and specified by the COR. The Contractor shall use best commercial practices for formatting deliverables under this contract. If the draft deliverable is adequate, the Government may accept the draft and provide comments for incorporation into the final version. All the Government's comments on deliverables must be incorporated in the succeeding version unless directed to correct in the current version.

2.4.3 General Acceptance Criteria

General quality measures, as set forth below, will be applied to each product received from the contractor under the resultant task order. These performance measurements are defined as:

Quality

- Accuracy – Work products shall be accurate in presentation, technical content, and adherence to accepted elements of style.
- Clarity – Work products shall be clear and concise. Any/all diagrams shall be easy to understand and be relevant to the supporting narrative.
- Consistency to Requirements – All work products must satisfy the requirements of this Performance Work Statement.
- Format – Work products shall be submitted in hard copy (where applicable) and in media mutually agreed upon prior to submission. Hard copy formats shall follow any specified Directives or Manuals. All text and diagrammatic files shall be editable by the Government.

Timeliness

- Work products shall be submitted on or before the due dates determined/specified between the task order COR and contractor or submitted in accordance with a later scheduled date determined by the Government.

2.4.3.1 Fixed Price Performance Based Service Contract Payments

The following procedures apply:

a) The contractor shall submit a monthly invoice in coordination with the monthly deliverables for 100% monthly amount for each PWS task. As part of the COR's monthly certification process, the COR will indicate on the invoice submitted the amounts authorized for payment for each task based on the performance measures described herein.

b) The determination for payment will be made in accordance with the procedures set forth below.

c) The COR or his/her designated representative will advise the contractor of what the Contracting Officer's (CO's) authorized amount of payment will be for each month. The contractor may direct questions on any withholding of payment to the Contracting Officer.

2.4.3.2 Performance Review and Payments

Below are the Performance Standards that will be used in evaluating performance in determining the amount of the payment owed to the contractor. These Performance Standards apply to the deliverables listed in Section 2.5 and to all performance under this task order PWS.

Overall Performance Ratings
Satisfactory – Performance meets or exceeds contractual requirements. The contractual performance reflects some minor problem(s) for which corrective actions taken by the contractor appear or were satisfactory. The COR recommends and the Contracting Officer will make a determination to pay the contractor 100% of the invoice amount.
Fair – Performance does not meet some contractual requirements. The contractual performance reflects a minor problem(s) for which the contractor has not yet identified corrective actions. The contractor's proposed actions appear only marginally effective or were not fully implemented. The minor performance problem(s) do not adversely impact the mission of the Agency. The COR recommends and the Contracting Officer will make a determination to pay the contractor 90% of the invoice amount.
Marginal – Performance does not meet some contractual requirements. The contractual performance reflects a serious problem(s) for which the contractor has not yet identified corrective actions. The contractor's proposed actions appear only marginally effective or were not fully implemented. The COR recommends and the Contracting Officer will make a determination to pay the contractor 80% of the invoice amount.
Unsatisfactory – Performance does not meet most contractual requirements, and recovery is not likely in a timely manner. The contractual performance contains a serious problem(s) for which the contractor's corrective actions appear or were ineffective. Payment will be withheld pending resolution of cure notice(s). Termination for default or cause may result.

Timeliness	
Satisfactory	Meets or exceeds contractual requirements in terms of timeliness of delivery. The timeliness of contractual performance reflects some minor problem(s) for which corrective actions taken by the contractor appear or were satisfactory.
Fair	Does not meet some contractual requirements in terms of timeliness of delivery. The timeliness of contractual performance reflects a minor timeliness problem(s) for

	which the contractor has not yet identified corrective actions. The contractor's proposed actions appear only marginally effective or were not fully implemented. The minor timeliness problem(s) do not adversely impact the mission of the Agency.
Marginal	Does not meet some contractual requirements in terms of timeliness of delivery. The timeliness of contractual performance reflects a serious problem(s) for which the contractor has not yet identified corrective actions. The contractor's proposed actions appear only marginally effective or were not fully implemented.
Unsatisfactory	Does not meet most contractual requirements in terms of timeliness of delivery and recovery is not likely in a timely manner. The timeliness of contractual performance contains a serious problem(s) for which the contractor's corrective actions appear or were ineffective.
Quality	
Satisfactory	Meets or exceeds contractual requirements in terms of quality of work performed. The quality of contractual performance reflects some minor problem(s) for which corrective actions taken by the contractor appear or were satisfactory.
Fair	Does not meet some contractual requirements in terms of quality of work performed. The quality of contractual performance reflects a minor quality problem(s) for which the contractor has not yet identified corrective actions. The contractor's proposed actions appear only marginally effective or were not fully implemented. The minor quality problem(s) do not adversely impact the mission of the Agency.
Marginal	Does not meet some contractual requirements in terms of quality. The quality of contractual performance reflects a serious problem(s) for which the contractor has not yet identified corrective actions. The contractor's proposed actions appear only marginally effective or were not fully implemented.
Unsatisfactory	Does not meet most contractual requirements in terms of quality and recovery is not likely in a timely manner. The quality of contractual performance contains a serious problem(s) for which the contractor's corrective actions appear or were ineffective.

Disincentives are applied for ratings of "Fair", "Marginal", and "Unsatisfactory" as follows:

Satisfactory = 100% payment
Fair = -10% disincentive
Marginal = -20% disincentive
Unsatisfactory = Payment will be withheld pending resolution of cure notice(s). Termination for default or cause may result.

2.5 DELIVERABLES

The Table below identifies the deliverables resulting from the tasks defined in this Task Order PWS. All completed deliverables shall be forwarded to the COR and PMO. The contractor shall use best commercial practices for formatting all deliverables under this task order and follow any instructions related to file format or naming convention designated by the COR. Electronic copies of all deliverables shall be sent to the COR and PMO via email in compatible formats. If deliverables exceed email size limitations coordination is required with the KO, COR, and PMO to reach an alternative solution prior to the due date.

TABLE 1: DELIVERABLES:

Table 1 identifies the Deliverables resulting from the tasks defined in Section 2.3

Deliverable	Deliverable Reference #	Quantity: No. of Reports/Data Calls	Deliverable Due Date
Monthly Progress Report (MPR)	2.3.1	12	No later than the 5th business day after each billing period and prior to invoicing.
Transition Plan	2.3.1	1	Within 60 calendar days of contract start date
In Process Review Briefings	2.3.1	Quarterly	End of each quarter
Test Cases and Results	2.3.2	12-24 projects per year estimated	Finalized test cases must be provided by the start of the System Test for each project. Final test results for each project must be provided one week prior to the scheduled delivery date of the project.
Functional and Technical Requirements and Specifications	2.3.2	12-24 projects per year estimated	Final updates to specifications related to a project will be provided one week prior to the scheduled delivery date of the project.

System Architecture, Data Flow, and Business Process Diagrams	2.3.2	12-24 projects per year estimated	Final updates to diagrams related to a project will be provided one week prior to the scheduled delivery date of the project.
System Support Guides & User Manuals	2.3.2	12-24 projects per year estimated	Final updates to guides and manuals related to a project will be provided one week prior to the scheduled delivery date of the project.
RMF and Audit Documentation	2.3.2	12-24 projects per year estimated	Final updates to RMF and audit documentation related to a project will be provided one week prior to the scheduled delivery date of the project.
Contractor Quality Control Plan	2.5.1	1	Within 10 business days of contract Award date
Other Miscellaneous Reports: CAC Turn-In Form (7036), Lost/Stolen CAC Police Report	2.6, 2.13.2	As required	As required
Non-Disclosure Agreements	2.6.5	100% COR Inspection	Submit with onboarding request
Monthly GFE Report (Type of Equipment, Asset, Tag, Serial #s)	2.6.6	12	No later than the 5th business day after each billing period and prior to invoicing.
Annual CTIP Checklist	2.6.7	Annually	Annually
Monthly CAC Report (Name, CAC EDIPI #, Issuance Date, Turn-In Date)	2.13.1, 2.13.2	12	No later than the 5th business day after each billing period and prior to invoicing.
Monthly 8570 / 8140 Report	2.14	12	No later than the 5th business day after each billing period and prior to invoicing.
Recuring Training and Certifications (OPSEC, 8570 Certificates, PM Certification, etc.)	2.14	Continuous	Prior to annual training and certification expiration.

TABLE 2: PERFORMANCE REQUIREMENTS:

Table 2 identifies the Performance Requirements resulting from the Deliverables in Table 1.

Deliverable Title	**Deliverable Reference #**	**Surveillance Method and Performance Standards**	**Surveillance Schedule (Daily, Weekly, Monthly, Quarterly)**	**Incentive**
Monthly Progress Report (MPR)	2.3.1	100% COR Inspection Performance Standards – see Section 2.4.3.2	Monthly	Timeliness and quality ratings to be assigned pursuant to section 2.4.3.2
Transition Plan	2.3.1	100% COR Inspection Performance Standards – see Section 2.4.3.2	As required	Timeliness and quality ratings to be assigned pursuant to section 2.4.3.2
In Process Review Briefings	2.3.1	100% COR Inspection Performance Standards – see Section 2.4.3.2	Quarterly	Timeliness and quality ratings to be assigned pursuant to section 2.4.3.2
Test Cases and Results	2.3.2	100% COR Inspection Performance Standards – see Section 2.4.3.2	As required	Timeliness and quality ratings to be assigned pursuant to section 2.4.3.2
Functional and Technical Requirements and Specifications	2.3.2	100% COR Inspection Performance Standards – see Section 2.4.3.2	As required	Timeliness and quality ratings to be assigned pursuant to section 2.4.3.2
System Architecture, Data Flow, and Business Process Diagrams	2.3.2	100% COR Inspection	As required	Timeliness and quality ratings to be assigned pursuant to section 2.4.3.2

		Performance Standards – see Section 2.4.3.2		
System Support Guides & User Manuals	2.3.2	100% COR Inspection Performance Standards – see Section 2.4.3.2	As required	Timeliness and quality ratings to be assigned pursuant to section 2.4.3.2
RMF and Audit Documentation	2.3.2	100% COR Inspection Performance Standards – see Section 2.4.3.2	As required	Timeliness and quality ratings to be assigned pursuant to section 2.4.3.2
Contractor Quality Control Plan	2.5.1	100% COR Inspection Performance Standards – see Section 2.4.3.2	As required	Timeliness and quality ratings to be assigned pursuant to section 2.4.3.2
Other Miscellaneous Reports: CAC Turn-In Form (7036), Lost/Stolen CAC Police Report	2.6, 2.13.2	100% COR Inspection Performance Standards – see Section 2.4.3.2	As required	Timeliness and quality ratings to be assigned pursuant to section 2.4.3.2
Non-Disclosure Agreements	2.6.5	100% COR Inspection Performance Standards – see Section 2.4.3.2	As required	Timeliness and quality ratings to be assigned pursuant to section 2.4.3.2
Monthly GFE Report (Type of Equipment, Asset, Tag, Serial #s)	2.6.6	100% COR Inspection Performance Standards – see Section 2.4.3.2	Monthly	Timeliness and quality ratings to be assigned pursuant to section 2.4.3.2
Annual CTIP Checklist	2.6.7	100% COR Inspection	Annually	Timeliness and quality ratings to be assigned

		Performance Standards – see Section 2.4.3.2		pursuant to section 2.4.3.2
Monthly CAC Report (Name, CAC EDIPI #, Issuance Date, Turn-In Date)	2.13.1, 2.13.2	100% COR Inspection Performance Standards – see Section 2.4.3.2	Monthly	Timeliness and quality ratings to be assigned pursuant to section 2.4.3.2
Monthly 8570 / 8140 Report	2.14	100% COR Inspection Performance Standards – see Section 2.4.3.2	Monthly	Timeliness and quality ratings to be assigned pursuant to section 2.4.3.2
Recuring Training and Certifications (OPSEC, 8570 Certificates, PM Certification, etc.)	2.14	100% COR Inspection Performance Standards – see Section 2.4.3.2	Continuous	Timeliness and quality ratings to be assigned pursuant to section 2.4.3.2

2.5.1 Contractor Quality Control Plan (QCP)

The contractor shall submit a QCP within ten (10) business days of contract start date to the Government Program Management Office (PMO) and Contracting Officer Representative (COR). This plan shall describe the contractor's methodology of compliance with the Deliverables and Performance Requirements Summary outlined above. The COR will notify the contractor of concurrence or required modifications to the QCP within ten (10) business days of receipt. The contractor shall make appropriate modifications within five (5) business days of the COR's notification and provide a revised QCP within five (5) business days.

2.6 PERFORMANCE REQUIREMENTS

- There are multiple contractors supporting DLA and other DOD activities who are working on similar or related activities. The contractor shall work with these contractors, as required, to satisfy DLA requirements, goals, and objectives as efficiently and effectively as possible. This may include, but is not limited to, sharing or coordinating information resulting from the work required by this PWS and/or working as a team to perform tasks in concert.

- The Contractor shall provide sufficient management to ensure that these tasks are performed efficiently, accurately, on time, and in compliance with the requirements of this document. Specifically, the Contractor shall designate a single manager to oversee these tasks and supervise staff assigned to these tasks. The Contractor shall ensure that a Monthly Progress Report

is submitted outlining the expenditures, billings, progress, status, and any problems/ issues encountered in the performance of these tasks.

- To ensure a smooth and orderly startup of this contract, it is essential that the key personnel specified in the Contractor's proposal be available on the effective start date of the contract.

- The contractor is expected to minimize employee turnover with respect to personnel performing under this Performance Work Statement. The Contractor shall not remove or replace any personnel designated as "key" personnel, without the prior written notification and approval by the Contracting Officer, although the Government recognizes that the contractor cannot compel any individual to remain under its employ. Written notification of the pending substitution shall be submitted to the Contracting Officer no later than ten (10) calendar days in advance of any proposed substitution and shall include a resume and justification of the proposed substitution(s) in sufficient detail to permit evaluation of the impact on contract performance. The Government will review the resume(s) and justification to ensure compliance with this clause and other requirements contained in this Performance Work Statement. Any replacement personnel proposed shall, at a minimum, be at least as qualified as the individual being replaced.

- The contactor shall work offsite to the maximum extent when permissible. In positions that require an onsite presence at DLA locations, or other Government locations, the contractor shall work within the duty hours of that location. The normal Government work hours range between 0600- and 1730-hours local time, Monday through Friday, exclusive Federal holidays. The Government may require the contractor to work longer hours on given days and/or weekends, depending on operational needs and contingencies, (i.e., installation and testing during non-peak hours).

- This contract is a “non-personal services contract” as defined in FAR 37.101. It is, therefore, understood and agreed that the contractor and/or the contractor’s employees: (1) shall perform the services specified herein as independent contractors, not as employees of the Government; (2) shall be responsible for their own management and administration of work required and bear sole responsibility for complying with any and all technical, schedule, or financial requirements or constraints attendant to the performance of this contract; (3) shall be free from supervision or control by any Government employee with respect to the manner or method of performance of the services specified; but (4) shall, pursuant to the Government’s right and obligation to inspect, accept, or reject the work, comply with such general direction of the Contracting Officer, or the duly authorized representative of the Contracting Officer as is necessary to ensure accomplishment of the contract requirements.

- The contractor shall return all government-furnished Common Access Cards (CACs), Access ID Badges, electronic key cards, and any other government issued passes, e.g., vehicle pass, to the COR or designated Government Point of Contact within 24 hours of the completion of the contract or upon termination of an individual’s employment, whichever comes first. Notification and coordination with the COR and Program POC are required. Completion and submission of the CAC Turn-In Receipt (DLA FORM 7036) is **REQUIRED**. Contractor personnel failing to return their CAC, Access ID Badges, and electronic key cards are subject to criminal charges under United States Code (USC) Title 18, Chapter 1, Section 499 and 701.

Security requirements apply to the prime Contractor and any Sub-Contractors the prime Contractor may employ during this contract, as well as any temporary employees that may be hired by the Contractor. The Government retains the right to request removal of Contractor personnel whose actions, while assigned to this contract, are determined by the Contracting Officer to conflict with the interests of the Government. If such removal occurs, the Contractor shall assign qualified personnel to any vacancy.

For contractors not meeting the CAC eligibility requirements, the COR or Government POC must contact the local security office for access control requirements and the local badging process.

Contractor employees must follow procedures for Installation Access (Non-DOD Cardholders/Visitors). Multi-day visits or access to Restricted Areas may require Personally Identifiable Information to allow for a local records check. Physical Security will run a criminal history check on Contractor employees as a condition of access to the installation. If entry is denied, the Contractor will be immediately notified. Physical Security may require updating or rechecking criminal history based on the duration of the contract. NOTE: The Vetting Official will deny access to any person who the Installation Commander has deemed unfit for unaccompanied access. Depending on the site, a government escort may be required.

The Contractor is responsible for employees and Sub-Contractors under their employment. Contractors will ensure that employees are familiar with and obey installation traffic, safety, and security regulations. Contractor employees, including Sub-Contractors, are required to wear the ID card conspicuously on their outer clothing, and above the waist always while working on a Government Facility. Personnel are subject to challenge and removal from the work area if the ID card is not worn. It is the Contracting Officer's or designee's responsibility to enforce this requirement. Failure to do so is just cause for ordering that work on a contract be stopped.

Expired, invalid, inaccurate, inoperative or terminated Pass or Access Control Badge shall be returned to the Contracting Officer or his designee for disposition. These cards are the property of the U.S. Government and shall not be retained by the cardholder upon expiration, replacement, or when the DoD affiliation of the employee has been terminated. The Contracting Officer or his designee shall deliver all returned Contractor badges to the Welcome Center within 5 business days. If the Pass or Access Control Badge is lost or stolen, a police report will be completed, and the Contracting Officer or designee will submit a new request. Compliance with this requirement is mandatory and certification thereof to the Contracting Officer is required prior to submitting final invoices. Failure to return badges will hold up Contractor's final payment.

- The Contractor will not employ any person whose employment will violate the requirements of DOD5500.7, Joint Ethics Regulation.

- All Contractor personnel shall observe local policy and procedures provided by the Office of Information Resources governing the use of computer equipment and passwords. Violations of local policy shall include password sharing, performing personal work, file access violations or browsing files outside the scope of the contract. The Contracting Officer shall adjudicate each case, and his/her decision shall be final.

- Where the Government has requested the removal of contractor personnel, the contractor will provide an appropriately trained replacement. Individuals removed from this task order are removed for the duration of the task order. The contractor will notify the COR within 24 hours when for reasons of personnel resignations, reassignments, terminations, or completion of portions of the task order, or contractor personnel no longer require access to Government computers.

- Contractor personnel **are only** authorized to attend meetings, town halls, events as they relate to the performance of the tasks outlined in the PWS. Contractor(s) should not be attending any meetings or events that are not outlined in the PWS.

- The Contractor shall provide knowledge transfer and associated documentation to designated J6 Information Operations personnel upon the functional implementation, maintenance, and sustainment of technology products and capabilities. Such knowledge transfer and documentation shall be sufficiently detailed to enable said personnel to effectively analyze, test, and maintain operational continuity. The Contractor warrants that the provided documentation is accurate, complete, and sufficient for its intended purpose.

2.6.1 Personnel Requirements

Resumes and required certifications shall be submitted for all Key Personnel who will be directly involved in the PWS Requirements and shall be skilled, experienced, professional, or technical personnel consistent with the task-specific requirements of this PWS and in accordance with the requirements of the basic IDIQ RFP: SP4709-23-R-0001, including all amendments and modifications, Attachment 1 - JETS Labor Category Descriptions.

> **Note: The Government reserves the right to review non-key resumes prior to onboarding. The Government also reserves the right to reject non-key personnel that do not meet the minimum requirements listed in section 2.6.2.**

2.6.2 Task Specific Personnel Minimum Requirements

The Government is providing estimates for the level of effort required to fulfill the requirements of the Performance Work Statement for each labor category below. This is only an estimate, and the contractor is required to provide a level of effort consistent with its proposed technical approach. Contractors are permitted to propose a level of effort below the government estimate if their proposed approach enables them to successfully perform the requirement at a lower level of effort. However, a Contractor proposing a level of effort below the government estimate will only be found to be technically acceptable if the Contractor is able to clearly demonstrate how their technical approach enables them to successfully perform at that level of effort. Base assurances and conclusory statements about a contractor's capability may not be deemed sufficient to support a level of effort below the government estimate.

The total range of hours for the personnel and required support is expected to be between ~~20,200~~18,400 and ~~22,600~~20,200 per year.

Key Personnel Labor Categories anticipated for this Task Order are:

TASK ORDER PROJECT MANAGER (OFF-SITE)	
Base Period	400-600 hours
Option Period 1	400-600 hours
Option Period 2	400-600 hours

Computer Software/Integration Analyst (Off-Site)	
Base Period	1,800 – 2,000 hours/year
Option Period 1	1,800 – 2,000 hours/year
Option Period 2	1,800 – 2,000 hours/year

Software Systems Engineer (Off-Site)	
Base Period	1,800 – 2,000 hours/year
Option Period 1	1,800 – 2,000 hours/year
Option Period 2	1,800 – 2,000 hours/year

Database Administrator - Senior (Off-Site)	
Base Period	3,600 – 4,000 hours/year
Option Period 1	3,600 – 4,000 hours/year
Option Period 2	3,600 – 4,000 hours/year

Non-Key Personnel Labor Categories anticipated for this Task Order are:

Computer Software/Integration Analyst (Off-Site)	
Base Period	3,600 – 4,000 hours/year
Option Period 1	3,600 – 4,000 hours/year
Option Period 2	~~3,600 – 4,000 hours/year~~ 1800-2000 hours/year

Software Systems Engineer (Off-Site))	
Base Period	1,800 – 2,000 hours/year
Option Period 1	1,800 – 2,000 hours/year
Option Period 2	1,800 – 2,000 hours/year

Application Programmer - Basic (Off-Site)	
Base Period	7,200 – 8,000 hours/year
Option Period 1	7,200 – 8,000 hours/year
Option Period 2	7,200 – 8,000 hours/year

~~**Key Personnel Labor Categories anticipated for this Task Order are:**~~

- ~~Task Order Project Manager (Off-Site) 400 – 600 hours/year~~

- ~~Computer Software/Integration Analyst (Off-Site) 1,800 – 2,000 hours/year~~
- ~~Software Systems Engineer (Off-Site) 1,800 – 2,000 hours/year~~
- ~~Database Administrator - Senior (Off-Site) 3,600 – 4,000 hours/year~~

~~**Non-Key Personnel Labor Categories anticipated for this Task Order are:**~~

- ~~Computer Software/Integration Analyst (Off-Site) 3,600 – 4,000 hours/year~~
- ~~Software Systems Engineer (Off-Site) 1,800 – 2,000 hours/year~~
- ~~Application Programmer - Basic (Off-Site) 7,200 – 8,000 hours/year~~

Note: The estimated annual hours listed for the labor categories are only approximations. Contractors are not restricted to this specific quantity in their proposals. It is the Contractor's responsibility to determine the appropriate labor mix to ensure successful performance.

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TASK ORDER PROJECT MANAGER

Serves as the project manager for large, complex task orders and shall assist the Program Manager in working with the Government Contracting Officer (KO), Contracting Officer Representative (COR), the task order-level Task Order Managers, Government management personnel and customer agency representatives. Under the guidance of the Program Manager, responsible for the overall management of the specific task order(s) and ensuring that the technical solutions and schedules in the task order are implemented in a timely manner.

Minimum Requirements:

- Must have Project Management certification (i.e., Project Management Professional (PMP) Certification, other equivalent nationally recognized certification.)
- Five (5) years project management or other relevant experience with progressively higher responsibility in the public and/or private sector in the IT and/or consulting fields.
- Five (5) years of leadership experience with progressively higher responsibility in the public and/or private sector in the IT and/or consulting fields.
- BS or BA or four (4) additional years of related experience.
- Must possess IT-II Non-Critical Sensitive security clearance or Tier 3 (T3) at time of proposal submission.

COMPUTER SOFTWARE/INTEGRATION ANALYST

Implements computer systems in a phased approach of requirements analysis and conceptual design, site survey, system design review, critical design review, installation, integration, and testing. Performs requirements analysis for a wide range of users in areas of office automation. Presents system designs for user approval at formal reviews. Performs configuration management, integrating software, interpreting software test results, and recommends solutions for unsatisfactory test results. Provides solutions to identified software problem reports.

Minimum Requirements:

- Five (5) years of relevant experience
- Experience in life-cycle support, including maintenance, administration, and management.
- Must possess IT-II Non-Critical Sensitive security clearance or Tier 3 (T3) at time of proposal submission.

SOFTWARE SYSTEMS ENGINEER

Intermediate: Under minimal direction, provides specialized expertise within multiple systems, software disciplines, as well as general knowledge of related disciplines, and applications implications. Responsible for performing in-depth analysis and technical support of systems software products, including complex problem resolution, design, development, testing, operational integration, and user support. Assists in the planning and conversion for new hardware/software products. Maintains currency, debugs and configures related software products. Provides operating systems planning and evaluation for performance analysis, capacity planning and hardware upgrades. Works from specifications to develop or modify operating systems applications. Assists with design, coding, benchmark testing, debugging and documentation of programs. Interfaces with other system support groups to resolve problems, setting standards and improving overall efficiency of the operating system. Prepares product documentation. Interfaces with customers to gather information on system requirements or problems.

Minimum Requirements:

- Eight (8) years of experience in a relevant field (e.g., Computer Science, Engineering, or Information Systems/Technology).
- Must possess IT-II Non-Critical Sensitive security clearance or Tier 3 (T3) at time of proposal submission.

APPLICATIONS PROGRAMMER

Basic Level: Provides experience and knowledge of sustainment life cycle management activities for programs and project operations. Participates in the design of software tools and subsystems to support reuse and domain analysis. Assists with the management, development, testing, and maintenance of computer programs to ensure that the application meets the needs of the users of the system. Assists systems analysts and/or designers in researching and documenting computer user requirements. Analyzes objectives and problems identified by analysts and/or designers. Translates the solutions provided by systems designers into detailed program specifications. Assists with preparation of documentation for other programmers, users of the system and other support services workers. Assists with program design activities including definition of data and error message arrangements. Assists with the modification and documentation of program code to correct errors or to enhance an application's capabilities. Assists with the testing of applications; and assists with the preparation of reports on the status, operation and maintenance of system software applications for use by the customer.

Minimum Requirements:

- Four (4) years of experience.
- Experience and knowledge of sustainment lifecycle management activities for programs and project operations.
- Must possess IT-II Non-Critical Sensitive security clearance or Tier 3 (T3) at time of proposal submission.

DATABASE ADMINISTRATOR (DBA) – Microsoft SQL Server

Senior: Provides all activities related to the administration of computerized databases. Projects long-range requirements for database administration and design in conjunction with other managers in the information systems function. Designs, creates, and maintains databases in a client/server environment. Conducts quality control and auditing of databases in a client/server environment to ensure accurate and appropriate use of data. Advises users on access to various client/server databases. Designs, implements, and maintains complex databases with respect to JCL, access methods, access time, device allocation, validation checks, organization, protection and security, documentation, and statistical methods. Applies knowledge and experience with database technologies, development methodologies, and front-end /back-end programming languages (e.g., SQL). Performs database programming and supports systems design. Includes maintenance of database dictionaries, overall monitoring of standards and procedures, file design and storage, and integration of systems through database design.

Minimum Requirements:

- Five (5) years of progressive experience of database query languages such as Oracle, PL SQL, SQL Server, and MS Access.
- Three (3) years of hands-on experience and expertise in Relational Database Management Systems. Experience also shall include capability to work on various operating systems and additional programming languages.
- DoD 8140 Certification or Education for 421 - Intermediate Database Administrator: Bachelors in Computer Science, Bachelors in Cybersecurity, Bachelors in Data Science, Bachelors in Information Systems, Bachelors in Information Technology, Bachelors in

Software Engineering, Cloud+, GSEC, Security+, SSCPDLA CE Cert IA Role/Function: DBA Admin

- ~~DoD Approved 8570 Baseline Certification: Category IAT Level II~~
- Computing Environment Certification: MC: Azure DBAA, MCSA: SQL 2012 DBA, MCSA: SQL 2016 DBA, MC: Azure SEA
- DLA CE Cert IA Role/Function: DBA Admin
- Must possess IT-I Critical Sensitive security clearance or Tier 5 (T5) at time of proposal submission.

2.6.3 Security

2.6.3.1 Access to Classified and Sensitive Information

The provisions listed below apply to the Prime Contractor and any subcontractors the Prime Contractor may employ during this contract.

This Project is categorized as **unclassified.**

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Contractors are required to comply with the 32 CFR Part 117 National Industrial Security Program Operating Manual (NISPOM) in the handling, protection, and safeguarding of classified information in their possession. Security requirements outside the scope of the NISPOM, if required, will be defined in the accompanying DD Form 254.

Personnel security investigations conducted for access to classified information will be conducted by the contractor company Facility Security Officer (FSO).

2.6.3.2 Sensitive Information Access

Contractor personnel, who perform work on sensitive IT systems or applications will be required to obtain and maintain the appropriate investigation and adjudication or suitability determination commensurate with the information contained within the application or system. The Contractor shall assure that individuals assigned to the positions of this task order, as determined by the Government, have obtained the proper eligibility as required by DODI 5200.2. Note that sensitive information access does not imply or convey access to classified information. Instructions for access to classified information, if necessary, will be included on DD Form 254 attached to this contract.

Tiered Investigation Standards					
Position	Low-Risk	Moderate Risk		High Risk	
		Confidential	Secret	Top Secret	SCI
Position Sensitivity	Non-Sensitive	Non-Critical Sensitive		Critical Sensitive	Special Sensitive
Investigation	Tier 1/NACI	Tier 3/NACLC/ANACI		Tier 5/SSBI	
Formerly Known As	IT-III or IT-3	IT-II or IT-2		IT-I or IT-1	

DLA requires that all Contractor personnel assigned to this project shall have attained a favorable outcome to the investigative requirement and be available to initiate work immediately upon delivery order award. Sensitive information access positions are designated based on access to government networks and IT systems and may exceed classified access requirements for this contract.

For sensitive information access positions, the required investigation shall be completed or interim access granted for individuals assigned to sensitive duties. The provisions outlined above apply to the prime contractor and any subcontractors the prime contractor may employ during this contract. In lieu of the correct investigations being completed when contract employees start, a waiver interim clearance may be submitted if no issues exist within the National Background Investigation Services (NBIS) Questionnaire (SF 85) for Non-Sensitive Positions or Questionnaire (SF 86) for National Security Positions. The contractor shall have the NBIS completed, with any other requirements (fingerprints taken and, if required, an OF306), and reviewed by DLA Intelligence before officially hiring any contractor employee into sensitive information access positions. Foreign Nationals are only eligible to perform non-sensitive duties and will not be investigated by the US Government.

DLA retains the right to request removal of Contractor personnel, regardless of prior clearance or adjudication status, whose actions, while assigned to this contract, clearly conflict with the interest of the Government. The reason for the removal shall be documented in writing by the Contracting Officer. When and if such removal occurs, the Contractor shall within a two to four-week timeframe, assign qualified personnel to vacancy(s) thus created regardless of whether the individual was in a key- or non-key personnel position. Current personnel security investigations conducted for access to classified information may satisfy investigation requirements for sensitive information access positions. Personnel security investigations for sensitive information access will be initiated by the DLA Personnel Security Office.

DD 254 will be housed within the NISP Contract Classification System (NCCS) through the life of the contract. The Contractor shall be registered within NCCS at time of award to gain access to the DD 254. It is incumbent upon the Contractor to ensure that the necessary security paperwork is submitted in sufficient time to enable everyone to be cleared prior to beginning work on this contract. If the NCCS is superseded by another System of Record, the same requirements apply.

2.6.4 Software

The Contractor shall observe all copyright agreements and shall be held liable for any infringement of copyrighted software licensing agreements and shall compensate the appropriate contractor for each instance of copyright violation. In the interest of protecting Government systems from computer viruses, the Contractor shall not use public domain software nor shall Contractor personnel download software from public bulletin boards. The Contractor shall use only COTS, Contractor-developed, or Government-furnished software in performance of this statement of work. The Contractor shall use the Microsoft Office suite of software for preparation of all documentation required in the delivery order. Should the introduction of a computer virus or malicious destruction of computer software, stored information, or hardware result from the use of public domain software or from software taken from a public bulletin board, the Contractor shall be required to repair the damage at no expense to the Government and without impact on delivery schedules or daily operation.

2.6.5 Data Use, Disclosure of Information and Handling of Sensitive Information (including Personally Identifiable Information)

The contractor will maintain, transmit, retain in strictest confidence, and prevent the unauthorized duplication, use, and disclosure of information. The contractor will provide information only to employees, Contractors, and subcontractors having a need to know such information in the performance of their duties for this project.

Information made available to the contractor by the Government regarding the performance or administration of this effort shall be used only for those purposes and shall not be used in any other way without the written agreement of the Contracting Officer. Contractor personnel **will be required** to sign a non-disclosure statement.

If proprietary information is provided to the contractor for use in performance or administration of this effort, the contractor may not use such information for any other purpose except with the written permission of the Contracting Officer. If the contractor is uncertain about the availability or proposed use of information provided for the performance or administration, then the contractor will consult with the COR regarding use of that information for other purposes.

The contractor agrees to assume responsibility for protecting the confidentiality of Government records which are not public information. Each employee of the contractor to whom information may be made available or disclosed shall be notified in writing by the contractor that such information may be disclosed only for a purpose and to the extent authorized herein.

Performance of this effort may require the contractor to access and use data and information proprietary to a government agency or Government Contractor which is of such nature that its dissemination or use, other than in performance of this effort, would be averse to the interests of the Government and/or others.

Contractor and contractor personnel shall not divulge, or release data or information developed or obtained in performance of this effort, until made public by the Government, except to authorized Government personnel or upon written approval of the Contracting Officer. The contractor will not use, disclose, or reproduce proprietary data that bears a restrictive legend, other than as required in the performance of this effort. Nothing herein shall preclude the use of any data independently acquired by the contractor without such limitations or prohibit an agreement at no cost to the Government between the contractor and the data owner that provides for greater rights to the contractor.

All data received, processed, evaluated, loaded, and/or created because of a task order shall remain the sole property of the Government unless specific exception is granted by the Contracting Officer.

2.6.6 Government Furnished Equipment/Government Furnished Information

The Government will provide computer hardware (GFE) and software, to contractor personnel working off-site. Any travel required to pick up or drop off GFE including CAC cards, Smart Card tokens, phones, hardware, software, etc., will be accomplished **at no additional cost** to the Government and is not directly reimbursable.

The Contractor is **REQUIRED** to track the issued GFE and submit a Monthly GFE Report to the COR and Program POC. The file will be provided to the COR prior to invoicing, in excel or similar agreed upon format and indexed as **YYYY.MM Monthly GFE Report**. The following information shall be included in the report: Name, Contract # and Task Order #, Onsite/Offsite per the Contract PWS, Issuing Site, Issuer Name and Email (for Tokens), Model #, Serial #, Asset Management #, Brand, and Quantity.

2.6.7 Combatting Trafficking in Persons (CTIP)

The COR will monitor the vendor compliance with Combatting Trafficking in Persons (CTIP) clause in accordance with DFARS PGI 222.1703(4), such that noncompliance with 52.222-50 is documented to the KO, utilizing and annually completing the CTIP checklist at: DoD CTIP website (https://ctip.defense.gov/).

2.7 TRAVEL

2.7.1 OFFICIAL TRAVEL

Travel is **not authorized** for this contract. If an emergency or unforeseen situation occurs where the government's tasks require support including travel, then the contractor may be required to travel by the government through a funded bilateral modification. The terms and conditions will be defined within the modification request.

2.7.2 UNOFFICIAL TRAVEL

Contractors who are not currently occupying a sensitive position are not required to report on their Unofficial Foreign Travel.

Contractor personnel who occupy a sensitive position and have not been granted access to classified information are required to report their unofficial foreign travel to DLA Intelligence & Security.

Additionally, contractor personnel who occupy a sensitive position and have been granted access to classified information are required to report their unofficial foreign travel to their Facility Security Officer (FSO) and **not** to DLA Intelligence & Security.

2.8 PLACE OF PERFORMANCE

The primary place of performance will be at the contractor's place of performance and/or Off-Site. Personnel shall be available to periodically support meetings at DLA Susquehanna (New Cumberland, PA) or other places of performance in the New Cumberland, PA area.

2.9 PERIOD OF PERFORMANCE

The Period of Performance (POP) shall be for a period of twelve (12) months with an anticipated start date of 4 January 2027 through 3 January 2028. There will be two 12-month option periods with an anticipated overall end date of 3 January 2030.

2.10 INVOICING AND PAYMENT SCHEDULE

The Contractor shall invoice no more frequently than MONTHLY. The invoice should include the specific line items performed on and accepted, and associated performance payments being invoiced for the month. Other invoice requirements are set forth in FAR 52.232-25 and DFARS 252.232-7003.

Contractors shall use the program **Wide Area WorkFlow-Receipt and Acceptance (WAWF-RA)** for Memo of Shipments (MS). WAWF-RA is a web-enabled application that allows contractors to create and send electronic MS receiving reports and/or invoices to government inspectors/acceptors for approval, thereby eliminating paper distribution of MS.

Invoices shall be submitted to **Acceptor DoDAAC SL4792** and email notification sent to the COR/Invoice Processor for acceptance.

2.10.1 Invoice Receipt

Within seven days of the receipt of the invoice, the COR will review for accuracy, verifying services, and supplies. Inaccurate invoices will be returned to the contractor within seven days for correction. It is recommended that invoices be coordinated ahead of time with the COR to ensure the deliverables have been accepted and invoices are ready to be received in WAWF.

2.11 POINT OF CONTACT

2.11.1 Contracting Officer Representative (COR)

TBD

2.12 CONTRACTOR ALTERNATE WORKSITE AUTHORIZATION

The contractor may be authorized to work at an alternate worksite pending prior authorization from either the COR or Contracting Officer. Each alternate worksite effort will be for a definitive period as agreed upon by both parties. Working at an alternate worksite shall only be authorized if the COR or Contracting Officer can adequately determine that the following conditions exist for the contractor:

a. There must be a predefined need, in keeping with the organization's mission, for the contractor to work at an alternate worksite.

b. The existing task order performance outcomes/metrics and delivery requirements remain in effect during performance at the alternate worksite

c. In case of inclement weather or Federal Government closure contractors may be authorized to perform tasks from their alternate work site.

d. If the contractor needs remote access to DLA or DOD networks, systems, applications, or databases, the contractor will establish remote access through the DLA approved remote access at https://www.dla.mil/RemoteVDI/ using Contractor Furnished Equipment (CFE) or Personal

Equipment (PE). The performance outcomes/metrics and delivery requirements remain in effect along with security and other requirements during performance at the alternate worksite.

2.12.1 CONTRACTOR CONTINUITY OF OPERATIONS PLAN (COOP) ALTERNATE WORKSITE AUTHORIZATION

The contractor may be authorized to perform at a Contractor alternate worksite, upon declaration of a COOP situation by the Director of the Defense Logistics Agency.

a. Alternate worksites may be authorized, upon declaration of a COOP situation by the DLA Director. An alternate worksite can be a contractor facility, personal residence, a telecommuting center, or a non-public place. A telecommuting center is a geographically convenient office setting established as an alternate to an employee's main office, residence, or non-public location.

b. Regardless of work location, all terms and conditions, including security requirements and labor laws, remain in effect.

c. Unless Mission Essential Functions are specifically detailed in the individual PWS requirements the services are not considered mission essential.

2.12.2 CONTRACTOR ALTERNATE WORKSITE REMOTE ACCESS REQUIREMENTS

a. The contractor will ensure that all CFE/PE (hardware and software) required for remote access to DLA networks, systems, applications, and databases meet the minimal configuration requirements set forth in the DLA Virtual Desktop Guide.

b. CFE/PE equipment is **strictly prohibited** from connecting to the DLA Virtual Private Network.

c. All liability for issues and troubleshooting CFE/PE is the responsibility of the equipment owner. The DLA Enterprise Help Desk will not provide support for issues with hardware/software not provided by DLA, including but not limited to CFE/PE hardware, non-DLA networks (e.g., home routers, public hot spots), and non-DLA software compatibility issues with Citrix.

d. DLA Enterprise Help Desk resources will support troubleshooting issues that are not related to the CFE/PE hardware/software, including but not limited to accounts, DLA applications, and server-side issues.

e. CFE/PE's running on Windows 10 or Windows 11 can be used to access the Virtual Desktop. Use the Virtual Desktop Guide for additional guidance.

f. It's recommended that the CFE/PE equipment minimally install:

1) CFE/PE utilize the applicable Security Technical Implementation Guides (STIGs) / checklists for system operating systems. Anti-virus, Anti-Spyware, and Host Based Intrusion Prevention software be installed, and the software be updated daily (i.e. software

revisions, virus definitions). That the Host Based Intrusion Prevention Software firewall be configured to permit traffic by exception only, and dropping all other traffic.

2) CFE/PE computers scanned with the appropriate vulnerability scanner at a minimum of every 15 days and remediate vulnerability findings. Ensure contractor employees possess a current Government issued Common Access Card (CAC) and install Government approved CAC readers and middleware.

g. The Government is not responsible for any costs associated with meeting the above requirements.

2.13 COMMON ACCESS CARDS (CAC)

2.13.1 CAC REPORTING

Every month, the contractor shall **validate** the contractor CAC Report, through recurring submissions to the COR for accuracy. The file will be provided to the COR prior to invoicing each month, in excel or similar agreed upon format and indexed as **YYYY.MM Monthly Contractor CAC Report.** The following information shall be included in the report: Contract and Task Order Number, Prime Contractor Company Name, Contract/Order Start Date, Contract/Order Completion Date, Contract/Order Termination (if prior to Contract/Order Completion Date), Contractor Employee Name, DLAH 1728 Receipt Date, CAC Issuance Date, CAC Expiration Date, Contractor Employee Termination Date (if applicable), CAC Turn-In Date, Comments/Issues - (e.g., notifications, lost or stolen CAC, CAC issued by another agency, etc.).

2.13.2 DEFENSE LOGISTICS AGENCY MANUAL (DLAM) 1000.13, Change 1 - ISSUANCE AND ACCOUNTABILITY OF COMMON ACCESS CARDS FOR DLA CONTRACTS

APPENDIX 1 TO ENCLOSURE 3: CONTRACTOR INSTRUCTIONS

Performance under this contract may require the contractor to obtain a Common Access Card (CAC). If CACs are issued under this contract, the contractor will complete and comply with the following steps to obtain, control, and turn-in Government-issued CACs, as well as establish procedures to always control and account for contractor CACs. This process is only for the issuance and accountability of CACs. Contractors may be required to provide additional forms and follow additional procedures for other forms of access and/or background/security checks depending on local site/installation requirements.
Common Access Card (CAC) Procedures

1. The contractor has each contractor employee requiring a CAC complete DLAH Form 1728 in accordance with Enclosure 3; 2a. Note: Contractors do not complete blocks 11, 14, 15.a. or 15.b.; these are completed by the COR.

2. The contractor hand carries the DLAH 1728 form(s) or sends via secure mail, or encrypted email to (NOTE: The contractor may forward these forms individually or as a group to):
   a. The Contracting Officer's Representative (COR) for the contract if a COR was designated.
   b. The Contracting Officer (KO) for the contract if no COR was designated.

3. Each contractor employee must verify their account information upon receipt of an email from the Government containing a username and password for the system of record, currently ~~Trusted Associate Sponsorship System (TASS)~~ **Mission Partner Identity, Credential, Access Management (MP ICAM)** system. The web link for ~~TASS~~ **MP ICAM** is included in the email.

4. Each contractor employee will receive an email via ~~TASS~~ **MP ICAM** when their account has been approved. The email will notify the employee to obtain a government-issued CAC from the nearest Real-Time Automated Personnel Identification System (RAPIDS) office. The email will also provide a link that identifies the locations of RAPIDS offices.

5. Each contractor employee will obtain their issued CAC from the RAPIDS office.

6. The contractor, within one business day of issuance, provides written notice via email to the COR (or the KO, if no COR was designated) for each contractor CAC issued identifying the contractor employee's name, the date of issuance, and the date of expiration of the CAC. This notification may be made individually to each contractor employee or together with a group of contractor employees. Note: This requirement is not applicable when the same person is performing both COR and ~~TA~~ **Mission Partner Affiliation Sponsor** roles.

7. The contractor always establishes procedures to control and account for Government-issued contractor CACs - to include the following:

a. Ensure contractor CACs issued for this contract are only used for the purpose of performing under this contract.
b. Ensure contractor CACs are secured in a manner that precludes unauthorized use and that recognizes the CAC is the property of the U.S. Government.
c. Ensure contractor employees do not abuse or place holes in their CACs.
d. Ensure contractor employees do not display their CACs in public.

8. If a contractor CAC is lost or stolen:

a. The contractor employee will immediately notify the contractor that the contractor CAC has been lost or stolen.
b. The contractor will immediately notify the COR (or the KO, if no COR was designated), detailing the circumstances regarding the lost or stolen contractor CAC, as follows:
    1) Face-to-face, followed within one business day by a written notice via email, or
    2) In writing, via email, or
    3) By telephone, followed within one business day by a written notice via email.

c. The contractor will report the lost or stolen CAC card to the local DLA Police/host installation police, who will provide the contractor with a police report. If there are no local DLA Police/host installation police, or no police report is provided, the contractor will provide information to the COR/KO, as applicable, detailing the circumstances of

how the CAC was lost or stolen. The COR/KO will provide a memorandum for the contractor employee to support the issuance of new CAC.

d. The contractor has the contractor employee bring the report/memorandum to the nearest RAPIDS office. If the CAC can be reissued within 24 hours, bring the report/memorandum to the nearest CAC office for reissue. If the CAC cannot be reissued in 24 hours, follow the steps for a new CAC, beginning at Step 1.

9. If the expiration date for a contractor CAC is before the completion of the contract and the contractor employee is to continue working under the contract and still requires a CAC, the contractor:

a. Notifies the COR as follows:
   1) Face-to-face, followed within one business day by a written notice via email, or
   2) In writing, via email, or
   3) By telephone, followed within one business day by a written notice via email.

b. No less than 10 business days before the current CAC's expiration date, completes and complies with the steps above beginning with Step 2 for the issuance of a new contractor CAC for the employee.
c. Brings the expiring CAC to the RAPIDS office for turn-in and receives new CAC.
d. Notify the COR once a new CAC has been issued.

10. The contractor/contractor employee turns in any found CACs immediately, via hand carry, to the nearest Federal law enforcement office.

11. The contractor immediately collects all contractor CAC(s) from the contractor employee(s) at:

a. Contract completion or termination
b. Termination/Reassignment of an employee (this includes any reason the employee is no longer working for the contractor under the contract or otherwise no longer requires a CAC)

12. For contract completion or termination – within one business day after collecting the contractor CAC(s), arranges for turn-in via one of the below methods:

a. The contractor:

   1) If the COR/KO is co-located or near enough that in-person transfer of CACs can be arranged, the contractor:
   2) Arranges to meet the COR (or the KO, if no COR was designated) to turn-in the collected contractor CAC(s).
   3) Hand-carries all collected contractor CACs for turn-in to meet the COR (or the KO, if no COR was designated).
   4) Completes and signs the Government-Issued Contractor CAC Turn-In Receipt with the COR (or the KO if no COR was designated). The contractor is provided with a copy of the receipt.

b. If in-person transfer of CAC cannot be arranged, the contractor:

1) Sends, via certified mail, the CACs to the COR/KO. The contractor includes in the package the Government-Issued Contractor CAC Turn-In Receipt, with signed acknowledgement of contractor turn-in.
2) Notifies COR/KO that CACs have been sent via certified mail.
3) Receives a completed copy of the receipt from the COR/KO once the COR/KO has received the CACs.

13. For termination/reassignment of an employee:

a. Immediately notify the COR (or the KO, if no COR was designated) that the employee is no longer working for the contractor under the contract or otherwise no longer requires a CAC, as follows:
1) Face-to-face, followed within one business day by a written notice via email, or
2) In writing, via email, or
3) By telephone, followed within one business day by a written notice via email.

b. Follows the turn-in procedures above for contract completion or termination, as applicable.

14. Contractor Reporting Requirements: Every month, validate the contractor CAC log with the COR for accuracy.

15. The above procedures have been established as a DLA security measure. Contractors are advised that failure to comply with any of the above requirements will be considered a violation of the terms and conditions of the contract and the Contracting Officer may take action to remedy such violations. Specifically, failure to safeguard, follow these procedures, including reporting requirements, or turn-in CACs within the established timeframes may result in the following actions, which are in addition to other actions the Contracting Officer may take under governing law and regulation and the terms and conditions of the contract:

a. Immediate work stoppage (issuance of a stop work order), not to be lifted until resolution of CAC issue
b. Disapproval of invoices and delay of payment
c. Withholding of final payment (in accordance with FAR 52.204-9)
d. Documentation of CAC Non-Compliance in the Contractor Performance Assessment Reporting System (CPARS)

2.14 DOD 8570.01-M/8140, INFORMATION ASSURANCE WORKFORCE IMPROVEMENT PROGRAM

The DOD 8570.01-M/8140, Information Assurance Workforce Improvement Program, requires training and certification for IA duties performed. All contract employees performing IA functions shall meet the requirements in accordance with DOD/DLA guidance. Additionally, all contract employees shall be certified in operating systems on any system on which System Administration duties are performed. Proof

of certification shall be provided before Privileged access is granted, at time of proposal/resume submission; this includes, but is not limited to, system administration access, network administration access, router/switch access, firewall access, and Intrusion Detection System access. All documentation required for security certification will be maintained by both the Contractor and the Government. All contract employees will have acquired the necessary certification requirements, by DOD 8570.01, throughout the entire period of performance of the contract requirements. These certification requirements are not based on position title; they are based on duties. Refer to 8570.01-M/8140 Approved Baseline Certifications and Computing Environment Certification Attachments.

DoD Manual 8140.03, Cyberspace Workforce Qualification and Management Program was signed February 15, 2023. It requires DoD Components to identify all positions designated as cyberspace workforce positions in accordance with DoDI 8140.02 and Volumes 1-4 of DoDI 1442.02 within 12 months. Positions in the resulting task order may be impacted by this transition from 8570 to 8140 and a contract modification will be issued when appropriate. Until that time, 8570 requirements as spelled out in the JETS IDIQ and this task order will be followed.

Contractor personnel identified on this contract shall have their required DoD 8570/8140 security and industry competency certifications **prior to starting work** and **maintain their certifications** throughout the life of this task order by completing and submitting monthly the Governments 8570/8140 Report. If a certification becomes obsolete during the life of the contract, the **Contractor shall be responsible for ensuring applicable personnel obtain an acceptable replacement certification prior to the IT product's end of life.** The report shall be submitted to the COR and Program POC that includes a list of applicable 8570/8140 personnel. The file will be provided to the COR prior to invoicing, in excel or similar agreed upon format, and indexed as **YYYY.MM Monthly 8570 or 8140 Report.** The following information shall be provided in the report: Name, IA Category, IA Level, Company, Contract Name/Description, COR, Contract # and Task Order #, Primary/Baseline IA Certification Held, Date of Primary/Baseline IA Certification, Date Primary/Baseline IA Certification Expires, Primary CE Certification Held, Date Primary CE Certification Received, Primary IA Certification Status (Current or Past Due), Primary CE Certification Status (Current or Past Due).

Section 3: Instructions to Contractors and Evaluation of Offers

3.1 OFFER SUBMISSION INSTRUCTIONS

Please submit all final offers to the PIEE Solicitation Module by the due date referenced below.

*** Please send an email to Irvin.Farmer2@dla.mil and once your final offer has been submitted to the PIEE Solicitation Module so they can confirm your offer was received at solicitation closing. No documentation is necessary to be sent, just a simple email will suffice for monitoring purposes. ***

You can access the PIEE Solicitation Module at the following link:
https://piee.eb.mil/

The solicitation will close on **November 9, at 5:00PM EST**.

WHILE THIS ACQUISITION IS NOT SUBJECT TO FAR 15, GENERALLY, THE REQUIREMENTS FOR SUBMISSION OF OFFERORSS CONTAINED IN FAR 52.215-1 ARE APPLICABLE.

The offer must include all data and information required by and in accordance with these submission instructions. The offer shall be prepared and submitted in form and content in accordance with the instructions. Offerors are on notice that a failure to submit all the required documentation in exactly the manner (timeliness and format) specified in the Task Order Solicitation may constitute a basis for the Government to reject an offer as non-compliant and therefore, unawardable, at the sole discretion of the Contracting Officer. Additionally, offerors must respond to all specified requirements of the solicitation with no additions or deletions. Non-conformance with the Task Order Solicitation requirements may render the offer non-responsive and the Offeror may be ineligible for award, at the sole discretion of the contracting officer.

The Offeror must submit the following documentation:

Cover Page (Company Name, Address, CAGE Code, UEI #, POC(s) Information)
Technical Approach
Attachment 1 – JETS 2.0 TO Personnel Summary & Resource Allocation
Attachment 2 – JETS 2.0 Vendor Pricing Sheet
Attachment 3 – JETS 2.0 Key Personnel Resume Template **(With signed "Letter of Commitment" for each proposed Key Personnel)**
Attachment 4 – JETS 2.0 Past Performance Template
Attachment 5 – JETS 2.0 Past Performance Questionnaire (Submitted from the Offeror's customer POC directly to DLA)
Attachment 6 – Signed and completed SF 1449 (with all fill-able clauses completed) and SF 30 (if issued). **Submit SF 1449 and all SF 30s (if issued) in a single document labeled as Attachment 6.**
Attachment 7 - Cybersecurity Maturity Model Certification (CMMC) Level 1 Certification
Attachment Z - VPAT

The Offeror may submit the following documentation; however, it is optional:
Pricing Narrative Document

When submitting documents within PIEE Solicitation Module, please name the documents the following ONLY due to character limitations in our Contract File Folder(s):
Cover Page
Technical Approach
Attachment 1
Attachment 2
Pricing Narrative
Attachment 3
Attachment 4
Attachment 5
Attachment 6
Attachment 7
Attachment Z

*** If a vendor does not submit a signed Letter of Commitment for ALL proposed Key Personnel in Attachment 3 with their proposal, their proposal WILL NOT be evaluated accordingly and deemed unacceptable. ***

*** If a vendor does not submit Attachment 7 with their proposal, their proposal WILL NOT be evaluated accordingly and deemed unacceptable. ***

Technical Approach: Technical Approach offers shall be no more than **10 single-sided pages** which does not include the cover page, definitions, acronyms, and table of contents. A standard text font of Times New Roman 12 and table/graphics font size Times New Roman or Arial 9 is required. **IMPORTANT: All pages that go beyond the page limit listed in this paragraph will neither be reviewed nor considered as part of the evaluation.**

Late Quotes will be handled in accordance with the requirement of FAR 15.208.

3.2 SUBMISSION OF QUESTIONS

Please submit any question(s) regarding the subject RFQ by **October 19, 2026 at 5:00PM EST to Irvin.Farmer2@dla.mil** to allow DLA adequate time to provide correct answers to the questions submitted and to prevent any delays in the closing date of the RFQ. Any technical questions, requests for clarification, or requests for data in connection with this RFQ must be submitted in writing to be answered. The contractor is strongly urged to follow-up the submission of any questions with a phone call to the Contracting Officer, **445-737-1044**, to ensure that questions have been received. Please use the attached JETS 2.0 Question Template to submit your question(s). Question(s) not submitted on the JETS 2.0 Question Template **WILL NOT** be considered or answered. A maximum of five (5) questions per vendor are allowed. Tab 2 of the JETS 2.0 Question Template contains answers to FAQs.

*** Please ensure the Contracting Officer, or Contract Specialist, confirms receipt of your submitted questions. If no confirmation receipt is confirmed within 48-hours of your submission, please reach out to both the Contracting Officer and Contract Specialist to make sure they were received successfully. If you do not get confirmation and you do not reach out within 48-hours, your questions will not be answered accordingly. ***

3.3 FAIR OPPORTUNITY

This acquisition is being conducted as a fair opportunity task order competition using the procedures at FAR 16.505(b). Offerors are instructed that, regardless of any language that may be used in this solicitation, DLA is NOT conducting this procurement under FAR Part 15. All eligible JETS 2.0 IDIQ Holders responding to this RFQ will be afforded a fair opportunity to submit an offer and have that offer fairly considered. The Government anticipates making task order award on initial offer. If the Contacting Officer deems negotiations are necessary, the Government may choose to negotiate with only the contractors that have a reasonable chance for task order award.

3.4 508 Compliance Requirements

In accordance with L29 Section 508 Requirements (OCT 2021), offerors shall comply with the Section 508 accessibility requirements. By submission of its offer, the offeror affirms that its Electronic Information Technology (EIT) supplies and services are accessible as outlined in the law, the standard, and FAR Subpart 39.2. Offerors shall complete Attachment Z - Voluntary Product Accessible Template (VPAT) Version 2.5 document in the solicitation. If applicable, offerors shall indicate where their Section 508 EIT compliance information is available for review (e.g. offeror's website or other location the contracting officer can access). The Contracting Officer may require a demonstration of Section 508 compliance prior to award. The Government reserves the right to waive minor informalities, non-compliances, and irregularities in offers without holding exchanges with Offerors.

3.5 EVALUATION OF OFFERS

BASIS FOR AWARD

This task order is:

Set-aside for 8(a) competition (Group B contractors) in accordance with FAR 19.108-3(b)(4)(ii).

Offers will be evaluated in accordance with Tradeoff evaluation procedures. Award of this task order will be made on a competitive basis, using "tradeoff" procedures between Level of Effort/Labor Mix, Key Personnel, Technical Approach, Past Performance, and Price. Factors of Level of Effort/Labor Mix, Key Personnel, and Technical Approach, are significantly more important than Past Performance. Past Performance is considered more important than Price.

Level of Effort/Labor Mix, as well as Key Personnel, will be rated on an Acceptable/Unacceptable basis. If an offer is deemed Unacceptable in Level of Effort/Labor Mix the government reserves the right to eliminate the offer from consideration without further evaluation of the offer.

Likewise, if the offer is deemed Unacceptable in Key Personnel, the Government reserves the right to eliminate the offer from consideration without further evaluation of the offer. The Government reserves the right to determine the rating for Key Personnel as Unacceptable if even one offered key personnel fails to meet the required qualifications and experience.

An offer deemed Acceptable in both Level of Effort/Labor Mix and Key Personnel will then be evaluated for Technical Approach. Offers deemed Acceptable or higher in Technical Approach will be further evaluated for Past Performance and Price.

In evaluating task order offers, evaluation factors other than Price, are considered significantly more important than Price. The Government may consider award to other than the lowest priced contractors or other than the highest technically rated contractors. The Government intends to make award on the basis of initial offers, without exchanges, but reserves the right to conduct exchanges, if determined necessary.

Instructions to Contractors:

The following factors are to be addressed in the offer:

Factor 1 - Level of Effort/Labor Mix:

Offerors shall complete the attached **JETS 2.0 TO Personnel Summary and Resource Allocation** Spreadsheet (Attachment 1). The Personnel Summary and Resource Allocation Spreadsheet shall include all personnel offered for the requirement. **In reference to Attachment 1, the Personnel Name column may be left blank for Non-Key Personnel Positions.** Offerors may offer more than one key personnel for each of the key personnel labor categories. Offers are required to submit copies of resumes and current certifications for all key personnel offered in response to this task order PWS, which will be evaluated as part of the Key Personnel subfactor. Offerors are permitted to propose a level of effort below the government estimate if their proposed approach enables them to successfully perform the requirement at a lower level of effort. However, an offeror proposing a level of effort below the government estimate will only be found to be Acceptable if the offeror is able to clearly demonstrate how their technical approach enables them to successfully perform at that level of effort. Base assurances and conclusory statements about an offeror's capability may not be deemed sufficient to support a level of effort below the government estimate.

PLEASE NOTE: JETS 2.0 TO Personnel Summary and Resource Allocation Spreadsheet (Attachment 1) has recently been updated. Column H - "Current Background Investigation Type" contains a drop-down menu of these 9 choices.

Factor 2 - Key Personnel

The offeror shall identify key personnel, as stated in section 2.6.1 of the PWS, and provide resumes for each by utilizing the template in Attachment 3 of the RFQ. The key personnel offered shall demonstrate they have recent and directly related experience and education in the areas specified in the PWS. If experience is not directly related but relevant, discuss relevance in customer, topic, dollar value, workload, duration, and scope and complexity to the PWS requirements.

The offeror's offer shall identify the requisite qualifications and experience that the key personnel possess, including the benefits and competencies that those individuals bring, to assure the successful

accomplishment of services. Each resume (i.e. Attachment 3) submitted in the offer should include experience and capabilities relevant to the requirements set forth in the PWS.

Offerors are required to submit Attachment 3 and current certifications for ALL personnel offered for each Key Personnel Labor Category in response to this task order PWS.

Offerors must demonstrate that proposed resources are available on day 1 to start work on awarded task order(s). For all Key Personnel, resumes submitted (Attachment 3 – JETS 2.0 Key Personnel Resume Template), shall include a signed Letter of Commitment from the proposed Key Personnel stating their commitment to continued or future employment with your proposed company should you receive the award.

Factor 3 - Technical Approach:

Describe in detail your approach to develop the specified deliverables and perform each tasking in the Performance Work Statement (PWS). The offeror must provide evidence demonstrating a clear understanding of the scope and complexity of the requirements set forth in the PWS. The approach offered must be well-defined and logical and include the methodologies and processes that can successfully meet DLA objectives and mitigate risk.

IMPORTANT: All pages that go beyond the page limit listed previously in this document above will neither be reviewed nor considered as part of the evaluation.

Factor 4 - Past Performance:

The Government will consider the offeror's past performance/experience under U.S. Government contracts or other contracts/projects within 3 years of the issuance date of this Task Order Solicitation. Any contracts/projects submitted in reference to past performance that are outside of the 3-year recency period will not be considered for evaluation. Offerors/Awardees shall submit at least one past performance example, but not more than two examples. Offerors may submit JETS task orders as past performance examples.

Note: In the case of an offeror without a record of relevant past performance or for whom information on past performance is not available, the offeror will not be evaluated favorably or unfavorably on past performance and will receive a Neutral rating.

For each past performance project, the offeror shall fill out Attachment 4 – "JETS 2.0 Past Performance Template" and return the document with its offer. **In addition, the offeror shall insert their company name under "Offeror" in Attachment 5 – "JETS 2.0 Past Performance Questionnaire". Once the Offeror's information is completed then send Attachment 5 – "JETS 2.0 Past Performance Questionnaire" to a customer POC that can rate the contractor's performance on the project, or provide the CPARS for the project. If submitting Past Performance Questionnaire as subcontractor, please make sure the submission provides the prime that it is being submitted for in the email submission. If the prime's name is not mentioned, the Government reserves the right to not evaluate**

the submission. Please note that a customer is a Government or Commercial entity that received the services. The offeror shall provide the POC's information as part of the offer and a statement that the questionnaire was provided to the POC. Past Performance Questionnaires must be submitted from the Offeror's customer POC directly to DLA at **Irvin.Farmer2@dla.mil**. The government may not consider Questionnaires received after the RFQ closing date and time. **As stated above, a CPARS may be provided as part of the offer, in lieu of a questionnaire being completed and submitted by a customer.**

Price:

Note: An offeror may submit a Pricing Narrative, to include all assumptions; however, this is optional.

The offeror shall complete the **JETS 2.0 Vendor Pricing Sheet (Attachment 2), to include the tab labeled "Sec B Schedule of Services" with this Attachment. Please submit with the quote. All pricing information shall be contained in JETS 2.0 Vendor Pricing Sheet and Schedule B of the RFQ only. Pricing shall not be included in any of the non-price sections.**

Evaluation for Award:

Non-Price Factors:

Factor 1 - Level of Effort/Labor Mix:

The offered labor mix will be evaluated for Acceptability to ensure that the Offeror possesses an understanding of the appropriate resources required to perform the required tasks detailed in the Performance Work Statement. The Level of Effort offered will be evaluated to ensure it is appropriate to fulfill the requirements set forth in the PWS. Offerors that propose a level of effort below the government estimate will be evaluated to determine whether the proposed approach enables it to successfully perform the requirement at a lower level of effort. An offeror proposing a level of effort below the government estimate will be found Unacceptable if the offeror does not clearly demonstrate how its technical approach enables it to successfully perform at that level of effort; base assurances and conclusory statements about an offeror's capability will not be deemed sufficient to support a level of effort below the government estimate.

Factor 2 - Key Personnel

The Government will evaluate the offeror's key personnel for Acceptability to ensure each offered individual possesses the requisite qualifications and experience, including the benefits and competencies that those individuals bring, to assure the successful accomplishment of the service. Each resume (Attachment 3) with any required certifications, and signed Letter of Commitment, submitted in the offer will be evaluated for experience and capabilities relevant to the requirements set forth in the PWS.

Factor 3 - Technical Approach

The Government will evaluate the offeror's technical approach in providing services and support as described in the PWS. The evaluation will assess the contractor's capability in supporting all tasks within

the PWS and the offeror's understanding of the scope and complexity of the work. The Government will evaluate the offered approach to ensure that it is well-defined and logical and that the methodologies and processes can successfully meet DLA objectives and mitigate risk.

Factor 4 - Past Performance

The Government will evaluate Recency and Relevancy of the offeror's past performance/experience.

Recency of Prior Contracts – The Government will evaluate the recency under U.S. Government contracts or other contracts within three (3) years from the issuance of this solicitation. Any contracts submitted in reference to past performance that are outside the 3-year recency period will not be considered for evaluation. In the case of an offeror without a record of recent and/or relevant past performance or for whom information on past performance is not available, the offeror will not be evaluated favorably or unfavorably on past performance and will receive a Neutral rating.

Relevancy of Prior Contracts - The Government will evaluate the relevancy of an offeror's prior projects to the current PWS requirements and will be evaluated based on the similarity to the service/support, the complexity, and dollar value. The Government will evaluate the offeror's demonstrated evidence of experience in performing contracts with a similar size, scope, and complexity (to include dollar value) to this task order requirement.

The offeror's history of success in completion of projects, history of producing high-quality reports and deliverables, and commitment to customer satisfaction and history of staying on schedule and within budget will be evaluated through information provided in the offeror's offer; through CPARS; and/or an independent contact from the offeror's prior projects. Degree of conformance to contractual requirements, responsiveness, and effectiveness in addressing issues, quality of customer service, and/or conformance to cost/price requirements or goals, will be
considered and combined with recency and relevancy for determination of the
overall confidence assessment rating.

Please note that the Government may pull past performance information from available Government systems, in order to perform a complete evaluation of the contractor, particularly when a contractor's project point of contact is not responsive to the questionnaire.

***If a offeror's past performance reference(s) is not responsive to inquiries, the Government will utilize available Government systems to obtain past performance information. If performance information is not available from some of an offeror's references, the Government will determine an overall rating from only the references in which performance information is available.**

Price: The offered task order pricing will be evaluated to determine it is in accordance with the IDIQ. The Government will analyze the Offeror's proposed price by adding all Firm Fixed Price CLINs to arrive at a total evaluated price. The Government will evaluate the Offeror's Cost/Price offer to determine if the total proposed price is fair and reasonable in accordance with FAR 15.404-1. The total evaluated price will be the price used in the Government's "best value" tradeoffs to select the awardee for this task order.

Option to Extend Services (FAR 52.217-8)

As part of the Price evaluation, the Government will evaluate the Option to Extend Services under FAR Clause 52.217-8 by adding one-half of the offeror's final option period's proposed Price to the offeror's total proposed Price. Thus, the offeror's total proposed Price for the purpose of the tradeoff analysis will include the base period, the option year periods, and one-half of the last option year to determine the Price basis. Offerors are required only to price the base and option periods. Offerors shall not submit a Price for the potential one-half year extension of services period.

Section 4: Additional Clauses

The following clauses are incorporated into this Task Order:

DFARS 252.232-7006 – Wide Area Workflow Payment Instructions (JAN 2023)

(a) *Definitions.* As used in this clause—

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003 , Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing*. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003 , Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access*. To access WAWF, the Contractor shall—

(1) Have a designated electronic business point of contact in the System for Award Management at https://www.sam.gov; and

(2) Be registered to use WAWF at https://wawf.eb.mil/ following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training*. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at https://wawf.eb.mil/

(e) *WAWF methods of document submission*. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions*. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type*. The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items—

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

N/A

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

Invoice 2-in-1

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing*. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	Data to be entered in WAWF
Pay Official DoDAAC	SL4701
Issue By DoDAAC	SP4709
Admin DoDAAC**	SP4709
Inspect By DoDAAC	SL4792

Ship To Code	SL4792
Ship From Code	
Mark For Code	
Service Approver (DoDAAC)	SL4792
Service Acceptor (DoDAAC)	SL4792
Accept at Other DoDAAC	
LPO DoDAAC	
DCAA Auditor DoDAAC	
Other DoDAAC(s)	

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report*. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

FAR 52.224-3 Privacy Training (JAN 2017)

(a) Definition. As used in this clause, "personally identifiable information" means information that can be used to distinguish or trace an individual's identity, either alone or when combined with other information that is linked or linkable to a specific individual. (See Office of Management and Budget (OMB) Circular A-130, Managing Federal Information as a Strategic Resource).

(b) The Contractor shall ensure that initial privacy training, and annual privacy training thereafter, is completed by contractor employees who-

(1) Have access to a system of records;

(2) Create, collect, use, process, store, maintain, disseminate, disclose, dispose, or otherwise handle personally identifiable information on behalf of an agency; or

(3) Design, develop, maintain, or operate a system of records (see also FAR subpart 24.3 and 39.105).

(c)

(1) "Privacy training shall address the key elements necessary for ensuring the safeguarding of personally identifiable information or a system of records. The training shall be role-based, provide foundational as well as more advanced levels of training, and have measures in place to test the knowledge level of users. At a minimum, the privacy training shall cover-

(i) The provisions of the Privacy Act of 1974 (5 U.S.C. 552a), including penalties for violations of the Act;

(ii) The appropriate handling and safeguarding of personally identifiable information;

(iii) The authorized and official use of a system of records or any other personally identifiable information;

(iv) The restriction on the use of unauthorized equipment to create, collect, use, process, store, maintain, disseminate, disclose, dispose or otherwise access personally identifiable information;

(v) The prohibition against the unauthorized use of a system of records or unauthorized disclosure, access, handling, or use of personally identifiable information; and

(vi) The procedures to be followed in the event of a suspected or confirmed breach of a system of records or the unauthorized disclosure, access, handling, or use of personally identifiable information (see OMB guidance for Preparing for and Responding to a Breach of Personally Identifiable Information).

(2) Completion of an agency-developed or agency-conducted training course shall be deemed to satisfy these elements.

(d) The Contractor shall maintain and, upon request, provide documentation of completion of privacy training to the Contracting Officer.

(e) The Contractor shall not allow any employee access to a system of records, or permit any employee to create, collect, use, process, store, maintain, disseminate, disclose, dispose or otherwise handle personally identifiable information, or to design, develop, maintain, or operate a system of records unless the employee has completed privacy training, as required by this clause.

(f) The substance of this clause, including this paragraph (f), shall be included in all subcontracts under this contract, when subcontractor employees will-

(1) Have access to a system of records;

(2) Create, collect, use, process, store, maintain, disseminate, disclose, dispose, or otherwise handle personally identifiable information; or

(3) Design, develop, maintain, or operate a system of records.

(End of clause)

L29 Section 508 Requirements (OCT 2021)

Offerors shall comply with the Section 508 accessibility requirements. By submission of its offer, the offeror affirms that its Electronic Information Technology (EIT) supplies and services are accessible as outlined in the law, the standard, and FAR Subpart 39.2. Offerors shall complete the current revision of the Voluntary Product Accessible Template (VPAT) Rev 508 at https://www.itic.org/policy/accessibility/vpat (copy website address into browser). If applicable, offerors shall indicate where their Section 508 EIT compliance information is available for review (e.g., offeror's website or other location the contracting officer can access). The contracting officer may require a demonstration of Section 508 compliance prior to award.

H11 Section 508 Requirements (OCT 2020)

Contractors shall comply with the Section 508 Accessibility requirements in this contract and the current revision of the Voluntary Product Accessible Template (VPAT) Rev 508 at https://www.itic.org/policy/accessibility/vpat (copy website address into browser) as stated in their offer, for the duration of contract performance.

H14 Contractor Personnel Security Requirements (DEC 2021)

(a) Work to be performed under this contract or task order may, in full or in part, be performed at the Defense Logistics Agency (DLA) Headquarters (HQ), DLA field activity office(s), or other Federallycontrolled facilities. Prior to beginning work on a contract, DLA requires all contractor personnel working on the Federally-controlled facility to have, at a minimum, an initiated National Agency Check with Written Inquiries (NACI) or NACI equivalent and favorable completion of a Federal Bureau of Investigation (FBI) fingerprint check.

(b) Additionally, in accordance with Department of Defense (DoD) Regulation 5200.2-R, Personnel Security Programs, and DLA Issuance 4314, Personnel Security Program, all DoD contractor personnel who have access to Federally-controlled information systems must be assigned to positions which are designated at one of three information technology (IT) levels, each requiring a certain level of investigation and clearance, as follows:

(1) IT-I for an IT position requiring a single scope background investigation (SSBI) or SSBI equivalent;

(2) IT-II for an IT position requiring a National Agency check with Law and Credit (NACLC) or NACLC equivalent; and

(3) IT-III for an IT position requiring a NACI or equivalent.

Note: IT levels will be designated according to the criteria in DoD 5200.2-R.

(c) Previously completed security investigations may be accepted by the Government in lieu of new investigations if determined by the DLA Intelligence Personnel Security Office to be essentially equivalent in scope to the contract requirements. The length of time elapsed since the previous investigation will also be considered in determining whether a new investigation is warranted. To assist the Government in making this determination, the contractor must provide the following information to the respective DLA Intelligence Personnel Security Office immediately upon receipt of the contract. This information must be provided for each contractor employee who will perform work on a Federallycontrolled facility and/or will require access to Federally-controlled information systems:

(1) Full name, with middle name, as applicable, with social security number;

(2) Citizenship status with date and place of birth;

(3) Proof of the individual's favorably adjudicated background investigation or NACI, consisting of identification of the type of investigation performed, date of the favorable adjudication, name of the agency that made the favorable adjudication, and name of the agency that performed the investigation;

(4) Company name, address, phone and fax numbers with email address;

(5) Location of on-site workstation or phone number if off-site (if known by the time of award); and

(6) Delivery order or contract number and expiration date; and name of the contracting officer.

(d) The contracting officer will ensure that the contractor is notified as soon as a determination is made by the assigned or cognizant DLA Intelligence Personnel Security Office regarding acceptance of the previous investigation and clearance level.

(1) If a new investigation is deemed necessary, the contractor and contracting officer will be notified by the respective DLA Personnel Security Office after appropriate checks in DoD databases have been made.

(2) If the contractor employee requires access to classified information and currently does not have the appropriate clearance level and/or an active security clearance, the DLA Intelligence Personnel Security Office will relay this information to the contractor and contracting officer for further action. Investigations for contractor employees requiring access to classified information must be initiated by the contractor Facility Security Officer (FSO).

(3) The contracting officer will ensure that the respective DLA Intelligence Personnel Security Office initiates investigations for contractor employees not requiring access to classified information (i.e., IT or unescorted entry).

(4) It is the contractor's responsibility to ensure that adequate information is provided and that each contractor employee completes the appropriate paperwork, as required either by the contracting officer or the DLA Intelligence Personnel Security Office, in order to begin the investigation process for the required clearance level.

(e) The contractor is responsible for ensuring that each contractor employee assigned to the position has the appropriate security clearance level.

(f) The contractor shall submit each request for IT access and investigation through the contracting officer to the assigned or cognizant DLA Intelligence Personnel Security Office. Requests shall include the following information and/or documentation:

(1) Standard Form (SF) 85, Questionnaire for Non-Sensitive Positions, or the SF 86, Questionnaire for National Security Positions (see note below);

(2) Proof of citizenship (i.e., an original or a certified copy of a birth certificate, passport, or naturalization certificate); and

(3) Form FD-258, Fingerprint Card (however, fingerprinting can be performed by the cognizant DLA Intelligence Personnel Security Office).

(Note to (f)(1) above: An investigation request is facilitated through use of the SF 85 or the SF 86. These forms with instructions as well as the Optional Form (OF) 306, Declaration for Federal Employment, which is required with submission of the SF85 or SF 86, are available at the Office of Personnel Management's (OPM) system called Electronic – Questionnaires for Investigations Processing (e-QIP). Hard copies of the SF85 and SF86 are available at OPM's web-site, www.opm.gov, but hard copies of the forms are not accepted.)

(g) Required documentation, listed above in paragraphs (f)(1) through (3), must be provided by the contractor as directed by the contracting officer to the cognizant DLA Intelligence Personnel Security Office at the time of fingerprinting or prior to the DLA Intelligence Personnel Security Office releasing the investigation to OPM.

(h) Upon completion of the NACI, NACLC, SSBI, or other sufficient, appropriate investigation, the results of the investigation will be forwarded by OPM to the appropriate adjudication facility for eligibility determination or the DLA Intelligence Personnel Security Office for review and determination regarding the applicant's suitability to occupy an unescorted entry position in performance of the DLA contract. Contractor personnel shall not commence work on this effort until the investigation has been favorably adjudicated or the contractor employee has been waived into the position pending completion of adjudication. The DLA Intelligence Personnel Security Office will ensure that results of investigations will be sent by OPM to the Department of Defense, Consolidated Adjudications Facility (DoDCAF) or DLA Intelligence Personnel Security Office.

(i) A waiver for IT level positions to allow assignment of an individual contractor employee to commence work prior to completion of the investigation may be granted in emergency situations when it is determined that a delay would be harmful to national security. A request for waiver will be considered only after the

Government is in receipt of the individual contractor employee's completed forms, the background investigation has been initiated, and favorable FBI fingerprint check has been conducted. The request for a waiver must be approved by the Commander/Director or Deputy Commander/Director of the site. The cognizant DLA Intelligence Personnel Security Office reserves the right to determine whether a waiver request will be forwarded for processing. The individual contractor employee for which the waiver is being requested may not be assigned to a position, that is, physically work at the Federally controlled facility and/or be granted access to Federally-controlled information systems, until the waiver has been approved.

(j) The requirements of this procurement note apply to the prime contractor and any subcontractors the prime contractor may employ during the course of this contract, as well as any temporary employees that may be hired by the contractor. The Government retains the right to request removal of contractor personnel, regardless of prior clearance or adjudication status whose actions, while assigned to this contract, who are determined by the contracting officer to conflict with the interests ofthe Government. If such removal occurs, the contractor shall assign qualified personnel, with the required investigation, to any vacancy.

(k) All contractor personnel who are granted access to Government and/or Federally-controlled information systems shall observe all local automated information system (AIS) security policies and procedures. Violations of local AIS security policy, such as password sharing, performing personal work, file access violations, or browsing files outside the scope of the contract, will result in removal of the contractor employee from Government property and referral to the contractor for appropriate disciplinary action. Actions taken by the contractor in response to a violation will be evaluated and will be reflected in the contractor's performance assessment for use in making future source selection decisions. In addition, based on the nature and extent of any violations of AIS security policy, the Government will consider whether it needs to pursue any other actions under the contract such as a possible termination.

(l) The contractor may also be required to obtain a Common Access Card (CAC) or Installation Access Badge for each contractor employee in accordance with procedures established by DLA. When a CAC is required, the contracting officer will ensure that the contractor follows the requirements of Homeland Security Presidential Directive 12 and any other CAC-related requirements in the contract. The contractor shall provide, on a monthly basis, a listing of all personnel working under the contract that have CACs.

(m) [See procurement note H16, Operations Security (OPSEC) For On-site Contractors, for required OPSEC training.] Contractor personnel must additionally receive operations security (OPSEC) and information security (INFOSEC) awareness training. The DLA annual OPSEC refresher training and DLA annual INFOSEC training will satisfy these requirements and are available through the DLA Intelligence Office.

(n) When a contractor employee who has been granted a clearance is removed from the contract, the contractor shall provide an appropriately trained substitute who has met or will meet the investigative requirements of this procurement note. The substitute may not begin work on the contract without written documentation, signed by the contracting officer, stating that the new contractor employee has met one of the criteria set forth in paragraphs (c), (d), or (i) of this procurement note (i.e., acceptance of a previously completed security investigation, satisfactory completion of a new investigation, or a waiver allowing work to begin pending completion of an investigation). Contractor individual employees removed from this contract as a result of a violation of local AIS security policy are removed for the duration of the contract.

(o) The following shall be completed for every employee of the Government contractor working on this contract upon contract expiration. Additionally, the contractor shall notify the contracting officer immediately in writing whenever a contractor employee working on this contract resigns, is reassigned, is terminated, or no longer requires admittance to the Federally-controlled facility or access to Federally controlled information systems. When the contractor employee departs, the contractor will relay departure information to the cognizant DLA Intelligence Personnel Security Office and the Trusted Agent (TA) that entered the individual into the Trusted Associated Sponsorship System (TASS), so appropriate databases can be updated. The contractor will ensure each departed employee has completed the DLA J6 Out-Processing Checklist, when applicable, for the necessary security briefing, has returned any Government furnished equipment, returned the DoD CAC and DLA (or equivalent Installation) badge, returned any DoD or DLA vehicle decal, and requested deletion of local area network account with a prepared Department of Defense (DD) Form 2875. The contractor will be responsible for any costs involved for failure to complete the out-processing, including recovery of Government property and investigation involved.

(p) These contractor security requirements do not excuse the contractor from meeting the delivery schedule/performance requirements set forth in the contract, or waive the delivery schedule/performance requirements in any way. The contractor shall meet the required delivery schedule/performance requirements unless the contracting officer grants a waiver or extension.

(q) The contractor shall not bill for personnel, who are not working on the contract while that contractor employee's clearance investigation is pending.

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H16 Operations Security (OPSEC) For On-site Contractors (DEC 2021)

(1) Contractors shall complete the following courses: (a) Center for the Development of Security Excellence Operations Security (OPSEC) Awareness; (b) Unauthorized Disclosure of Classified Information for DoD and Industry; (c) Insider Threat Awareness; and (d) Introduction to Information Security courses. These courses are located at Security Awareness Hub (https://securityawareness.dcsa.mil/opsec/index.htm).

(2) The courses identified at subparagraph (1) above are required for all contractors that perform work on-site at a DLA or DoD facility, or for contractors that perform work off-site and access a Federally-controlled information system.

(3) The contractor shall immediately direct its workforce who are performing services for the Government to take the training after contract award. The contractor shall provide evidence of this training to the contracting officer representative or the contracting officer no later than five business days after contract award or prior to accessing the installation or a Federally-controlled information system, whichever occurs first.

(4) Annual refresher training is required and consists of re-accomplishing all of the courses listed in subparagraph (1) above. The contractor shall keep certificates on record for inspection or submission as required by the Government at the Government's discretion.

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FAR 52.212-4 - Contract Terms and Conditions - Commercial Products and Commercial Services (NOV 2023)

(a) *Inspection/Acceptance*. The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post-acceptance rights-

(1) Within a reasonable time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(b) *Assignment*. The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (*e.g.,* use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(c) *Changes*. Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(d) *Disputes*. This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause at Federal Acquisition Regulation (FAR) 52.233-1, Disputes, which is incorporated herein by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(e) *Definitions*. The clause at FAR 52.202-1, Definitions, is incorporated herein by reference.

(f) *Excusable delays*. The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence such as, acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. The Contractor shall notify the Contracting Officer in writing as soon as it is reasonably possible after the commencement of any excusable delay, setting forth the full particulars in connection therewith, shall remedy such occurrence with all reasonable dispatch, and shall promptly give written notice to the Contracting Officer of the cessation of such occurrence.

(g) Invoice.

(1) The Contractor shall submit an original invoice and three copies (or electronic invoice, if authorized) to the address designated in the contract to receive invoices. An invoice must include-

(i) Name and address of the Contractor;

(ii) Invoice date and number;

(iii) Contract number, line item number and, if applicable, the order number;

(iv) Description, quantity, unit of measure, unit price and extended price of the items delivered;

(v) Shipping number and date of shipment, including the bill of lading number and weight of shipment if shipped on Government bill of lading;

(vi) Terms of any discount for prompt payment offered;

(vii) Name and address of official to whom payment is to be sent;

(viii) Name, title, and phone number of person to notify in event of defective invoice; and

(ix) Taxpayer Identification Number (TIN). The Contractor shall include its TIN on the invoice only if required elsewhere in this contract.

(x) Electronic funds transfer (EFT) banking information.

(A) The Contractor shall include EFT banking information on the invoice only if required elsewhere in this contract.

(B) If EFT banking information is not required to be on the invoice, in order for the invoice to be a proper invoice, the Contractor shall have submitted correct EFT banking information in accordance with the applicable solicitation provision, contract clause (*e.g.,* 52.232-33, Payment by Electronic Funds Transfer-System for Award Management, or 52.232-34, Payment by Electronic Funds Transfer-Other Than System for Award Management), or applicable agency procedures.

(C) EFT banking information is not required if the Government waived the requirement to pay by EFT.

(2) Invoices will be handled in accordance with the Prompt Payment Act (31 U.S.C. 3903) and Office of Management and Budget (OMB) prompt payment regulations at 5 CFR Part 1315.

(h) *Patent indemnity*. The Contractor shall indemnify the Government and its officers, employees and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) Payment.-

(1) *Items accepted*. Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) *Prompt payment*. The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR Part 1315.

(3) *Electronic Funds Transfer (EFT)*. If the Government makes payment by EFT, see 52.212-5(b) for the appropriate EFT clause.

(4) *Discount*. In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date which appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(5) *Overpayments*. If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall-

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the-

(A) Circumstances of the overpayment (*e.g.*, duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable; and

(D) Contractor point of contact.

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(6) *Interest*.

(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) *Final decisions*. The Contracting Officer will issue a final decision as required by 33.211 if–

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see 32.607-2).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a default termination.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on-

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures prescribed in FAR 32.608-2 in effect on the date of this contract.

(j) *Risk of loss*. Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon:

(1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or

(2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

(k) *Taxes*. The contract price includes all applicable Federal, State, and local taxes and duties.

(l) *Termination for the Government's convenience*. The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work hereunder and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(m) *Termination for cause*. The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(n) *Title*. Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(o) *Warranty*. The Contractor warrants and implies that the items delivered hereunder are merchantable and fit for use for the particular purpose described in this contract.

(p) *Limitation of liability*. Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) *Other compliances*. The Contractor shall comply with all applicable Federal, State and local laws, executive orders, rules and regulations applicable to its performance under this contract.

(r) *Compliance with laws unique to Government contracts.* The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 18 U.S.C. 431 relating to officials not to benefit; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 49 U.S.C. 40118, Fly American; and 41 U.S.C. chapter 21 relating to procurement integrity.

(s) *Order of precedence*. Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

(1) The schedule of supplies/services.

(2) The Assignments, Disputes, Payments, Invoice, Other Compliances, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;

(3) The clause at 52.212-5.

(4) Addenda to this solicitation or contract, including any license agreements for computer software.

(5) Solicitation provisions if this is a solicitation.

(6) Other paragraphs of this clause.

(7) The Standard Form 1449.

(8) Other documents, exhibits, and attachments.

(9) The specification.

(t) [Reserved]

(u) Unauthorized Obligations.

(1) Except as stated in paragraph (u)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an "I agree" click box or other comparable mechanism (e.g., "click-wrap" or "browse-wrap" agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (u)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(v) Incorporation by reference. The Contractor’s representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

Alternate I (NOV 2021). When a time-and-materials or labor-hour contract is contemplated, substitute the following paragraphs (a), (e), (i), (l), and (m) for those in the basic clause.

(a) *Inspection/Acceptance.* (1) The Government has the right to inspect and test all materials furnished and services performed under this contract, to the extent practicable at all places and times, including the period of performance, and in any event before acceptance. The Government may also inspect the plant or plants of the Contractor or any subcontractor engaged in contract performance. The Government will perform inspections and tests in a manner that will not unduly delay the work.

(2) If the Government performs inspection or tests on the premises of the Contractor or a subcontractor, the Contractor shall furnish and shall require subcontractors to furnish all reasonable facilities and assistance for the safe and convenient performance of these duties.

(3) Unless otherwise specified in the contract, the Government will accept or reject services and materials at the place of delivery as promptly as practicable after delivery, and they will be presumed accepted 60 days after the date of delivery, unless accepted earlier.

(4) At any time during contract performance, but not later than 6 months (or such other time as may be specified in the contract) after acceptance of the services or materials last delivered under this contract, the Government may require the Contractor to replace or correct services or materials that at time of delivery failed to meet contract requirements. Except as otherwise specified in paragraph (a)(6) of this clause, the cost of replacement or correction shall be determined under paragraph (i) of this clause, but the "hourly rate" for labor hours incurred in the replacement or correction shall be reduced to exclude that portion of the rate attributable to profit. Unless otherwise specified below, the portion of the "hourly rate" attributable to profit shall be 10 percent. The Contractor shall not tender for acceptance materials and services required to be replaced or corrected without disclosing the former requirement for replacement or correction, and, when required, shall disclose the corrective action taken. [*Insert portion of labor rate attributable to profit.*]

(5)(i) If the Contractor fails to proceed with reasonable promptness to perform required replacement or correction, and if the replacement or correction can be performed within the ceiling price (or the ceiling price as increased by the Government), the Government may-

(A) By contract or otherwise, perform the replacement or correction, charge to the Contractor any increased cost, or deduct such increased cost from any amounts paid or due under this contract; or

(B) Terminate this contract for cause.

(ii) Failure to agree to the amount of increased cost to be charged to the Contractor shall be a dispute under the Disputes clause of the contract.

(6) Notwithstanding paragraphs (a)(4) and (5) above, the Government may at any time require the Contractor to remedy by correction or replacement, without cost to the Government, any failure by the Contractor to comply with the requirements of this contract, if the failure is due to-

(i) Fraud, lack of good faith, or willful misconduct on the part of the Contractor's managerial personnel; or

(ii) The conduct of one or more of the Contractor's employees selected or retained by the Contractor after any of the Contractor's managerial personnel has reasonable grounds to believe that the employee is habitually careless or unqualified.

(7) This clause applies in the same manner and to the same extent to corrected or replacement materials or services as to materials and services originally delivered under this contract.

(8) The Contractor has no obligation or liability under this contract to correct or replace materials and services that at time of delivery do not meet contract requirements, except as provided in this clause or as may be otherwise specified in the contract.

(9) Unless otherwise specified in the contract, the Contractor's obligation to correct or replace Government-furnished property shall be governed by the clause pertaining to Government property.

(e) *Definitions.* (1) The clause at FAR 52.202-1, Definitions, is incorporated herein by reference. As used in this clause-

(i) "Direct materials" means those materials that enter directly into the end product, or that are used or consumed directly in connection with the furnishing of the end product or service.

(ii) "Hourly rate" means the rate(s) prescribed in the contract for payment for labor that meets the labor category qualifications of a labor category specified in the contract that are-

(A) Performed by the contractor;

(B) Performed by the subcontractors; or

(C) Transferred between divisions, subsidiaries, or affiliates of the contractor under a common control.

(iii) "Materials" means-

(A) Direct materials, including supplies transferred between divisions, subsidiaries, or affiliates of the contractor under a common control;

(B) Subcontracts for supplies and incidental services for which there is not a labor category specified in the contract;

(C) Other direct costs (*e.g.*, incidental services for which there is not a labor category specified in the contract, travel, computer usage charges, etc.);

(D) The following subcontracts for services which are specifically excluded from the hourly rate: [*Insert any subcontracts for services to be excluded from the hourly rates prescribed in the schedule.*]; and

(E) Indirect costs specifically provided for in this clause.

(iv) "Subcontract" means any contract, as defined in FAR subpart 2.1, entered into with a subcontractor to furnish supplies or services for performance of the prime contract or a subcontract including transfers between divisions, subsidiaries, or affiliates of a contractor or subcontractor. It includes, but is not limited to, purchase orders, and changes and modifications to purchase orders.

(i) *Payments.* (1) *Work performed.* The Government will pay the Contractor as follows upon the submission of commercial invoices approved by the Contracting Officer:

(i) *Hourly rate*.

(A) The amounts shall be computed by multiplying the appropriate hourly rates prescribed in the contract by the number of direct labor hours performed. Fractional parts of an hour shall be payable on a prorated basis.

(B) The rates shall be paid for all labor performed on the contract that meets the labor qualifications specified in the contract. Labor hours incurred to perform tasks for which labor qualifications were specified in the contract will not be paid to the extent the work is performed by individuals that do not meet the qualifications specified in the contract, unless specifically authorized by the Contracting Officer.

(C) Invoices may be submitted once each month (or at more frequent intervals, if approved by the Contracting Officer) to the Contracting Officer or the authorized representative.

(D) When requested by the Contracting Officer or the authorized representative, the Contractor shall substantiate invoices (including any subcontractor hours reimbursed at the hourly rate in the schedule) by evidence of actual payment, individual daily job timecards, records that verify the employees meet the qualifications for the labor categories specified in the contract, or other substantiation specified in the contract.

(E) Unless the Schedule prescribes otherwise, the hourly rates in the Schedule shall not be varied by virtue of the Contractor having performed work on an overtime basis.

(*1)* If no overtime rates are provided in the Schedule and the Contracting Officer approves overtime work in advance, overtime rates shall be negotiated.

(*2*) Failure to agree upon these overtime rates shall be treated as a dispute under the Disputes clause of this contract.

(*3*) If the Schedule provides rates for overtime, the premium portion of those rates will be reimbursable only to the extent the overtime is approved by the Contracting Officer.

(ii) *Materials*.

(A) If the Contractor furnishes materials that meet the definition of a commercial product at FAR 2.101, the price to be paid for such materials shall not exceed the Contractor's established catalog or market price, adjusted to reflect the-

(*1*) Quantities being acquired; and

(*2*) Any modifications necessary because of contract requirements.

(B) Except as provided for in paragraph (i)(1)(ii)(A) and (D)(2) of this clause, the Government will reimburse the Contractor the actual cost of materials (less any rebates, refunds, or discounts received by the contractor that are identifiable to the contract) provided the Contractor-

(1) Has made payments for materials in accordance with the terms and conditions of the agreement or invoice; or

(2) Makes these payments within 30 days of the submission of the Contractor's payment request to the Government and such payment is in accordance with the terms and conditions of the agreement or invoice.

(C) To the extent able, the Contractor shall-

(1) Obtain materials at the most advantageous prices available with due regard to securing prompt delivery of satisfactory materials; and

(2) Give credit to the Government for cash and trade discounts, rebates, scrap, commissions, and other amounts that are identifiable to the contract.

(D) *Other Costs*. Unless listed below, other direct and indirect costs will not be reimbursed.

(1) *Other Direct Costs*. The Government will reimburse the Contractor on the basis of actual cost for the following, provided such costs comply with the requirements in paragraph (i)(1)(ii)(B) of this clause:*[Insert each element of other direct costs (e.g., travel, computer usage charges, etc. Insert "None" if no reimbursement for other direct costs will be provided. If this is an indefinite delivery contract, the Contracting Officer may insert "Each order must list separately the elements of other direct charge(s) for that order or, if no reimbursement for other direct costs will be provided, insert 'None'."]*

*(*2) *Indirect Costs (Material Handling, Subcontract Administration, etc.)*. The Government will reimburse the Contractor for indirect costs on a pro-rata basis over the period of contract performance at the following fixed price:*[Insert a fixed amount for the indirect costs and payment schedule. Insert "$0" if no fixed price reimbursement for indirect costs will be provided. (If this is an indefinite delivery contract,*

the Contracting Officer may insert "Each order must list separately the fixed amount for the indirect costs and payment schedule or, if no reimbursement for indirect costs, insert 'None')."]

(2) *Total cost*. It is estimated that the total cost to the Government for the performance of this contract shall not exceed the ceiling price set forth in the Schedule and the Contractor agrees to use its best efforts to perform the work specified in the Schedule and all obligations under this contract within such ceiling price. If at any time the Contractor has reason to believe that the hourly rate payments and material costs that will accrue in performing this contract in the next succeeding 30 days, if added to all other payments and costs previously accrued, will exceed 85 percent of the ceiling price in the Schedule, the Contractor shall notify the Contracting Officer giving a revised estimate of the total price to the Government for performing this contract with supporting reasons and documentation. If at any time during the performance of this contract, the Contractor has reason to believe that the total price to the Government for performing this contract will be substantially greater or less than the then stated ceiling price, the Contractor shall so notify the Contracting Officer, giving a revised estimate of the total price for performing this contract, with supporting reasons and documentation. If at any time during performance of this contract, the Government has reason to believe that the work to be required in performing this contract will be substantially greater or less than the stated ceiling price, the Contracting Officer will so advise the Contractor, giving the then revised estimate of the total amount of effort to be required under the contract.

(3) *Ceiling price*. The Government will not be obligated to pay the Contractor any amount in excess of the ceiling price in the Schedule, and the Contractor shall not be obligated to continue performance if to do so would exceed the ceiling price set forth in the Schedule, unless and until the Contracting Officer notifies the Contractor in writing that the ceiling price has been increased and specifies in the notice a revised ceiling that shall constitute the ceiling price for performance under this contract. When and to the extent that the ceiling price set forth in the Schedule has been increased, any hours expended and material costs incurred by the Contractor in excess of the ceiling price before the increase shall be allowable to the same extent as if the hours expended and material costs had been incurred after the increase in the ceiling price.

(4) *Access to records*. At any time before final payment under this contract, the Contracting Officer (or authorized representative) will have access to the following (access shall be limited to the listing below unless otherwise agreed to by the Contractor and the Contracting Officer):

(i) Records that verify that the employees whose time has been included in any invoice meet the qualifications for the labor categories specified in the contract;

(ii) For labor hours (including any subcontractor hours reimbursed at the hourly rate in the schedule), when timecards are required as substantiation for payment-

(A) The original timecards (paper-based or electronic);

(B) The Contractor's timekeeping procedures;

(C) Contractor records that show the distribution of labor between jobs or contracts; and

(D) Employees whose time has been included in any invoice for the purpose of verifying that these employees have worked the hours shown on the invoices.

(iii) For material and subcontract costs that are reimbursed on the basis of actual cost-

(A) Any invoices or subcontract agreements substantiating material costs; and

(B) Any documents supporting payment of those invoices.

(5) *Overpayments/Underpayments.* Each payment previously made shall be subject to reduction to the extent of amounts, on preceding invoices, that are found by the Contracting Officer not to have been properly payable and shall also be subject to reduction for overpayments or to increase for underpayments. The Contractor shall promptly pay any such reduction within 30 days unless the parties agree otherwise. The Government within 30 days will pay any such increases, unless the parties agree otherwise. The Contractor's payment will be made by check. If the Contractor becomes aware of a duplicate invoice payment or that the Government has otherwise overpaid on an invoice payment, the Contractor shall-

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the-

(A) Circumstances of the overpayment (*e.g.*, duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable; and

(D) Contractor point of contact.

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(6)(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury, as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, and then at the rate applicable for each six month period as established by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) *Final Decisions*. The Contracting Officer will issue a final decision as required by 33.211 if-

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt in a timely manner;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see FAR 32.607-2).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a default termination.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on-

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures prescribed in FAR 32.608-2 in effect on the date of this contract.

(viii) Upon receipt and approval of the invoice designated by the Contractor as the "completion invoice" and supporting documentation, and upon compliance by the Contractor with all terms of this contract, any outstanding balances will be paid within 30 days unless the parties agree otherwise. The completion invoice, and supporting documentation, shall be submitted by the Contractor as promptly as practicable following completion of the work under this contract, but in no event later than 1 year (or such longer period as the Contracting Officer may approve in writing) from the date of completion.

(7) *Release of claims*. The Contractor, and each assignee under an assignment entered into under this contract and in effect at the time of final payment under this contract, shall execute and deliver, at the time of and as a condition precedent to final payment under this contract, a release discharging the Government, its officers, agents, and employees of and from all liabilities, obligations, and claims arising out of or under this contract, subject only to the following exceptions.

(i) Specified claims in stated amounts, or in estimated amounts if the amounts are not susceptible to exact statement by the Contractor.

(ii) Claims, together with reasonable incidental expenses, based upon the liabilities of the Contractor to third parties arising out of performing this contract, that are not known to the Contractor on the date of the execution of the release, and of which the Contractor gives notice in writing to the Contracting Officer not more than 6 years after the date of the release or the date of any notice to the Contractor that the Government is prepared to make final payment, whichever is earlier.

(iii) Claims for reimbursement of costs (other than expenses of the Contractor by reason of its indemnification of the Government against patent liability), including reasonable incidental expenses, incurred by the Contractor under the terms of this contract relating to patents.

(8) *Prompt payment*. The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR part 1315.

(9) *Electronic Funds Transfer (EFT)*. If the Government makes payment by EFT, see 52.212-5(b) for the appropriate EFT clause.

(10) *Discount*. In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(l) Termination for the Government's convenience. The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work hereunder and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid an amount for direct labor hours (as defined in the Schedule of the contract) determined by multiplying the number of direct labor hours expended before the effective date of termination by the hourly rate(s) in the contract, less any hourly rate payments already made to the Contractor plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system that have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred that reasonably could have been avoided.

(m) Termination for cause. The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

In accordance with FAR 52.212-4 Alternate I (Nov 2021) (i)(ii)D(1)(2).

(1) ***Other Direct Costs***. The Government will reimburse the Contractor on the basis of actual cost for the following, provided such costs comply with the requirements in paragraph (i)(1)(ii)(B) of this clause:

travel, unknown costs associated with in-theater housing, visa and work permits for forward deployed resources, DBA insurance, and software licensing costs. Each invoice must separately identify the elements of other direct charges(s) for reimbursement.

*** ALL TRAVEL AND ODC CLIN(s) WILL BE FIRM FIXED-PRICE (FFP). THESE FFP CLIN(s) WILL BE BASED OFF OF TRAVEL ESTIMATES IN THE PWS. ***

(2) ***Indirect Costs (Material Handling, Subcontract Administration, etc.).*** The Government will reimburse the Contractor for indirect costs on a pro-rata basis over the period of contract performance at the following fixed price: $0

SBA Reference No. 0303-23-041723-01 *** ONLY INCUDE ON 8(a) TO Awards**

FAR 52.217-8 - Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 3 days [insert the period of time within which the Contracting Officer may exercise the option].

(End of Clause)

FAR 52.217-9 - Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 1 day*;* provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 3 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 60 months.

(End of Clause)

FAR 52.219-14 - LIMITATIONS ON SUBCONTRACTING (FEB 2023) (DEVIATION 2021-O0008)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) *Definition*. *Similarly situated entity,* as used in this clause, means a first-tier subcontractor, including an independent contractor, that—

(1) Has the same small business program status as that which qualified the prime contractor for the award (*e.g.,* for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) *Applicability*. This clause applies only to—

(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(3) Contracts that have been awarded on a sole-source basis in accordance with subparts 19.8, 19.13, 19.14, and 19.15;

(4) Orders expected to exceed the simplified acquisition threshold and that are—

(i) Set aside for small business concerns under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or

(ii) Issued directly to small business concerns under multiple-award contracts as described in 19.504(c)(1)(ii);

(5) Orders, regardless of dollar value, that are—

(i) Set aside in accordance with subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or

(ii) Issued directly to concerns that qualify for the programs described in subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 19.504(c)(1)(ii); and

(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

(d) *Independent contractors.* An independent contractor shall be considered a subcontractor.

(e) *Limitations on subcontracting*. By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for—

(1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding certain other direct costs and certain work performed outside the United States (see paragraph (e)(1)(i)), to subcontractors that

are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract. The following services may be excluded from the 50 percent limitation:

(i) Other direct costs, to the extent they are not the principal purpose of the acquisition and small business concerns do not provide the service. Examples include airline travel, work performed by a transportation or disposal entity under a contract assigned the environmental remediation NAICS code 562910), cloud computing services, or mass media purchases.

(ii) Work performed outside the United States on awards made pursuant to the Foreign Assistance Act of 1961, or work performed outside the United States required to be performed by a local contractor.

(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;

(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or

(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause–

[*Contracting Officer check as appropriate*.]

__ By the end of the base term of the contract and then by the end of each subsequent option period; or

__ By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protégé and its mentor approved by the Small Business Administration, the small business protégé shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protégé in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

DFARS 252.219-7010 - Notification of Competition Limited to Eligible 8(a) Concerns - Partnership Agreement (OCT 2019)

(a) Offers are solicited only from small business concerns expressly certified by the Small Business Administration (SBA) for participation in SBA's 8(a) Program and which meet the following criteria at the time of submission of offer:

(1) The Offeror is in conformance with the 8(a) support limitation set forth in its approved business plan.

(2) The Offeror is in conformance with the Business Activity Targets set forth in its approved business plan or any remedial action directed by SBA.

(3) If the competition is to be limited to 8(a) concerns within one or more specific SBA regions or districts, then the offeror's approved business plan is on the file and serviced by ____. *[Contracting Officer completes by inserting the appropriate SBA District and/or Regional Office(s) as identified by SBA.]*

(b) By submission of its offer, the Offeror represents that it meets all of the criteria set forth in paragraph (a) of this clause.

(c) Any award resulting from this solicitation will be made directly by the Contracting Officer to the successful 8(a) offeror selected through the evaluation criteria set forth in this solicitation.

(d)

(1) Unless SBA has waived the requirements of paragraphs (d)(1)(i) through (iii) and (d)(2) of this clause in accordance with 13 CFR 121.1204, a small business concern that provides an end item it did not manufacture, process, or produce, shall -

(i) Provide an end item that a small business has manufactured, processed, or produced in the United States or its outlying areas; for kit assemblers, see paragraph (d)(2) of this clause instead;

(ii) Be primarily engaged in the retail or wholesale trade and normally sell the type of item being supplied; and

(iii) Take ownership or possession of the item(s) with its personnel, equipment, or facilities in a manner consistent with industry practice; for example, providing storage, transportation, or delivery.

(2) When the end item being acquired is a kit of supplies, at least 50 percent of the total cost of the components of the kit shall be manufactured, processed, or produced by small businesses in the United States or its outlying areas.

(3) The requirements of paragraphs (d)(1)(i) through (iii) and (d)(2) of this clause do not apply to construction or service contracts.

(e) The ____ *[insert name of SBA's contractor]* will notify the ____ *[insert name of contracting agency]* Contracting Officer in writing immediately upon entering an agreement (either oral or written) to transfer all or part of its stock or other ownership interest to any other party.

(End of clause)

Organizational Conflict of Interest

Offerors are directed to reference the OCI language included in Section H.4 of their respective JETS 2.0 IDIQ contracts for further information regarding Notice of Potential OCIs, Disclosure of OCI after Contract Award, and Limitation on Future Contracting. Additionally, please reference Section H.4.a of the IDIQ contract which cites to the limitations in FAR 9.505-1 based on providing systems development and engineering and technical directions. It is the contractor's responsibility to identify any potential OCIs for future task order requirements and to provide a mitigation plan if a perceived or actual OCI exists. The Contracting Officer will make a determination regarding the potential or actual OCI prior to award of the task order.

DFARS 245.102 - Policy

(5) *Reporting loss of Government property.* It is DoD policy that all Government property be reported in the GFP module or Wide Area Work Flow module of the Procurement Integrated Enterprise Environment (PIEE) as required by the clause at 252.245-7005, Management and Reporting of Government Property.

DFARS 252.245-7003 - CONTRACTOR PROPERTY MANAGEMENT SYSTEM ADMINISTRATION (APR 2012)

(a) *Definitions.* As used in this clause—

"Acceptable property management system" means a property system that complies with the system criteria in paragraph (c) of this clause.

"Property management system" means the Contractor's system or systems for managing and controlling Government property.

"Significant deficiency" means a shortcoming in the system that materially affects the ability of officials of the Department of Defense to rely upon information produced by the system that is needed for management purposes.

(b) *General.* The Contractor shall establish and maintain an acceptable property management system. Failure to maintain an acceptable property management system, as defined in this clause, may result in disapproval of the system by the Contracting Officer and/or withholding of payments.

(c) *System criteria.* The Contractor's property management system shall be in accordance with paragraph (f) of the contract clause at Federal Acquisition Regulation 52.245-1.

(d) *Significant deficiencies.* (1) The Contracting Officer will provide an initial determination to the Contractor, in writing, of any significant deficiencies. The initial determination will describe the deficiency in sufficient detail to allow the Contractor to understand the deficiency.

(2) The Contractor shall respond within 30 days to a written initial determination from the Contracting Officer that identifies significant deficiencies in the Contractor's property management system. If the Contractor disagrees with the initial determination, the Contractor shall state, in writing, its rationale for disagreeing.

(3) The Contracting Officer will evaluate the Contractor's response and notify the Contractor, in writing, of the Contracting Officer's final determination concerning—

(i) Remaining significant deficiencies;

(ii) The adequacy of any proposed or completed corrective action; and

(iii) System disapproval, if the Contracting Officer determines that one or more significant deficiencies remain.

(e) If the Contractor receives the Contracting Officer's final determination of significant deficiencies, the Contractor shall, within 45 days of receipt of the final determination, either correct the significant deficiencies or submit an acceptable corrective action plan showing milestones and actions to eliminate the significant deficiencies.

(f) Withholding payments. If the Contracting Officer makes a final determination to disapprove the Contractor's property management system, and the contract includes the clause at 252.242-7005 , Contractor Business Systems, the Contracting Officer will withhold payments in accordance with that clause.

(End of clause)

DFARS 252.245-7005 - MANAGEMENT AND REPORTING OF GOVERNMENT PROPERTY (JAN 2024)

(a) *Definitions*. As used in this clause—

"As is" means that the Government makes no warranty with respect to the serviceability and/or suitability of the Government property for contract performance and that the Government will not pay for any repairs, replacement, and/or refurbishment of the property.

"Commercial and Government Entity (CAGE) code" means—

(1) An identifier assigned to entities located in the United States or its outlying areas by the Defense Logistics Agency (DLA) Commercial and Government Entity (CAGE) Branch to identify a commercial or government entity by unique location; or

(2) An identifier assigned by a member of the North Atlantic Treaty Organization (NATO) or by the NATO Support and Procurement Agency (NSPA) to entities located outside the United States and its outlying areas that the DLA Commercial and Government Entity (CAGE) Branch records and maintains in the CAGE master file. This type of code is known as a NATO CAGE (NCAGE) code.

"Contractor-acquired property," "contractor inventory," "Government property," "Government-furnished property," and "loss of Government property" have the meanings given in the Federal Acquisition Regulation (FAR) 52.245-1, Government Property, clause of this contract.

"Demilitarization" means the act of eliminating the functional capabilities and inherent military design features from DoD personal property. Methods and degree range from removal and destruction of critical features to total destruction by cutting, tearing, crushing, mangling, shredding, melting, burning, etc.

"Export-controlled items" has the meaning given in the Defense Federal Acquisition Regulation Supplement (DFARS) 252.225-7048, Export-Controlled Items, clause of this contract.

"Ineligible transferee" means an individual, an entity, or a country—

(1) Excluded from Federal programs by the General Services Administration as identified in the System for Award Management Exclusions located at https://sam.gov;

(2) Delinquent on obligations to the U.S. Government under surplus sales contracts;

(3) Designated by the Department of Defense as ineligible, debarred, or suspended from defense contracts; or

(4) Subject to denial, debarment, or other sanctions under export control laws and related laws and regulations, and orders administered by the Department of State, the Department of Commerce, the Department of Homeland Security, or the Department of the Treasury.

"Item unique identification" means a system of assigning, reporting, and marking DoD property with unique item identifiers that have machine-readable data elements to distinguish an item from all other like and unlike items.

"National stock number" means a 13-digit stock number used to identify items of supply. It consists of a four-digit Federal Supply Code and a nine-digit National Item Identification Number.

"Reparable item" means an item, typically in unserviceable condition, furnished to the contractor for maintenance, repair, modification, or overhaul.

"Scrap" means property that has no value except for its basic material content. For purposes of demilitarization, scrap is defined as recyclable waste and discarded materials derived from items that have been rendered useless beyond repair, rehabilitation, or restoration such that the item's original identity, utility, form, fit, and function have been destroyed. Items can be classified as scrap if processed by cutting, tearing, crushing, mangling, shredding, or melting. Intact or recognizable components and parts are not "scrap."

"Serially-managed item" means an item designated by DoD to be uniquely tracked, controlled, or managed in maintenance, repair, and/or supply systems by means of its serial number or unique item identifier.

"Serviceable or usable property" means property with potential for reutilization or sale as is or with minor repairs or alterations. "Supply condition code" means a classification of materiel in terms of readiness for issue and use or to identify action underway to change the status of materiel. "Unique item identifier (UII)" means a set of data elements marked on an item that is globally unique and unambiguous. The term includes a concatenated UII or a DoD recognized unique identification equivalent.

(b) *Reporting Government property*.

(1) The Contractor shall use the Government Furnished Property (GFP) module of the Procurement Integrated Enterprise Environment (PIEE) to—

(i) Report receipt of GFP; (ii) Report the transfer of GFP to another DoD contract;

(iii) Report the shipment of GFP to the Government or to a contractor. The GFP module generates the electronic equivalent of the DD Form 1149, DD Form 1348-1, or other required shipping documents;

(iv) Report when serially-managed items of GFP are incorporated into a higher-level component, assembly, or end item;

(v) Report the loss of Government property in accordance with paragraph (f)(1)(vii) of the FAR 52.245-1 clause of this contract;

(vi) Complete the plant clearance inventory schedule in accordance with paragraph (j)(2) of the FAR 52.245-1 clause of this contract, unless disposition instructions are otherwise included in this contract. The GFP module generates the electronic equivalent of the Standard Form (SF) 1428, Inventory Disposal Schedule; and (vii) Submit a request to buy back or to convert to GFP items of Contractor-acquired property.

(2) Information regarding the GFP module is available in the GFP Module Vendor Guide at https://dodprocurementtoolbox.com/site-pages/gfp-resources. Users may also register for access to the GFP module and obtain training on the PIEE home page at https://piee.eb.mil.

(3) In complying with paragraphs (b)(1)(i) through (iv) of this clause, the Contractor shall report the updated status of the property to the GFP module within 7 business days of the date the change in status occurs, unless otherwise specified in the contract.

(4) The Contractor shall use Wide Area WorkFlow in accordance with DFARS Appendix F, Material Inspection and Receiving Report, to report the shipment of reparable items after completion of repair, maintenance, modification, or overhaul.

(5) When Government property is in the possession of subcontractors, the Contractor shall ensure that reporting is accomplished using the data elements required in paragraph (c) of this clause.

(c) *Records of Government property*. To facilitate reporting of Government property to the GFP module, the Contractor's property records, in addition to the requirements of paragraph (f)(1)(iii) of the FAR 52.245-1 clause of this contract, shall enable recording of the following data elements:

(1) National stock number (NSN). If an NSN is not available, use either the combination of the manufacturer's CAGE code and part number, or model number.

(2) CAGE code on the accountable Government contract.

(3) Received/sent (shipped) date.

(4) Accountable Government contract number.

(5) Serial number (for serially-managed items that do not have a UII); and

(6) Supply condition code (only required for reporting of reparable items). For information on Federal supply condition codes, see DLM 4000.25, Defense Logistics Management Standards (DLMS), Volume 2, Supply Standards and Procedures, Appendix 2.5 at https://www.dla.mil/HQ/InformationOperations/DLMS/elibrary/manuals/v2/.

(d) *Marking, reporting, and UII registration of GFP requirements*. The Contractor—

(1) Shall assign the UII and mark the reparable items identified as serially managed in the GFP attachment to this contract with an item unique identification (IUID) data matrix, when the technical drawing for the item is accessible to the Contractor and includes IUID data matrix location and marking method;

(2) Shall report the UII either before or during shipment of the repaired item;

(3) Is not required to mark items that were previously marked with an IUID data matrix and registered in accordance with DFARS 252.211-7003, Item Unique Identification and Valuation; and

(4) Shall assign a new UII, then mark and register the item, when the conditions of paragraph (d)(1) are met, if an item is found to be marked but not registered in the IUID Registry.

(e) *Disposing of Government property*.

(1) The Contractor shall complete the plant clearance inventory schedule using the plant clearance capability of the GFP module of the PIEE to generate an electronic equivalent of the SF 1428, Inventory Disposal Schedule. The plant clearance inventory schedule requires the following:

(i) If known, the applicable Federal supply code (FSC) for all items, except items in scrap condition.

(ii) If known, the manufacturer name for all aircraft components under Federal supply group 16 or 17 and FSCs 2620, 2810, 2915, 2925, 2935, 2945, 2995, 4920, 5821, 5826, 5841, 6340, and 6615.

(iii) The manufacturer name, make, model number, model year, and serial number for all aircraft under FSCs 1510 and 1520.

(2) If the schedules are acceptable, the plant clearance officer will confirm acceptance in the GFP module plant clearance capability, which will transmit a notification to the Contractor. The electronic acceptance is equivalent to the DD Form 1637, Notice of Acceptance of Inventory.

(f) *Demilitarization, mutilation, and destruction*. If demilitarization, mutilation, or destruction of contractor inventory is required, the Contractor shall demilitarize, mutilate, or destroy contractor inventory, in accordance with the terms and conditions of the contract and consistent with Defense Demilitarization Manual, DoD Manual (DoDM) 4160.28-M, edition in effect as of the date of this contract. If the property is available for purchase, the plant clearance officer may authorize the purchaser to demilitarize, mutilate, or destroy as a condition of sale provided the property is not inherently dangerous to public health and safety.

(g) *Classified Contractor inventory*. The Contractor shall dispose of classified contractor inventory in accordance with applicable security guides and regulations or as directed by the Contracting Officer.

(h) *Inherently dangerous Contractor inventory*. Contractor inventory that is dangerous to public health or safety shall not be disposed of unless rendered innocuous or until adequate safeguards are provided.

(i) Contractor inventory located in foreign countries. Consistent with contract terms and conditions, property disposition shall be in accordance with foreign and U.S. laws and regulations, including laws and regulations involving export controls, host nation requirements, final governing standards, and government-to-government agreements. The Contractor's responsibility to comply with all applicable laws and regulations regarding export-controlled items exists independent of, and is not established or limited by, the information provided by this clause.

(j) *Disposal of scrap*.

(1) Contractor scrap procedures.

(i) The Contractor shall include, within its property management procedure, a process for the accountability and management of Government-owned scrap. The process shall, at a minimum, provide for the effective and efficient disposition of scrap, including sales to scrap dealers, so as to minimize costs, maximize sales proceeds, and contain the necessary internal controls for mitigating the improper release of non-scrap property.

(ii) The Contractor may commingle Government and contractor-owned scrap and provide routine disposal of scrap, with plant clearance officer concurrence, when determined to be effective and efficient.

(2) Scrap warranty. The plant clearance officer may require the Contractor to secure from scrap buyers a DD Form 1639, Scrap Warranty.

(k) *Sale of surplus Contractor inventory*.

(1) Sales procedures.

(i) The Contractor shall conduct sales of contractor inventory (both useable property and scrap) in accordance with the requirements of this contract and plant clearance officer direction. The Contractor shall include in its invitation for bids the sales terms and conditions provided by the plant clearance officer.

(ii) The Contractor may conduct internet-based sales, to include use of a third party.

(iii) If the Contractor wishes to bid on the sale, the Contractor or its employees shall submit bids to the plant clearance officer prior to soliciting bids from other prospective bidders.

(iv) The Contractor shall solicit bids to obtain adequate competition. Negotiated sales are subject to obtaining such competition as is feasible under the circumstances of the negotiated sale.

(v) The Contractor shall solicit bids at least 15 calendar days before bid opening to allow adequate opportunity to inspect the property and prepare bids.

(vi) For large sales, the Contractor may use summary lists of items offered as bid sheets with detailed descriptions attached.

(vii) In addition to providing notice of the proposed sale to prospective bidders, the Contractor may, when the results are expected to justify the additional expense, display a notice of the proposed sale in appropriate public places, e.g., publish a sales notice on the internet, in appropriate trade journals or magazines, and in local newspapers.

(viii) The plant clearance officer or designated Government representative will witness the bid opening. The Contractor shall submit the bid abstract in electronic format to the plant clearance officer within 2 days of bid opening. If the Contractor is unable to submit the bid abstract electronically, the Contractor may submit 2 copies of the abstract manually within 2 days of bid opening. The plant clearance officer will not approve award to any bidder who is an ineligible transferee.

(2) Required terms and conditions for sales contracts. The Contractor shall include the following terms and conditions in sales contracts:

(i) For sales contracts or other documents transferring title: “The Purchaser certifies that the property covered by this contract will be used in [insert name of country]. In the event of resale or export

by the Purchaser of any of the property, the Purchaser agrees to obtain the appropriate U.S. and foreign export or re-export license approval."

(ii) For sales contracts that require demilitarization, mutilation, or destruction of property:

"The following items [insert list provided by plant clearance officer] require demilitarization, mutilation, or destruction by the Purchaser. Additional instructions are provided in accordance with Defense Demilitarization Manual, DoDM 4160.28-M, edition in effect as of the date of this sales contract. A Government representative will certify and verify demilitarization of items. Prepare demilitarization certificates in accordance with DoDM 4160.28, Volume 2, section 4.5, DEMIL Certificate (see figure 2, Example DEMIL Certificate)."

(iii) Removal and title transfer:

"Property requiring demilitarization shall not be removed, and title shall not pass to the Purchaser, until demilitarization has been accomplished and verified by a Government representative."

(iv) Assumption of cost incident to demilitarization:

"The Purchaser agrees to assume all costs incident to the demilitarization and to restore the working area to its present condition after removing the demilitarized property."

(v) Failure to demilitarize:

"If the Purchaser fails to demilitarize, mutilate, or destroy the property as specified in the sales contract, the Contractor may, upon giving 10 days written notice to the Purchaser—

(A) Repossess, demilitarize, and return the property to the Purchaser, in which case the Purchaser hereby agrees to pay to the Contractor, prior to the return of the property, all costs incurred by the Contractor in repossessing, demilitarizing, and returning the property;

(B) Repossess, demilitarize, and resell the property, and charge the defaulting Purchaser with all costs incurred by the Contractor. The Contractor shall deduct these costs from the purchase price and refund the balance of the purchase price, if any, to the Purchaser. In the event the costs exceed the purchase price, the defaulting Purchaser hereby agrees to pay these costs to the Contractor; or

(C) Repossess and resell the property under similar terms and conditions, and charge the defaulting Purchaser with all costs incurred by the Contractor. The Contractor shall deduct these costs from the original purchase price and refund the balance of the purchase price, if any, to the defaulting Purchaser. Should the excess costs to the Contractor exceed the purchase price, the defaulting Purchaser hereby agrees to pay these costs to the Contractor."

(l) *Restrictions on purchase or retention of Contractor inventory*. The Contractor may not knowingly sell the inventory to any person or that person's agent, employee, or household member if that person—

(1) Is a civilian employee of DoD or the U.S. Coast Guard;

(2) Is a member of the Armed Forces of the United States, including the U.S. Coast Guard; or

(3) Has any functional or supervisory responsibilities for or within DoD's property disposal, disposition, or plant clearance programs or for the disposal of contractor inventory.

(m) *Proceeds from sales of surplus property*. Unless otherwise provided in the contract, the proceeds of any sale, purchase, or retention shall be—

(1) Forwarded to the Contracting Officer;

(2) Credited to the Government as part of the settlement agreement pursuant to the termination of the contract;

(3) Credited to the price or cost of the contract; or

(4) Applied as otherwise directed by the Contracting Officer.

(End of clause)

FAR 52.222-62 – Paid Sick Leave Under Executive Order 13706 (JAN 2022)

(a) *Definitions*. As used in this clause (in accordance with 29 CFR 13.2)-

Child, "domestic partner", and "domestic violence" have the meaning given in 29 CFR 13.2.

Employee–

(1)

(i) Means any person engaged in performing work on or in connection with a contract covered by Executive Order (E.O.) 13706; and

(A) Whose wages under such contract are governed by the Service Contract Labor Standards statute (41 U.S.C. chapter 67), the Wage Rate Requirements (Construction) statute (40 U.S.C. chapter 31, subchapter IV), or the Fair Labor Standards Act (29 U.S.C. chapter 8);

(B) Including employees who qualify for an exemption from the Fair Labor Standards Act's minimum wage and overtime provisions;

(C) Regardless of the contractual relationship alleged to exist between the individual and the employer; and

(ii) Includes any person performing work on or in connection with the contract and individually registered in a bona fide apprenticeship or training program registered with the

Department of Labor's Employment and Training Administration, Office of Apprenticeship, or with a State Apprenticeship Agency recognized by the Office of Apprenticeship.

(2)

(i) An employee performs "on" a contract if the employee directly performs the specific services called for by the contract; and

(ii) An employee performs "in connection with" a contract if the employee's work activities are necessary to the performance of a contract but are not the specific services called for by the contract.

Individual related by blood or affinity whose close association with the employee is the equivalent of a family relationship has the meaning given in 29 CFR 13.2.

Multiemployer plan means a plan to which more than one employer is required to contribute and which is maintained pursuant to one or more collective bargaining agreements between one or more employee organizations and more than one employer.

Paid sick leave means compensated absence from employment that is required by E.O. 13706 and 29 CFR Part 13.

Parent, "sexual assault", "spouse", and "stalking" have the meaning given in 29 CFR 13.2.

United States means the 50 States and the District of Columbia.

(b) Executive Order 13706.

(1) This contract is subject to E.O. 13706 and the regulations issued by the Secretary of Labor in 29 CFR Part 13 pursuant to the E.O.

(2) If this contract is not performed wholly within the United States, this clause only applies with respect to that part of the contract that is performed within the United States.

(c) *Paid sick leave*. The Contractor shall-

(1) Permit each employee engaged in performing work on or in connection with this contract to earn not less than 1 hour of paid sick leave for every 30 hours worked;

(2) Allow accrual and use of paid sick leave as required by E.O. 13706 and 29 CFR Part 13;

(3) Comply with the accrual, use, and other requirements set forth in 29 CFR 13.5 and 13.6, which are incorporated by reference in this contract;

(4) Provide paid sick leave to all employees when due free and clear and without subsequent deduction (except as otherwise provided by 29 CFR 13.24), rebate, or kickback on any account;

(5) Provide pay and benefits for paid sick leave used no later than one pay period following the end of the regular pay period in which the paid sick leave was taken; and

(6) Be responsible for the compliance by any subcontractor with the requirements of E.O. 13706, 29 CFR Part 13, and this clause.

(d) Contractors may fulfill their obligations under E.O. 13706 and 29 CFR Part 13 jointly with other contractors through a multiemployer plan, or may fulfill their obligations through an individual fund, plan, or program (see 29 CFR 13.8).

(e) *Withholding*. The Contracting Officer will, upon his or her own action or upon written request of an authorized representative of the Department of Labor, withhold or cause to be withheld from the Contractor under this or any other Federal contract with the same Contractor, so much of the accrued payments or advances as may be considered necessary to pay employees the full amount owed to compensate for any violation of the requirements of E.O. 13706, 29 CFR Part 13, or this clause, including-

(1) Any pay and/or benefits denied or lost by reason of the violation;

(2) Other actual monetary losses sustained as a direct result of the violation; and

(3) Liquidated damages.

(f) Payment suspension/contract termination/contractor debarment.

(1) In the event of a failure to comply with E.O. 13706, 29 CFR Part 13, or this clause, the contracting agency may, on its own action or after authorization or by direction of the Department of Labor and written notification to the Contractor take action to cause suspension of any further payment, advance, or guarantee of funds until such violations have ceased.

(2) Any failure to comply with the requirements of this clause may be grounds for termination for default or cause.

(3) A breach of the contract clause may be grounds for debarment as a contractor and subcontractor as provided in 29 CFR 13.52.

(g) The paid sick leave required by E.O. 13706, 29 CFR Part 13, and this clause is in addition to the Contractor's obligations under the Service Contract Labor Standards statute and Wage Rate Requirements (Construction) statute, and the Contractor may not receive credit toward its prevailing wage or fringe benefit obligations under those Acts for any paid sick leave provided in satisfaction of the requirements of E.O. 13706 and 29 CFR Part 13.

(h) Nothing in E.O. 13706 or 29 CFR Part 13 shall excuse noncompliance with or supersede any applicable Federal or State law, any applicable law or municipal ordinance, or a collective bargaining agreement requiring greater paid sick leave or leave rights than those established under E.O. 13706 and 29 CFR Part 13.

(i) Recordkeeping.

(1) The Contractor shall make and maintain, for no less than three (3) years from the completion of the work on the contract, records containing the following information for each employee, which the Contractor shall make available upon request for inspection, copying, and transcription by authorized representatives of the Administrator of the Wage and Hour Division of the Department of Labor:

(i) Name, address, and social security number of each employee.

(ii) The employee's occupation(s) or classification(s).

(iii) The rate or rates of wages paid (including all pay and benefits provided).

(iv) The number of daily and weekly hours worked.

(v) Any deductions made.

(vi) The total wages paid (including all pay and benefits provided) each pay period.

(vii) A copy of notifications to employees of the amount of paid sick leave the employee has accrued, as required under 29 CFR 13.5(a)(2).

(viii) A copy of employees' requests to use paid sick leave, if in writing, or, if not in writing, any other records reflecting such employee requests.

(ix) Dates and amounts of paid sick leave taken by employees (unless the Contractor's paid time off policy satisfies the requirements of E.O. 13706 and 29 CFR Part 13 as described in 29 CFR 13.5(f)(5), leave shall be designated in records as paid sick leave pursuant to E.O. 13706).

(x) A copy of any written responses to employees' requests to use paid sick leave, including explanations for any denials of such requests, as required under 29 CFR 13.5(d)(3).

(xi) Any records reflecting the certification and documentation the Contractor may require an employee to provide under 29 CFR 13.5(e), including copies of any certification or documentation provided by an employee.

(xii) Any other records showing any tracking of or calculations related to an employee's accrual or use of paid sick leave.

(xiii) The relevant contract.

(xiv) The regular pay and benefits provided to an employee for each use of paid sick leave.

(xv) Any financial payment made for unused paid sick leave upon a separation from employment intended, pursuant to 29 CFR 13.5(b)(5), to relieve the Contractor from the obligation to reinstate such paid sick leave as otherwise required by 29 CFR 13.5(b)(4).

(2)

(i) If the Contractor wishes to distinguish between an employee's covered and noncovered work, the Contractor shall keep records or other proof reflecting such distinctions. Only if the Contractor adequately segregates the employee's time will time spent on noncovered work be excluded from hours worked counted toward the accrual of paid sick leave. Similarly, only if the Contractor adequately segregates the employee's time may the Contractor properly refuse an employee's request to use paid sick leave on the ground that the employee was scheduled to perform noncovered work during the time he or she asked to use paid sick leave.

(ii) If the Contractor estimates covered hours worked by an employee who performs work in connection with contracts covered by the E.O. pursuant to 29 CFR 13.5(a)(i) or (iii), the Contractor shall keep records or other proof of the verifiable information on which such estimates are reasonably based. Only if the Contractor relies on an estimate that is reasonable and based on verifiable information will an employee's time spent in connection with noncovered work be excluded from hours worked counted toward the accrual of paid sick leave. If the Contractor estimates the amount of time an employee spends performing in connection with contracts covered by the E.O., the Contractor shall permit the employee to use his or her paid sick leave during any work time for the Contractor.

(3) In the event the Contractor is not obligated by the Service Contract Labor Standards statute, the Wage Rate Requirements (Construction) statute, or the Fair Labor Standards Act to keep records of an employee's hours worked, such as because the employee is exempt from the Fair Labor Standards Act's minimum wage and overtime requirements, and the Contractor chooses to use the assumption permitted by 29 CFR 13.5(a)(1)(iii), the Contractor is excused from the requirement in paragraph (i)(1)(iv) of this clause and 29 CFR 13.25(a)(4) to keep records of the employee's number of daily and weekly hours worked.

(4)

(i) Records relating to medical histories or domestic violence, sexual assault, or stalking, created for purposes of E.O. 13706, whether of an employee or an employee's child, parent, spouse, domestic partner, or other individual related by blood or affinity whose close association with the employee is the equivalent of a family relationship, shall be maintained as confidential records in separate files/records from the usual personnel files.

(ii) If the confidentiality requirements of the Genetic Information Nondiscrimination Act of 2008 (GINA), section 503 of the Rehabilitation Act of 1973, and/or the Americans with Disabilities Act (ADA) apply to records or documents created to comply with the recordkeeping requirements in this contract clause, the records and documents shall also be maintained in compliance with the confidentiality requirements of the GINA, section 503 of

the Rehabilitation Act of 1973, and/or ADA as described in 29 CFR 1635.9, 41 CFR 60-741.23(d), and 29 CFR 1630.14(c)(1), respectively.

(iii) The Contractor shall not disclose any documentation used to verify the need to use 3 or more consecutive days of paid sick leave for the purposes listed in 29 CFR 13.5(c)(1)(iv) (as described in 29 CFR 13.5(e)(1)(ii)) and shall maintain confidentiality about any domestic abuse, sexual assault, or stalking, unless the employee consents or when disclosure is required by law.

(5) The Contractor shall permit authorized representatives of the Wage and Hour Division to conduct interviews with employees at the worksite during normal working hours.

(6) Nothing in this contract clause limits or otherwise modifies the Contractor's recordkeeping obligations, if any, under the Service Contract Labor Standards statute, the Wage Rate Requirements (Construction) statute, the Fair Labor Standards Act, the Family and Medical Leave Act, E.O. 14026, their respective implementing regulations, or any other applicable law.

(j) Interference/discrimination.

(1) The Contractor shall not in any manner interfere with an employee's accrual or use of paid sick leave as required by E.O. 13706 or 29 CFR Part 13. Interference includes, but is not limited to-

(i) Miscalculating the amount of paid sick leave an employee has accrued;

(ii) Denying or unreasonably delaying a response to a proper request to use paid sick leave;

(iii) Discouraging an employee from using paid sick leave;

(iv) Reducing an employee's accrued paid sick leave by more than the amount of such leave used;

(v) Transferring an employee to work on contracts not covered by the E.O. to prevent the accrual or use of paid sick leave;

(vi) Disclosing confidential information contained in certification or other documentation provided to verify the need to use paid sick leave; or

(vii) Making the use of paid sick leave contingent on the employee's finding a replacement worker or the fulfillment of the Contractor's operational needs.

(2) The Contractor shall not discharge or in any other manner discriminate against any employee for–

(i) Using, or attempting to use, paid sick leave as provided for under E.O. 13706 and 29 CFR Part 13;

(ii) Filing any complaint, initiating any proceeding, or otherwise asserting any right or claim under E.O. 13706 and 29 CFR Part 13;

(iii) Cooperating in any investigation or testifying in any proceeding under E.O. 13706 and 29 CFR Part 13; or

(iv) Informing any other person about his or her rights under E.O. 13706 and 29 CFR Part 13.

(k) *Notice*. The Contractor shall notify all employees performing work on or in connection with a contract covered by the E.O. of the paid sick leave requirements of E.O. 13706, 29 CFR Part 13, and this clause by posting a notice provided by the Department of Labor in a prominent and accessible place at the worksite so it may be readily seen by employees. Contractors that customarily post notices to employees electronically may post the notice electronically, provided such electronic posting is displayed prominently on any website that is maintained by the Contractor, whether external or internal, and customarily used for notices to employees about terms and conditions of employment.

(l) *Disputes concerning labor standards*. Disputes related to the application of E.O. 13706 to this contract shall not be subject to the general disputes clause of the contract. Such disputes shall be resolved in accordance with the procedures of the Department of Labor set forth in 29 CFR Part 13. Disputes within the meaning of this contract clause include disputes between the Contractor (or any of its subcontractors) and the contracting agency, the Department of Labor, or the employees or their representatives.

(m) *Subcontracts*. The Contractor shall insert the substance of this clause, including this paragraph (m), in all subcontracts, regardless of dollar value, that are subject to the Service Contract Labor Standards statute or the Wage Rate Requirements (Construction) statute, and are to be performed in whole or in part in the United States.

(End of clause)

DFARS 252.204-7008 - Compliance with Safeguarding Covered Defense Information Controls (OCT 2016)

(a) *Definitions*. As used in this provision—

"Controlled technical information," "covered contractor information system," "covered defense information," "cyber incident," "information system," and "technical information" are defined in clause 252.204-7012 , Safeguarding Covered Defense Information and Cyber Incident Reporting.

(b) The security requirements required by contract clause 252.204-7012 , shall be implemented for all covered defense information on all covered contractor information systems that support the performance of this contract.

(c) For covered contractor information systems that are not part of an information technology service or system operated on behalf of the Government (see 252.204-7012 (b)(2)—

(1) By submission of this offer, the Offeror represents that it will implement the security requirements specified by National Institute of Standards and Technology (NIST) Special Publication (SP) 800-171 "Protecting Controlled Unclassified Information in Nonfederal Information Systems and Organizations" (see http://dx.doi.org/10.6028/NIST.SP.800-171) that are in effect at the time the solicitation is issued or as authorized by the contracting officer not later than December 31, 2017.

(2)(i) If the Offeror proposes to vary from any of the security requirements specified by NIST SP 800-171 that are in effect at the time the solicitation is issued or as authorized by the Contracting Officer, the Offeror shall submit to the Contracting Officer, for consideration by the DoD Chief Information Officer (CIO), a written explanation of—

(A) Why a particular security requirement is not applicable; or

(B) How an alternative but equally effective, security measure is used to compensate for the inability to satisfy a particular requirement and achieve equivalent protection.

(ii) An authorized representative of the DoD CIO will adjudicate offeror requests to vary from NIST SP 800-171 requirements in writing prior to contract award. Any accepted variance from NIST SP 800-171 shall be incorporated into the resulting contract.

(End of provision)

DFARS 252.204-7012 - Safeguarding Covered Defense Information and Cyber Incident Reporting (MAY 2024) (DEVIATION 2024-O0013)

(a) *Definitions*. As used in this clause—

"Adequate security" means protective measures that are commensurate with the consequences and probability of loss, misuse, or unauthorized access to, or modification of information.

"Compromise" means disclosure of information to unauthorized persons, or a violation of the security policy of a system, in which unauthorized intentional or unintentional disclosure, modification, destruction, or loss of an object, or the copying of information to unauthorized media may have occurred.

"Contractor attributional/proprietary information" means information that identifies the contractor(s), whether directly or indirectly, by the grouping of information that can be traced back to the contractor(s) (e.g., program description, facility locations), personally identifiable information, as well as trade secrets, commercial or financial information, or other commercially sensitive information that is not customarily shared outside of the company.

"Controlled technical information" means technical information with military or space application that is subject to controls on the access, use, reproduction, modification, performance, display, release, disclosure, or dissemination. Controlled technical information would meet the criteria, if disseminated, for distribution statements B through F using the criteria set forth in DoD Instruction 5230.24, Distribution Statements on Technical Documents. The term does not include information that is lawfully publicly available without restrictions.

“Covered contractor information system” means an unclassified information system that is owned, or operated by or for, a contractor and that processes, stores, or transmits covered defense information.

“Covered defense information” means unclassified controlled technical information or other information, as described in the Controlled Unclassified Information (CUI) Registry at http://www.archives.gov/cui/registry/category-list.html, that requires safeguarding or dissemination controls pursuant to and consistent with law, regulations, and Governmentwide policies, and is—

(1) Marked or otherwise identified in the contract, task order, or delivery order and provided to the contractor by or on behalf of DoD in support of the performance of the contract; or

(2) Collected, developed, received, transmitted, used, or stored by or on behalf of the contractor in support of the performance of the contract.

“Cyber incident” means actions taken through the use of computer networks that result in a compromise or an actual or potentially adverse effect on an information system and/or the information residing therein.

“Forensic analysis” means the practice of gathering, retaining, and analyzing computer-related data for investigative purposes in a manner that maintains the integrity of the data.

“Information system” means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information.

“Malicious software” means computer software or firmware intended to perform an unauthorized process that will have adverse impact on the confidentiality, integrity, or availability of an information system. This definition includes a virus, worm, Trojan horse, or other code-based entity that infects a host, as well as spyware and some forms of adware.

“Media” means physical devices or writing surfaces including, but is not limited to, magnetic tapes, optical disks, magnetic disks, large-scale integration memory chips, and printouts onto which covered defense information is recorded, stored, or printed within a covered contractor information system.

‘‘Operationally critical support’’ means supplies or services designated by the Government as critical for airlift, sealift, intermodal transportation services, or logistical support that is essential to the mobilization, deployment, or sustainment of the Armed Forces in a contingency operation.

“Rapidly report” means within 72 hours of discovery of any cyber incident.

“Technical information” means technical data or computer software, as those terms are defined in the clause at DFARS 252.227-7013 , Rights in Technical Data—Other Than Commercial Products and Commercial Services, regardless of whether or not the clause is incorporated in this solicitation or contract. Examples of technical information include research and engineering data, engineering drawings, and associated lists, specifications, standards, process sheets, manuals, technical reports, technical orders, catalog-item identifications, data sets, studies and analyses and related information, and computer software executable code and source code.

(b) *Adequate security*. The Contractor shall provide adequate security on all covered contractor information systems. To provide adequate security, the Contractor shall implement, at a minimum, the following information security protections:

(1) For covered contractor information systems that are part of an Information Technology (IT) service or system operated on behalf of the Government, the following security requirements apply:

(i) Cloud computing services shall be subject to the security requirements specified in the clause 252.239-7010 , Cloud Computing Services, of this contract.

(ii) Any other such IT service or system (i.e., other than cloud computing) shall be subject to the security requirements specified elsewhere in this contract.

(2) For covered contractor information systems that are not part of an IT service or system operated on behalf of the Government and therefore are not subject to the security requirement specified at paragraph (b)(1) of this clause, the following security requirements apply:

(i) Except as provided in paragraph (b)(2)(ii) of this clause, the covered contractor information system shall be subject to the security requirements in National Institute of Standards and Technology (NIST) Special Publication (SP) 800-171, "Protecting Controlled Unclassified Information in Nonfederal Information Systems and Organizations", Revision 2 (available via the internet at http://dx.doi.org/10.6028/NIST.SP.800-171).

(ii)(A) The Contractor shall implement NIST SP 800-171, as soon as practical, but not later than December 31, 2017. For all contracts awarded prior to October 1, 2017, the Contractor shall notify the DoD Chief Information Officer (CIO), via email at osd.dibcsia@mail.mil, within 30 days of contract award, of any security requirements specified by NIST SP 800-171 not implemented at the time of contract award.

(B) The Contractor shall submit requests to vary from NIST SP 800-171 in writing to the Contracting Officer, for consideration by the DoD CIO. The Contractor need not implement any security requirement adjudicated by an authorized representative of the DoD CIO to be nonapplicable or to have an alternative, but equally effective, security measure that may be implemented in its place.

(C) If the DoD CIO has previously adjudicated the contractor's requests indicating that a requirement is not applicable or that an alternative security measure is equally effective, a copy of that approval shall be provided to the Contracting Officer when requesting its recognition under this contract.

(D) If the Contractor intends to use an external cloud service provider to store, process, or transmit any covered defense information in performance of this contract, the Contractor shall require and ensure that the cloud service provider meets security requirements equivalent to those established by the Government for the Federal Risk and Authorization Management Program (FedRAMP) Moderate baseline (https://www.fedramp.gov/documents-templates/) and that the cloud service provider complies with requirements in paragraphs (c) through (g) of this clause for cyber incident reporting, malicious software, media preservation and protection, access to additional information and equipment necessary for forensic analysis, and cyber incident damage assessment.

(3) Apply other information systems security measures when the Contractor reasonably determines that information systems security measures, in addition to those identified in paragraphs (b)(1) and (2) of this clause, may be required to provide adequate security in a dynamic environment or to accommodate special circumstances (e.g., medical devices) and any individual, isolated, or temporary deficiencies based on an assessed risk or vulnerability. These measures may be addressed in a system security plan.

(c) *Cyber incident reporting requirement*.

(1) When the Contractor discovers a cyber incident that affects a covered contractor information system or the covered defense information residing therein, or that affects the contractor's ability to perform the requirements of the contract that are designated as operationally critical support and identified in the contract, the Contractor shall—

(i) Conduct a review for evidence of compromise of covered defense information, including, but not limited to, identifying compromised computers, servers, specific data, and user accounts. This review shall also include analyzing covered contractor information system(s) that were part of the cyber incident, as well as other information systems on the Contractor's network(s), that may have been accessed as a result of the incident in order to identify compromised covered defense information, or that affect the Contractor's ability to provide operationally critical support; and

(ii) Rapidly report cyber incidents to DoD at https://dibnet.dod.mil.

(2) *Cyber incident report*. The cyber incident report shall be treated as information created by or for DoD and shall include, at a minimum, the required elements at https://dibnet.dod.mil.

(3) *Medium assurance certificate requirement.*In order to report cyber incidents in accordance with this clause, the Contractor or subcontractor shall have or acquire a DoD-approved medium assurance certificate to report cyber incidents. For information on obtaining a DoD-approved medium assurance certificate, see https://public.cyber.mil/eca/.

(d) *Malicious software.* When the Contractor or subcontractors discover and isolate malicious software in connection with a reported cyber incident, submit the malicious software to DoD Cyber Crime Center (DC3) in accordance with instructions provided by DC3 or the Contracting Officer. Do not send the malicious software to the Contracting Officer.

(e) *Media preservation and protection*. When a Contractor discovers a cyber incident has occurred, the Contractor shall preserve and protect images of all known affected information systems identified in paragraph (c)(1)(i) of this clause and all relevant monitoring/packet capture data for at least 90 days from the submission of the cyber incident report to allow DoD to request the media or decline interest.

(f) *Access to additional information or equipment necessary for forensic analysis.*Upon request by DoD, the Contractor shall provide DoD with access to additional information or equipment that is necessary to conduct a forensic analysis.

(g) *Cyber incident damage assessment activities*. If DoD elects to conduct a damage assessment, the Contracting Officer will request that the Contractor provide all of the damage assessment information gathered in accordance with paragraph (e) of this clause.

(h) *DoD safeguarding and use of contractor attributional/proprietary information.* The Government shall protect against the unauthorized use or release of information obtained from the contractor (or derived from information obtained from the contractor) under this clause that includes contractor attributional/proprietary information, including such information submitted in accordance with paragraph (c). To the maximum extent practicable, the Contractor shall identify and mark attributional/proprietary information. In making an authorized release of such information, the Government will implement appropriate procedures to minimize the contractor attributional/proprietary information that is included in such authorized release, seeking to include only that information that is necessary for the authorized purpose(s) for which the information is being released.

(i) *Use and release of contractor attributional/proprietary information not created by or for DoD.* Information that is obtained from the contractor (or derived from information obtained from the contractor) under this clause that is not created by or for DoD is authorized to be released outside of DoD—

(1) To entities with missions that may be affected by such information;

(2) To entities that may be called upon to assist in the diagnosis, detection, or mitigation of cyber incidents;

(3) To Government entities that conduct counterintelligence or law enforcement investigations;

(4) For national security purposes, including cyber situational awareness and defense purposes (including with Defense Industrial Base (DIB) participants in the program at 32 CFR part 236); or

(5) To a support services contractor ("recipient") that is directly supporting Government activities under a contract that includes the clause at 252.204-7009 , Limitations on the Use or Disclosure of Third-Party Contractor Reported Cyber Incident Information.

(j) *Use and release of contractor attributional/proprietary information created by or for DoD.* Information that is obtained from the contractor (or derived from information obtained from the contractor) under this clause that is created by or for DoD (including the information submitted pursuant to paragraph (c) of this clause) is authorized to be used and released outside of DoD for purposes and activities authorized by paragraph (i) of this clause, and for any other lawful Government purpose or activity, subject to all applicable statutory, regulatory, and policy based restrictions on the Government's use and release of such information.

(k) The Contractor shall conduct activities under this clause in accordance with applicable laws and regulations on the interception, monitoring, access, use, and disclosure of electronic communications and data.

(l) *Other safeguarding or reporting requirements.* The safeguarding and cyber incident reporting required by this clause in no way abrogates the Contractor's responsibility for other safeguarding or cyber

incident reporting pertaining to its unclassified information systems as required by other applicable clauses of this contract, or as a result of other applicable U.S. Government statutory or regulatory requirements.

(m) *Subcontracts*. The Contractor shall—

(1) Include this clause, including this paragraph (m), in subcontracts, or similar contractual instruments, for operationally critical support, or for which subcontract performance will involve covered defense information, including subcontracts for commercial products or commercial services, without alteration, except to identify the parties. The Contractor shall determine if the information required for subcontractor performance retains its identity as covered defense information and will require protection under this clause, and, if necessary, consult with the Contracting Officer; and

(2) Require subcontractors to—

(i) Notify the prime Contractor (or next higher-tier subcontractor) when submitting a request to vary from a NIST SP 800-171 security requirement to the Contracting Officer, in accordance with paragraph (b)(2)(ii)(B) of this clause; and

(ii) Provide the incident report number, automatically assigned by DoD, to the prime Contractor (or next higher-tier subcontractor) as soon as practicable, when reporting a cyber incident to DoD as required in paragraph (c) of this clause.

(End of clause)

DFARS 252.204-7016 Covered Defense Telecommunications Equipment or Services—Representation (DEC 2019)

(a) *Definitions*. As used in this provision, "covered defense telecommunications equipment or services" has the meaning provided in the clause 252.204-7018 , Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.

(b) *Procedures*. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (https://www.sam.gov/) for entities excluded from receiving federal awards for "covered defense telecommunications equipment or services".

(c) *Representation*. The Offeror represents that it [ ] does, [ ] does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

DFARS 252.204-7017 - Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services - Representation (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016 , Covered Defense Telecommunications Equipment or Services—

Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) Definitions. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at https://www.sam.gov for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016 , Covered Defense Telecommunications Equipment or Services—Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it [ ] will [ ] will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

DFARS 252.204-7018 - PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES (JAN 2023)

(a) *Definitions*. As used in this clause—

"Covered defense telecommunications equipment or services" means—

(1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation, or any subsidiary or affiliate of such entities;

(2) Telecommunications services provided by such entities or using such equipment; or

(3) Telecommunications equipment or services produced or provided by an entity that the Secretary of Defense reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

"Covered foreign country" means—

(1) The People's Republic of China; or

(2) The Russian Federation.

"Covered missions" means—

(1) The nuclear deterrence mission of DoD, including with respect to nuclear command, control, and communications, integrated tactical warning and attack assessment, and continuity of Government; or

(2) The homeland defense mission of DoD, including with respect to ballistic missile defense.

"Critical technology" means—

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled—

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

"Substantial or essential component" means any component necessary for the proper function or performance of a piece of equipment, system, or service.

(b) *Prohibition*. In accordance with section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91), the contractor shall not provide to the Government any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless the covered defense telecommunication equipment or services are covered by a waiver described in Defense Federal Acquisition Regulation Supplement 204.2104 .

(c) *Procedures*. The Contractor shall review the list of excluded parties in the System for Award Management (SAM) at https://www.sam.gov for entities that are excluded when providing any equipment, system, or service, to carry out covered missions, that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Reporting*.

(1) In the event the Contractor identifies covered defense telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system, during contract performance, the Contractor shall report at https://dibnet.dod.mil the information in paragraph (d)(2) of this clause.

(2) The Contractor shall report the following information pursuant to paragraph (d)(1) of this clause:

(i) Within 3 business days from the date of such identification or notification: the contract number; the order number(s), if applicable; supplier name; brand; model number (original equipment

manufacturer number, manufacturer part number, or wholesaler number); item description; and any readily available information about mitigation actions undertaken or recommended.

(ii) Within 30 business days of submitting the information in paragraph (d)(2)(i) of this clause: any further available information about mitigation actions undertaken or recommended. In addition, the Contractor shall describe the efforts it undertook to prevent use or submission of a covered defense telecommunications equipment or services, and any additional efforts that will be incorporated to prevent future use or submission of covered telecommunications equipment or services.

(e) *Subcontracts*. The Contractor shall insert the substance of this clause, including this paragraph (e), in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products or commercial services.

(End of clause)

DFARS 252.240-7997 - NIST SP 800-171 DoD Assessment Requirements (FEB 2026) (DEVIATION 2026-O0025)

(a) *Definitions.*

Covered contractor information system has the meaning given in the clause 252.204-7012, Safeguarding Covered Defense Information and Cyber Incident Reporting, of this contract.

High Assessment means an assessment that is conducted by Government personnel, trained in accordance with DoD policy and procedures, using NIST SP 800-171A, Assessing Security Requirements for Controlled Unclassified Information that—

(1) Consists of—

(i) A review of a contractor's previous assessment(s), as applicable;

(ii) A thorough document review;

(iii) Verification, examination, and demonstration of a Contractor's system security plan to validate that NIST SP 800-171 security requirements have been implemented as described in the contractor's system security plan; and

(iv) Discussions with the contractor to obtain additional information or clarification, as needed; and

(2) Results in a confidence level of "High" in the resulting score.

Medium Assessment means an assessment conducted by Government personnel, trained in accordance with DoD policy and procedures, using NIST SP 800-171A, Assessing Security Requirements for Controlled Unclassified Information that—

(1) Consists of—

(i) A review of a contractor's previous assessment(s), as applicable;

(ii) A thorough document review; and

(iii) Discussions with the contractor to obtain additional information or clarification, as needed; and

(2) Results in a confidence level of "Medium" in the resulting score.

(b) *Applicability.* This clause applies to covered contractor information systems that are required to comply with the National Institute of Standards and Technology (NIST) Special Publication (SP) 800-171, in accordance with Defense Federal Acquisition Regulation System (DFARS) clause at 252.204-7012, Safeguarding Covered Defense Information and Cyber Incident Reporting, of this contract.

(c) *Requirements.* The Contractor shall provide access to its facilities, systems, and personnel necessary for the Government to conduct a Medium or High NIST SP 800-171 DoD Assessment, using the methodology described at 32 CFR 170.24*,* if necessary. The results of Medium or High NIST SP 800-171 DoD Assessments, when conducted by DCMA, will take precedence over any other assessment, in accordance with 32 CFR 170.16(a)(1)(iv), 32 CFR 170.17(a)(1)(iv), and 32 CFR 170.18(a)(1)(iv).

(d) *Procedures.* Summary level scores for all assessments will be posted in the Supplier Performance Risk System (SPRS) (*https://www.sprs.csd.disa.mil/*) to provide DoD Components visibility into the summary level scores of strategic assessments.

Medium and High Assessments. DoD will post the following Medium and/or High Assessment summary level scores to SPRS for each system security plan assessed:

(i) The standard assessed (*e.g.,* NIST SP 800-171 Rev 1).

(ii) Organization conducting the assessment, *i.e.,* DCMA.

(iii) All industry CAGE code(s) associated with the information system(s) addressed by the system security plan.

(iv) Date and level of the assessment, *i.e.,* medium or high.

(v) Summary level score (overall numerical score, not the individual value assigned for each requirement).

(vi) Date that all requirements are expected to be implemented based on information gathered from associated plan(s) of action developed in accordance with NIST SP 800-171.

(e) *Rebuttals.* (1) DoD will provide Medium and High Assessment summary level scores to the Contractor and offer the opportunity for rebuttal and adjudication of assessment summary level scores prior to posting the summary level scores to SPRS (see SPRS User's Guide *https://www.sprs.csd.disa.mil/pdf/SPRS_Awardee.pdf*).

(2) Upon completion of each assessment, the contractor has 14 business days to provide additional information to demonstrate that they meet any security requirements not observed by the assessment team or to rebut the findings that may be of question.

(f) *Accessibility.* (1) Assessment summary level scores posted in SPRS are available to DoD personnel, and are protected, in accordance with the standards set forth in DoD Instruction 5000.79, Defense-wide Sharing and Use of Supplier and Product Performance Information (PI).

(2) Authorized representatives of the Contractor for which the assessment was conducted may access SPRS to view their own summary level scores, in accordance with the SPRS Software User's Guide for Awardees/Contractors available at *https://www.sprs.csd.disa.mil/pdf/SPRS_Awardee.pdf*.

(3) A High NIST SP 800-171 DoD Assessment may result in documentation in addition to that listed in this clause. DoD will retain and protect any such documentation as "Controlled Unclassified Information (CUI)" and intended for internal DoD use only. The information will be protected against unauthorized use and release, including through the exercise of applicable exemptions under the Freedom of Information Act (*e.g.,* Exemption 4 covers trade secrets and commercial or financial information obtained from a contractor that is privileged or confidential).

(g) *Subcontracts.* The Contractor shall insert the substance of this clause, including this paragraph (g), in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products or commercial services (excluding commercially available off-the-shelf items).

(End of clause)

FAR 52.240-90 - Security Prohibitions and Exclusions Representations and Certifications (FEB 2026)

(a) *Definitions.* As used in this provision-—

Backhaul, covered article, covered telecommunications equipment or services, critical technology, FASCSA order, Intelligence community, interconnection arrangements, national security system, roaming, sensitive compartmented information, sensitive compartmented information system, source, and substantial or essential component have the meanings provided in the clause 52.240-91, Security Prohibitions and Exclusions.

Business operations means engaging in commerce in any form, including by acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other apparatus of business or commerce.

Marginalized populations of Sudan means—

(1) Adversely affected groups in regions authorized to receive assistance under section 8(c) of the Darfur Peace and Accountability Act (Pub. L. 109-344) (50 U.S.C. 1701 note); and

(2) Marginalized areas in Northern Sudan described in section 4(9) of such Act.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in

Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;

(2) Are conducted under specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;

(3) Consist of providing goods or services to marginalized populations of Sudan;

(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;

(5) Consist of providing goods or services that are used only to promote health or education; or

(6) Have been voluntarily suspended.

Sensitive technology—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—

(i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

(b) *Procedures*.

(1) *Covered telecommunications and video surveillance*. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at https://www.sam.gov for entities excluded from receiving federal awards for "covered telecommunications equipment or services."

(2) *FASCSA Orders*.

(i) The Offeror shall search in SAM for the phrase "FASCSA order" for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (e) of FAR 52.240-91, Security Prohibitions and Exclusions.

(ii) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM but are effective and apply to the solicitation and resultant contract (see FAR 40.204-1(c)(2)).

(iii) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(c) *Covered telecommunications equipment or services representations*. By submission of its offer, the Offeror represents that, after conducting a reasonable inquiry (that looks at any information in the Offeror's possession but does not need to include an internal or third-party audit)—

(1) It will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation, except as waived by the solicitation, or as disclosed in paragraph (g); and

(2) It does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services, except as waived by the solicitation, or as disclosed in paragraph (g).

(d) *FASCSA Representation*. By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (g). A reasonable inquiry will look at any information in the offeror's possession but does not need to include an internal or third-party audit.

(e) *Sudan certification*. By submission of its offer, the offeror certifies, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), that the offeror does not conduct any restricted business operations in Sudan.

(f) *Iran Representation and Certifications*.

(1) Except as provided in paragraph (f)(2) of this provision or if a waiver has been granted in accordance with FAR 40.203-3, the offeror, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), by submission of its offer—

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person (as defined at section 15 of the Iran Sanctions Act of 1996, Pub. L. 104-172, 50 U.S.C. 1701 note) owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Act. These sanctioned activities are in the areas of development of the petroleum resources of Iran, production of refined petroleum products in Iran, sale and provision of refined petroleum products to Iran, and contributing to Iran's ability to acquire or develop certain weapons or technologies; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds $15,000 with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx)

(2) Exception for trade agreements. The representation and certification requirements of paragraph (f)(1) of this provision do not apply if—

(i) This solicitation includes a trade agreements notice or certification (e.g., 52.225-6, Trade Agreements Certificate); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products or designated country construction material.

(iii) The offeror shall email questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(g) *Disclosure.*

(1) If the Offeror is not able to represent compliance with the prohibitions in paragraphs (c) or (d), then the Offeror shall disclose within 72 hours to the contracting office identified in paragraph (g)(2) the following information for each product or service not compliant:

(i) Contract number and order number, if applicable;

(ii) Identification of whether this disclosure relates to paragraph (c) on covered telecommunication equipment or services, or to paragraph (d) on FASCSA orders;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment

manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the offeror would like the Government to consider a waiver);

(vii) Whether alternative products or services are available that would be compliant with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions undertaken or recommended.

(2) If a disclosure is required to be submitted to a contracting office, the offeror shall submit the disclosure as follows:

(i) If a Department of Defense contracting office, the offeror shall submit the disclosure to the website at https://dibnet.dod.mil.

(ii) For all other contracting offices, the Offeror shall submit the disclosure to the Contracting Officer.

(3) If the disclosure provided does not contain any of the information required by paragraph (1), and the Offeror later discovers new information that is required by paragraph (1), then the Offeror shall submit a subsequent disclosure within 72 hours of discovering the new information.

(h) *Executive agency review of disclosures*. The Contracting Officer will review disclosures provided in paragraph (g) to determine if any applicable waiver may be sought. The Contracting Officer may choose not to pursue a waiver and may instead make an award to an Offeror that does not require a waiver.

(End of provision)

FAR 52.240-91 - Security Prohibitions and Exclusions (FEB 2026)

(a) *Definitions.* As used in this clause—

American Security Drone Act-covered foreign entity means an entity included on a list that the Federal Acquisition Security Council (FASC) develops and maintains and publishes in the System for Award Management (SAM) at https://www.sam.gov (section 1822 of Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

Backhaul means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

Covered application means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

Covered article, as defined in 41 U.S.C. 4713(k), means:

(1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types;

(2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);

(3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or

(4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

Covered foreign country means The People's Republic of China.

Covered telecommunications equipment or services means—

(1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);

(2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);

(3) Telecommunications or video surveillance services provided by such entities or using such equipment; or

(4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

Critical technology means—

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled—

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

FASC-prohibited unmanned aircraft system means an unmanned aircraft system manufactured or assembled by an American Security Drone Act—covered foreign entity.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring removing covered articles from executive agency information systems or excluding one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201-1.303(d) and (e):

(1) The Secretary of Homeland Security may issue FASCSA orders that apply to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.

(2) The Secretary of Defense may issue FASCSA orders that apply to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.

(3) The Director of National Intelligence (DNI) may issue FASCSA orders that apply to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Information technology, as defined in 40 U.S.C. 11101(6)—

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use—

(i) Of that equipment; or

(ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;

(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but

(3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

Intelligence community, as defined by 50 U.S.C. 3003(4), means the following—

(1) The Office of the Director of National Intelligence;

(2) The Central Intelligence Agency;

(3) The National Security Agency;

(4) The Defense Intelligence Agency;

(5) The National Geospatial-Intelligence Agency;

(6) The National Reconnaissance Office;

(7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;

(8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;

(9) The Bureau of Intelligence and Research of the Department of State;

(10) The Office of Intelligence and Analysis of the Department of the Treasury;

(11) The Office of Intelligence and Analysis of the Department of Homeland Security; or

(12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

Interconnection arrangements means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connecting a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

Kaspersky Lab-covered article means any hardware, software, or service that—

(1) Is developed or provided by a Kaspersky Lab-covered entity;

(2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab-covered entity; or

(3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab-covered entity.

Kaspersky Lab-covered entity means—

(1) Kaspersky Lab;

(2) Any successor entity to Kaspersky Lab, including any change in name, e.g., "Kaspersky";

(3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab; or

(4) Any entity of which Kaspersky Lab has a majority ownership.

National security system, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency—

(1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or

(2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

Roaming means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of products or services, at any tier.

Subsidiary means an entity in which more than 50 percent of the entity is owned directly by a parent corporation or through another subsidiary of a parent corporation.

Substantial or essential component means any component necessary for the proper function or performance of a piece of equipment, system, or service.

Unmanned aircraft means an aircraft that is operated without the possibility of direct human intervention from within or on the aircraft (49 U.S.C. 44801(11)).

Unmanned aircraft system means an unmanned aircraft and associated elements (including communication links and the components that control the unmanned aircraft) that are required for the operator to operate safely and efficiently in the national airspace system (49 U.S.C. 44801(12)).

(b) *Prohibitions on providing or using specific products or services in performance of contract*. Unless a waiver or exception applies, the Contractor is prohibited from providing any products or services to the Government or using in the performance of the contract any of the following:

(1) A covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractor's employees (section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328));

(2) A Kaspersky Lab-covered article (Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91));

(3) Covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system (paragraphs (a)(1)(A) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)). This does not prohibit contractors from providing—

(i) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Prohibition on unmanned aircraft systems manufactured or assembled by American Security Drone Act—covered foreign entities.

(1) Prohibition. The Contractor is prohibited from—

(i) Delivering any FASC-prohibited unmanned aircraft system, which includes unmanned aircraft (i.e., drones) and associated elements (sections 1823 and 1826 of American Security Drone Act of 2023, within the National Defense Authorization Act for Fiscal Year 2024, Pub. L. 118-31, Div. A, Title XVIII, Subtitle B, 41 U.S.C. 3901 note prec.);

(ii) On or after December 22, 2025, operating a FASC-prohibited unmanned aircraft system in the performance of the contract (section 1824 of Pub. L. 118-31); and

(iii) On or after December 22, 2025, using Federal funds to procure or operate a FASC-prohibited unmanned aircraft system (section 1825 of Pub. L. 118-31).

(2) *Procedures*. The Contractor shall search SAM for the FASC-maintained list of American Security Drone Act—covered foreign entities before proposing, or using in performance of the contract, any unmanned aircraft system. Also, the Contractor shall ensure any effort or expenditure associated with a FASC-prohibited unmanned aircraft system is consistent with a corresponding exemption, exception, or waiver determination expressly stated in the contract.

(3) *Exemptions, exceptions, and waivers*. The prohibitions in paragraph (c) of this clause do not apply where the agency has determined an exemption, exception, or waiver applies, and the contract indicates that such a determination has been made. See sections 1823 through 1825 and 1832 of Public Law 118-31 for statutory requirements pertaining to exemptions, exceptions, and waivers.

(d) *Prohibition on using or providing specific products or services or conducting certain transactions regardless of connection to contract*.

(1) *Certain telecommunications and video surveillance equipment, systems, or services*.

(i) Unless an applicable waiver has been issued by the Government, the Contractor cannot use any equipment, systems, or services that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system (paragraph (a)(1)(B) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)).

(ii) This prohibition applies to using covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. This does not prohibit the contractor from using—

(A) A service that connects to the facilities of a third party, such as backhaul, roaming, or interconnection arrangements; or

(B) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) *Office of Foreign Assets Control Restrictions*.

(i) Except as authorized by the Office of Foreign Assets Control (OFAC) in the Department of the Treasury, the Contractor shall not acquire, for use in the performance of this contract, any supplies or services if any proclamation, Executive order, or statute administered by OFAC, or if OFAC's implementing regulations at 31 CFR chapter V, would prohibit such a transaction by a person subject to the jurisdiction of the United States.

(ii) Except as authorized by OFAC, most transactions involving Cuba, Iran, and Sudan are prohibited, as are most imports from Burma or North Korea, into the United States or its outlying areas.

(A) For lists of entities and individuals subject to economic sanctions, see OFAC's List of Specially Designated Nationals and Blocked Persons at https://home.treasury.gov/policy-issues/financial-sanctions/specially-designated-nationals-and-blocked-persons-list-sdn-human-readable-lists.

(B) For more information about these restrictions, as well as updates, see OFAC's regulations at 31 CFR chapter V and at https://home.treasury.gov/policy-issues/office-of-foreign-assets-control-sanctions-programs-and-information.

(C) To conduct electronic screens of potential parties to regulated transactions, see the consolidated screening list at https://www.trade.gov/consolidated-screening-list, which consolidates multiple export screening lists of the Departments of Commerce, State, and the Treasury.

(3) *Sudan prohibition*. The Contractor is prohibited from conducting any restricted business operations in Sudan in accordance with Accountability and Divestment Act of 2007 (Pub. L. 110-174).

(4) *Iran prohibitions*.

(i) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, the contractor shall not engage in certain activities or transactions relating to Iran (section 6(b)(1)(A) of Iran Sanctions Act (50 U.S.C. 1701 note).

(ii) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, contractor shall not export certain sensitive technology to Iran, as determined by the President, and has an active exclusion in SAM (22 U.S.C. 8515).

(iii) The prohibition in paragraphs (d)(4)(i) and (d)(4)(ii) do not apply if the acquisition is subject to trade agreements and the offeror certifies that all the offered products are designated country end products or designated country construction material (see part 25).

(iv) Unless an exception applies or the Government grants a waiver, contractors are prohibited from knowingly engaging in any significant transaction (i.e., over $15,000) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked according to the International Emergency Economic Powers Act (section 6(b)(1)(B) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(e) *Governmentwide exclusion and removal orders*.

(1) Unless the Government has issued an applicable waiver, contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order as follows:

(i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.

(ii) For all other solicitations and contracts, DHS FASCSA orders apply.

(2) The Contractor shall search for the phrase "FASCSA order" in the System for Award Management (SAM) at https://www.sam.gov to locate applicable FASCSA orders.

(3) The Government may identify in the solicitation other FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resulting contract.

(4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 40.204-1(c)).

(f) *Reasonable inquiry*. The contractor shall conduct a reasonable inquiry to determine if there are any prohibited products or services. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(g) *Removal of prohibited products and services*. For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract,

the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that this clause prohibits.

(h) *General report*.

(1) If the Contractor identifies or is notified by any source, (including a subcontractor at any tier), that any product or service provided or used (or to be provided or used) during contract performance does not comply with any prohibition in this clause, then the Contractor shall report the following information, or as much information is known, in writing to the contracting office as identified in paragraph (h)(2) within 72 hours:

(i) Contract number and order number, if applicable;

(ii) The specific prohibition the product or service is not complying with;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the contractor would like the Government to consider a waiver, and asks for such a waiver);

(vii) Whether alternative products or services are available that would comply with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions implemented or recommended.

(2) If a report must be submitted to a contracting office, the Contractor shall submit the report as follows:

(i) If a Department of Defense contracting office, the Contractor shall report to the website at https://dibnet.dod.mil.

(ii) For all other contracting offices, the Contractor shall report to the Contracting Officer.

(iii) For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.

(3) If the report provided does not contain any of the information required by paragraph (h)(1) of this clause, and the contractor later discovers new information that is required by paragraph (h)(1) of this clause, then the contractor shall submit a subsequent report within 72 hours of discovering the new information.

(4) The contractor shall also report the information in paragraph (h)(1) if the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification.

(i) *New FASCSA orders report*.

(1) During contract performance, the Contractor shall review SAM at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (e) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(3) The Contractor shall submit a report to the contracting office identified in paragraph (h)(2) of this clause if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s). For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order. The Contractor shall report the following information within 72 hours for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order:

(i) Contract number and order number, if applicable;

(ii) Name of the covered article or source subject to a FASCSA order;

(iii) The specific FASCSA order the product or service does not comply with;

(iv) The elements of (h)(1)(iii) through (ix) of this clause.

(j) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (j) but excluding subparagraphs (d)(1) and (i)(1), in all subcontracts and other contractual instruments, including subcontracts for acquiring commercial products or commercial services.

(End of clause)

Alternate I (DATE XXXX). As prescribed in 40.205(b), substitute the following paragraph (e)(1) for paragraph (e)(1) of the basic clause:

(e) *Governmentwide exclusion and removal orders*.

(1) Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by any applicable FASCSA orders identified by the checkbox(es) in this paragraph (e)(1). [*Contracting Officer must select either "yes" or "no" for each of the following types of FASCSA orders*:]

Yes □ No □ DHS FASCSA Order

Yes □ No □ DoD FASCSA Order

Yes □ No □ DNI FASCSA Order

FAR 52.240-93 - Basic Safeguarding of Covered Contractor Information Systems (FEB 2026)

(a) Definitions. As used in this clause—

Covered contractor information system means an information system that is owned or operated by a contractor that processes, stores, or transmits Federal contract information.

Federal contract information—

(1) Means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government; but

(2) Does not include information provided by the Government to the public (such as on public websites) or simple transactional information (such as information necessary to process payments).

Information means any communication or representation of knowledge such as facts, data, or opinions, in any medium or form, including textual, numerical, graphic, cartographic, narrative, or audiovisual (Committee on National Security Systems Instruction (CNSSI) 4009).

Information system means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information (44 U.S.C. 3502).

Safeguarding means measures or controls that are prescribed to protect information systems.

(b) *Safeguarding requirements*.

(1) Basic requirements. The Contractor shall safeguard its covered contractor information systems by implementing, at minimum, the following security controls:

(i) Limit information system access to authorized users, processes acting on behalf of authorized users, or devices (including other information systems).

(ii) Limit information system access to the types of transactions and functions that authorized users are permitted to execute.

(iii) Verify and control/limit connections to and use of external information systems.

(iv) Control information posted or processed on publicly accessible information systems.

(v) Identify information system users, processes acting on behalf of users, or devices.

(vi) Authenticate (or verify) the identities of those users, processes, or devices, as a prerequisite to allowing access to organizational information systems.

(vii) Sanitize or destroy information system media containing Federal Contract Information before disposal or release for reuse.

(viii) Limit physical access to organizational information systems, equipment, and the respective operating environments to authorized individuals.

(ix) Escort visitors and monitor visitor activity; maintain audit logs of physical access; and control and manage physical access devices.

(x) Monitor, control, and protect organizational communications (i.e., information transmitted or received by organizational information systems) at the external boundaries and key internal boundaries of the information systems.

(xi) Implement subnetworks for publicly accessible system components that are physically or logically separated from internal networks.

(xii) Identify, report, and correct information and information system flaws in a timely manner.

(xiii) Provide protection from malicious code at appropriate locations within organizational information systems.

(xiv) Update malicious code protection mechanisms when new releases are available.

(xv) Perform periodic scans of the information system and real-time scans of files from external sources as files are downloaded, opened, or executed.

(2) Other requirements. This clause does not relieve the Contractor of any other specific safeguarding requirements specified by Federal departments and agencies relating to covered contractor information systems generally or other Federal safeguarding requirements for controlled unclassified information (CUI) as established by Executive Order 13556.

(c) Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (c), in subcontracts under this contract (including subcontracts for the acquisition of commercial products, other than commercially available off-the-shelf items, or commercial services), in which the subcontractor may have Federal contract information residing in or transiting through its information system.

(End of clause)

DFARS 252.225-7966 - PROHIBITION REGARDING RUSSIAN FOSSIL FUEL BUSINESS OPERATIONS - REPRESENTATION (Deviation 2024-O0006) (MAR 2024)

(a) *Definitions*. The terms *business operations* and *fossil fuel company* have the meanings given in the 252.225-7067 clause of this solicitation.

(b) *Representation*. By submission of an offer, the Offeror represents it is not, or that it does not knowingly have fossil fuel business operations with an entity or individual that is, 50 percent or more owned, individually or collectively, by—

(1) An authority of the government of the Russian Federation; or

(2) A fossil fuel company that operates in the Russian Federation, except if the fossil fuel company transports oil or gas—

(i) Through the Russian Federation for sale outside of the Russian Federation; and

(ii) That was extracted from a country other than the Russian Federation with respect to the energy sector of which the President has not imposed sanctions as of the date on which the contract is awarded.

(End of provision)

DFARS 252.225-7967 - PROHIBITION REGARDING RUSSIAN FOSSIL FUEL OPERATIONS (DEVIATION 2024-O0006) (FEB 2024)

(a) *Definitions*. As used in this clause—

"Business operations" means knowingly engaging in commerce in any form, including acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel,

products, services, personal property, real property, or any other known apparatus of business or commerce. The term does not include—

(1) Any shipment subject to price caps as specified in the—

(i) "Statement of the G7 and Australia on a Price Cap for Seaborne Russian-Origin Crude Oil", issued on December 2, 2022, between member countries of that coalition; or

(ii) "Statement of the G7 and Australia on Price Caps for Seaborne Russian-Origin Petroleum Products Berlin, Brussels, Canberra, London, Ottawa, Paris, Rome, Tokyo, Washington", issued on February 4, 2023, between such members, if such shipment complies with the applicable price caps; or

(A) Actions taken for the benefit of the country of Ukraine, as determined by the Secretary; or

(B) Actions taken to support the suspension or termination of business operations for commercial activities during the period beginning on the effective date and ending on December 31, 2029, including—

(1) Any action to secure or divest from facilities, property, or equipment;

(2) The provision of products or services provided to reduce or eliminate operations in territory internationally recognized as the Russian Federation or to comply with sanctions relating to the Russian Federation; and;

(3) Activities that are incident to liquidating, dissolving, or winding down a subsidiary or legal entity in Russia.

Fossil fuel company means an entity or individual that—

(1) Carries out oil, gas, or coal exploration, development, or production activities;

(2) Processes or refines oil, gas, or coal; or

(3) Transports, or constructs facilities for the transportation of, Russian oil, gas, or coal.

(b) *Prohibition*. In accordance with section 804 of the National Defense Authorization Act for Fiscal Year 2024 (Pub. L. 118-31), the Contractor is prohibited from entering into a subcontract or other contractual instrument for the procurement of products or services with any entity or individual that is known to be, or that is known to have fossil fuel business operations with an entity or individual that is, not less than 50 percent owned, individually or collectively, by—

(1) An authority of the government of the Russian Federation; or

(2) A fossil fuel company that operates in the Russian Federation, except if the fossil fuel company transports oil or gas—

(i) Through the Russian Federation for sale outside of the Russian Federation; and

(ii) That was extracted from a country other than the Russian Federation with respect to the energy sector of which the President has not imposed sanctions as of the date on which the contract is awarded.

(c) *Subcontracts*. The Contractor shall insert the substance of this clause, including this paragraph (c), in all subcontracts and other contractual instruments, including those for the acquisition of commercial products or commercial services.

(End of clause)

DFARS 252.204-7021 - Cybersecurity Maturity Model Certification Requirements (JAN 2023)

(a) *Scope.* The Cybersecurity Maturity Model Certification (CMMC) CMMC is a framework that measures a contractor's cybersecurity maturity to include the implementation of cybersecurity practices and institutionalization of processes (see https://www.acq.osd.mil/cmmc/index.html).

(b) *Requirements*. The Contractor shall have a current (i.e. not older than 3 years) CMMC certificate at the CMMC level required by this contract and maintain the CMMC certificate at the required level for the duration of the contract.

(c) *Subcontracts*. The Contractor shall—

(1) Insert the substance of this clause, including this paragraph (c), in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products or commercial services, excluding commercially available off-the-shelf items; and

(2) Prior to awarding to a subcontractor, ensure that the subcontractor has a current (i.e., not older than 3 years) CMMC certificate at the CMMC level that is appropriate for the information that is being flowed down to the subcontractor.

DFARS 252.204-7025 - Cybersecurity Maturity Model Certification Requirements (NOV 2025)

(a) Definitions. As used in this provision, controlled unclassified information (CUI), current, Cybersecurity Maturity Model Certification (CMMC) status, Cybersecurity Maturity Model Certification unique identifier (CMMC UID), Federal contract information (FCI), and Plan of action and milestones have the meaning given in the Defense Federal Acquisition Regulation Supplement 252.204–7021, Contractor Compliance With the Cybersecurity Maturity Model Certification Level Requirements, clause of this solicitation.

(b)

(1) Cybersecurity Maturity Model Certification (CMMC) level. The CMMC level required by this solicitation is: **CMMC Level 1**. This CMMC level, or higher (see 32 CFR part 170), is required prior to award for each contractor information system that will process, store, or transmit

Federal contract information (FCI) or controlled unclassified information (CUI) during performance of the contract.

(2) The Offeror will not be eligible for award of a contract, task order, or delivery order resulting from this solicitation if the Offeror does not have, for each of the contractor information systems that will process, store, or transmit FCI or CUI and that will be used in performance of a contract resulting from this solicitation—

(i) The current CMMC status entered in the Supplier Performance Risk System (SPRS) (https://piee.eb.mil) at the CMMC level required by paragraph (b)(1) of this provision; and

(ii) A current affirmation of continuous compliance with the security requirements identified at 32 CFR part 170 in SPRS.

(c) Plan of action and milestones. If the Offeror has a CMMC Status of Conditional, the Offeror shall successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(d) CMMC unique identifiers. The Offeror shall provide, in the proposal, the CMMC unique identifier(s) (CMMC UIDs) issued by SPRS for each contractor information system that will process, store, or transmit FCI or CUI during performance of a contract, task order, or delivery order resulting from this solicitation. The Offeror also shall update the list when new CMMC UIDs are generated in SPRS. The CMMC UIDs are provided in SPRS after the Offeror enters the results of self-assessment(s) for each such information system.

(End of provision)

FAR 52.222-90 - Addressing DEI Discrimination by Federal Contractors (FEB 2026)

(a) *Definitions*. As used in this clause—

Program participation means membership or participation in, or access or admission to: training, mentoring, or leadership development programs; educational opportunities; clubs; associations; or similar opportunities that are sponsored or established by the contractor or subcontractor.

Racially discriminatory diversity, equity, and inclusion (DEI) activities means disparate treatment based on race or ethnicity in the recruitment, employment (e.g., hiring, promotions), contracting (*e.g.*, vendor agreements), program participation, or allocation or deployment of an entity's resources.

(b) In connection with the performance of work under this contract, the Contractor agrees as follows:

(1) The Contractor will not engage in any racially discriminatory DEI activities;

(2) The Contractor will furnish all information and reports, including providing access to books, records, and accounts, as required by the Contracting Officer, for purposes of ascertaining compliance with this clause;

(3) In the event of the Contractor's or a subcontractor's noncompliance with this clause, this contract may be canceled, terminated, or suspended in whole or in part, and the Contractor or subcontractor may be declared ineligible for further Government contracts;

(4) The Contractor will report any subcontractor's known or reasonably knowable conduct that may violate this clause to the Contracting Officer and take any appropriate remedial actions directed by the Contracting Officer; and

(5) The Contractor will inform the Contracting Officer if a subcontractor sues the Contractor and the suit puts at issue, in any way, the validity of this clause.

(6) The Contractor recognizes that compliance with the requirements of this clause are material to the Government's payment decisions for purposes of 31 U.S.C. 3729(b)(4).

(c) The Contractor must include the substance of this clause, including this paragraph (c), in subcontracts at any tier, including those for commercial products and commercial services, except those where the place of delivery or performance is outside the United States.

(End of clause)